

ADMINISTRATIVE LAW

Course Description:

This course is designed to introduce law students to the nature of administrative law generally and to the various types of administrative authorities in Uganda. Students will be introduced to the background of administrative law and where it fits within the constitutional framework of Uganda's legal system. They will then be given an in-depth study of the various administrative authorities and their powers and functions.

Course Objective

This course is intended to provide law students with a firm grounding in the intricacies of the operations of various administrative authorities in Uganda. At the end of the course the students should be able to appreciate the rationale for their existence, their powers and limitations and the various procedures that should be followed in the day-to-day operations of administrative authorities in Uganda.

Course Evaluation System:

The grade for the course is based on:

- (a) Course work which will consist of one essay assignments carrying 15 marks out of a total of 30%
- (b) Class attendance and participation is a must. Unauthorised absence from class may cost you 10% of the coursework. Please note that class participation is not just talking – it is informed participation. A student who is not equipped with knowledge of the cases for that class should not bother to come to class.
- (c) The essay assignment should include a title page, footnotes and a bibliography that are presented in an accepted academic style
- (d) Marks will be deducted for late submissions of coursework

- (e) Plagiarism and any form of cheating will be heavily punished
- (f) The final exam at the end of the semester will contribute 70%

Course Outline:

The course covers the following topics: the Nature of Administrative Law, the Constitutional Framework of Administrative Law, the Doctrine of Separation of Powers, Executive Responsibility, Rule of Law, Central Government, the Civil Service, Local Authorities and the Local Government System, Public Corporations, Administrative Tribunals and their procedure, powers and constitution, Inquiries, Sources of Administrative Power, Principal Legislation, Subsidiary Legislation and Controls, Delegation of Functions, the Process of Government, Registration, Consultation, Inspection, Licensing and Enforcement of Standards, the Police and the Control of Public Finance.

Additionally, students will be introduced to administrative law remedies including in Natural justice processes; Error On The Record; Prerogative Orders & Certiorari and **prohibition**; Mandamus; Equitable Remedies of Injunction and Declaration; Ordinary Remedies of Damages; Non-judicial remedies of ombudspersons, Commissions of Inquiry, Parliament and will also cover proceedings against the government.

Contact Hours:

This course will be taught over a period of one Semester lasting 13 weeks. Lectures will be conducted twice a week for a two-hour period and tutorials will be held once a week for two hours. Therefore the total contact hours per week for this course will be six (6) hours.

Reading Lists:

Students are advised to read the main texts below for an overview of the course. Additional reading is indicated under each of the individual topics to be studied for this course.

ADMINISTRATIVE LAW

BOOKS, GENERAL

Foulkes,	Introduction to Administrative Law
Wade,	Administrative Law
Garner,	Administrative Law edited by B.C Jones
Bailey,	Cross & Garner, Cases and Materials in Administrative Law
Oluyede,	Administrative Law in East Africa

REFERENCE BOOKS

1. Parker, Collins. *Administrative Law: Cases and Materials*. University of Namibia Press, 2019.
2. Warren, Kenneth F. *Administrative Law in the Political Sys*. Routledge, 2018.
3. Rosenbloom, David H. *Administrative law for public managers*. Routledge, 2018.
4. Loveland, Ian. *Constitutional law, administrative law, and human rights: a critical introduction*. Oxford University Press, 2018.
5. Parpworth, Neil. *Constitutional and administrative law*. Oxford University Press, 2018.
6. Buzbee, William W. "The Tethered President: Consistency and Contingency in

Administrative Law." *BUL Rev.* 98 (2018): 1357.

7. Barnett, Hilaire. *Constitutional & administrative law*. Taylor & Francis, 2017.
8. Breyer, Stephen G., Richard B. Stewart, Cass R. Sunstein, Adrian Vermeule, and Michael Herz. *Administrative law and regulatory policy: problems, text, and cases*. Wolters Kluwer Law & Business, 2017.
9. Ginsburg, Tom. "Written constitutions and the administrative state: on the constitutional character of administrative law." In *Comparative administrative law*. Edward Elgar Publishing, 2017.
10. Foulkes, Administrative Law 7th edition, Butterworth, London, 1990 Wade, Administrative Law, 6th edition, Oxford University Press, (1988)
11. Garner, Administrative Law, 7th, edition by Jones. Butterworth. London. (1989)
12. Bailey, ' Cross and Garner, Cases and Materials in Administrative Law
13. de Smith, S. & Brazier, R., 1998. Constitutional and Administrative Law. 8th ed London: Penguin. Ch. 25.
14. Fouikes, D.. 1964. Introduction to Administrative Law. London: Butterworths. Ch. 1-2.
15. Gamer, J.F., 1967. Administrative Law. 2nd ed. London: Butterworths. Ch. 1-2.
16. Leyland, P. & Anthony, G., Textbook on Administrative Law, 5th ed. Oxford: Oxford University Press. Ch. 3.
17. Oluvede, P., 1973. Administrative Law in East Africa. Nairobi: Kenya Literature Bureau, Chapter 2.
18. Phillips, H., Jackson, P. & Leopold, P., 2001. O. Flood Phillips & Jackson: Constitutional and Administrative Law. London: Sweet & Maxwell. Ch. 28.
19. Sharland, J. ed., 2006. A Practical Approach to Local Government Law. 2nd ed Oxford Oxford University Press. Ch. 1:3.
20. Wade. H.W.R. & Forsyth, C.F . 2004. Administrative Law 9th ed. Ox lord. Oxford University Press. Ch. 1-5.
21. Jones B. L & K. Thompson; Garners Administrative Law, 8th Edition Oxford University Press, 2005.
22. Kanyeihamba George William; Constitutional Law and Government in Uganda,

- East Africa Literature Bureau, Nairobi ,1975.
23. Kanyeihamba George William; Kanyeihamba's Commentaries on Law, Politics and Governance, Renaissance Publishing.
 24. Oluyede Peter; Administrative Law in East Africa, Kenya Literature Bureau published 1973.
 25. Tumwebaze Ayebare; Administrative Law and Practices in Uganda, Barrister's Reference Book Series, 2006.
 26. Adediji, B. O. (2013). Judicial Enforcement of Accountability of Local Government Councils for Breach of Ultra-Vires Doctrine. *Deeper Insight into Nigeria's Public Administration*, 125
 27. Bird, R. M., & Vaillancourt, F. (Eds.). (2008). *Fiscal decentralization in developing countries*. Cambridge University Press
 28. Bloom, S. E. (1984). Judicial Bias and Financial Interest as Grounds for Disqualification of Federal Judges. *Case W. Res. L. Rev.*, 35, 662
 29. Burns, D., Hambleton, R., & Hoggett, P. (2001). *The politics of decentralisation: revitalising local democracy*. Macmillan
 30. Cane, P. (2011). *Administrative law*. OUP Oxford
 31. Chan, J. (2008). Remedies in Administrative Law. In *Joint Symposium of three law schools of the Hong Kong University, the National University of Singapore, and the Singapore Management University*.
 32. De Montesquieu, C. (1989). *Montesquieu: The spirit of the laws*. Cambridge University Press
 33. De Secondat, C., & De Montesquieu, B. (1748). *The Spirit of Laws* (p. 181). Hafner Publishers
 34. Dobbs, D. B. (1973). *Handbook on the law of remedies: damages--equity--restitution*. West Pub.
 35. Fijnriut, C. (2002). 1 The administrative approach to organised crime in Amsterdam: background and developments
 36. Fortsakis, T. (2005). Principles governing good administration. *Eur. Pub. L.*, 11, 207

37. Galligan, D. J. (1990). *Discretionary powers: A legal study of official discretion*. Oxford University Press, USA
38. Galligan, D. J. (1996). Due process and fair procedures: a study of administrative procedures.
39. Gellhorn, E., & Levin, R. (2006). *Administrative Law and Process in a Nutshell, 5th*. West Academic.
40. Fortsakis, T. (2005). Principles governing good administration. *Eur. Pub. L.*, 11, 207
41. Galligan, D. J. (1990). *Discretionary powers: A legal study of official discretion*. Oxford University Press, USA
42. Galligan, D. J. (1996). Due process and fair procedures: a study of administrative procedures.
43. Gellhorn, E., & Levin, R. (2006). *Administrative Law and Process in a Nutshell, 5th*. West Academic.
44. Judges, L. (1994). The Model Code of Judicial Conduct for State Administrative Law Judges. *J. NAALJ*, 14, 279
45. Kingsbury, B., Krisch, N., & Stewart, R. B. (2005). The emergence of global administrative law. *Law and contemporary problems*, 68(3/4), 15-61.
46. Koch, C. H. (1985). *Administrative law and practice* (Vol. 1).
47. Lewis, K. S. (1989). Administrative Law Judges and the Code of Judicial Conduct: A Need for Regulated Ethics. *Dick. L. Rev.*, 94, 929.
48. Mendes, J. (2009). Good administration in EU law and the European Code of Good Administrative Behaviour
49. Monypenny, P. (1953). A code of ethics as a means of controlling administrative conduct. *Public Administration Review*, 13(3), 184-187.
50. Moravcsik, A. (2000). The origins of human rights regimes: Democratic delegation in postwar Europe. *International Organization*, 54(2), 217-252
51. Nair, A. R. (2013). *Principles of Natural Justice as an Effective Mechanism to Control Administrative Discretion* (Doctoral dissertation)

52. Ribot, J. C. (2003). Democratic decentralisation of natural resources: institutional choice and discretionary power transfers in Sub-Saharan Africa. *Public administration and development*, 23(1), 53-65
53. Rosenbloom, D. H. (2014). *Administrative law for public managers*. Hachette UK.
54. Samuels, D. (2009). Separation of powers. In *The Oxford handbook of comparative politics*. Oxford University Press
55. Seabright, P. (1996). Accountability and decentralisation in government: An incomplete contracts model. *European economic review*, 40(1), 61-89

Articles

1. Kinney, E.D., 2002. Administrative Law and the Public's Health. *Journal of Law, Medicine & Ethics*, [online], 30(2002): 212-223. Available at: www.blackwell-synergy.com
2. Wagenaar, FL, 2004. "Knowing" the Rules: Administrative Work as Practice. *Public Administration Review*, [online], Vol. 64 No. 6, November/December, pp 643-655. Available at: www.blackwell-synergy.com #
3. Twesiime- Kirya Monica; The Independence and Accountability of the Judiciary In Uganda: Opportunities and Challenges. A Kituo Cha katiba Occasional Publication 2, 2005.
4. Cameron, W. (2004). Public accountability: Effectiveness, equity, ethics. *Australian Journal of Public Administration*, 63(4), 59-67.
5. Epstein, D., & O'halloran, S. (1994). Administrative procedures, information, and agency discretion. *American Journal of Political Science*, 697-722
6. La Porta, R., Lopez-de-Silanes, F., Pop-Eleches, C., & Shleifer, A. (2004). Judicial checks and balances. *Journal of Political Economy*, 112(2), 445-470.
7. Levin, R. M. (2003). "Vacation" at sea: judicial remedies and equitable discretion in administrative law. *Duke Law Journal*, 291-388.
8. Loughlin, M. (1978). Procedural fairness: A study of the crisis in administrative law theory. *The University of Toronto Law Journal*, 28(2), 215-241
9. Orentlicher, D. F. (1991). Settling accounts: the duty to prosecute human rights violations of a prior regime. *Yale Law Journal*, 2537-2615

10. Page, E., & Goldsmith, M. (1987). Central and local government relations. *A Comparative Analysis of West European Unitary States*, London ua
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OTHER REFERENCE BOOKS

1. Daniel D. Nsereko - Police Powers & The rights of the individual in Uganda
2. de Smith - Judicial Review

THE NATURE OF ADMINISTRATIVE LAW

1. Art. 42 & 43 of the Constitution
2. Wade, 6th Ed. pg. 1-22
3. Garner 7th Ed., pg.1-16
4. Foulkes, pg. 1-6
5. Yardley, pg.1-20
6. Ernest Gellhork/Boyer 2nd Ed, pg.63
7. Halsbury's Laws, para .1.
8. Indiana Journal of Global Legal Studies vol.2, Issue 7 Fall 1994.
9. McCubbins et al, Administrative Procedures as Instruments of Political Control, Journal of Law, Economics and Organsiation Vol 3 (2) Fall 1987
10. Jonathan R. Macey, Organizational Design and Political Control of Administrative Agencies, Journal of Law, Economics and Organisation, Vol 8(1) pp. 93-110.

- a) Roberts vs Hopwood (1925) App.case 578
- b) Ridge vs Baldwin (1964) A.C 40, 72.
- c) Breen vs Amalgamated Eng. Union (1971)2 U.L.R 742, 749.

- d) R vs Secretary of State for Home Dept. ex.p
- e) Mohammed Fayed (1996) EWCA, civ.946, 13/11/96, RSVI.
- f) Council of Civil Service Unions vs Minister for the Civil Service (1985) A.C 374.

CONSTITUTIONAL FRAMEWORK FOR ADMINISTRATIVE LAW

a) - Doctrine of Separation of Powers

Applicability of the Doctrine of the Separation of Powers in the Uganda Constitution.

b) - Executive Responsibility

Oluyede, pg.6-30

Foulkes, pg.6-7

Wade, pg.31-32

c) - The Rule of Law

Friedman, Law in a Changing Society, 273-290.

Wade 23 - 27

Foulkes 7-10

Garner 11-16.

ADMINISTRATIVE AUTHORITIES

A. CENTRAL GOVERNMENT

1. Wade 51-101
2. The Constitution of the Republic of Uganda, 1995 as amended
3. Ghai & McAuslan, 220-221, 227-246, 254-258, 259-266.

4. Gertzel - GoldSchmidt & Rothschild - Government & Politics in Kenya, part 5.
5. P.P Criag, pg.89-91
6. B.L Jones & K. Thompson - Gamers Administrative Law, pg.357
7. B. Jones & K. Thompson - Chapt.17 Contracts over Local Authorities, pg.529-545.

B. THE CIVIL SERVICE

1. Wade, 54-77, 298-306
2. Kiapi, Civil Service Laws in East Africa
3. Oluyede, 35-42
4. Campbell, Termination of Appointments to Public Offices
5. Max Spry (2001), The Appointment, Removal and Responsibilities of Public Sector Chief Executives in Australia: Some Recent Developments, Australian Journal of Public Administration 60 (4), 39-49
6. Campbell, Enid, 1996 Termination of Appointments to Public Offices, Federal Law Review 24(1)
7. J. Singh, 2005, Civil Service Reform in India: Promoting Accountabilty, MBA Dissertation, University of Birmingham
8. Uganda Constitution Chapter 10, 1995
9. The Public Service Act, 1969
10. The Public Service Standing Orders
11. The Public Service Regulations
 - a) Opolot vs AG. 1969 E.A 631
 - b) Howard vs Bogneman 6, 1973 3 All E.R 641
 - c) Allingham vs Minister of Agriculture (1948)1 All E.R 780.
 - d) Vine vs National Dock Labour Board (1956)3 All E.R 939.
 - e) Blackpool Corporation vs Locker (above)
 - f) Lewisham B.C. vs Roberts (1949)2 KB 608

- g) *Carltona vs Commissioner of Works* (1943)2 All E.R 560
- h) *R vs Skinner* 1968 3 All E.R. 124.
- i) *Federal Law Review* vol.24, No.1, 1996.
- j) *Karia vs Dhanani* (1969) E.A 392
- k) *D'Silva vs Republic* (1968) E.A 660
- l) *Nelms vs Roe* (1970)1 W.L.R. 4
- m) *Municipal Board of Mombasa vs Kala* (1955) E.A.C.A 319.
- n) *Jeffs vs New Zealand Dairy Board* (1966)3 All E.R 863.
- o) *Ellis vs Dubouski* (1921)3 KB 621
- p) *Mills vs L.C.C* (1925)1 KB 213.
- q) *Hardware vs A.G* (1972)E.A 271
- r) *Tinyefunza vs A.G* C.C.No.1 of 1997
- s) *Wycliff Kiggundu v. the Attorney General* (1992) 1 KALR 125
- t) *Nuwemugizi v. National Water and Sewerage Corporation* (1994) 6 KALR 148
- u) *Bireije v. Attorney General* SCCSA No. 44 of 2005
- v) *Barishaki v. the Attorney General* HC Misc. Appl. 851 of 2004.
- w) *de Freitas vs P.S Ministry of Agriculture, Fisheries, Privy Council Appeal* P.S.C & the A.G No.42 of 1997.

C. LOCAL AUTHORITIES

1. Chapter 11, Articles 103-140 of the Constitution of Uganda 1995
2. Garner 34-38
3. Yardley 6-7

John McEldowney, 2003, Public Management Reform and Administrative Law in Local Public Service in the UK, *International Review of Administrative Sciences*, Vol 69 (1) pp. 69-82

4. Local Government Act Cap 243 Laws of Uganda
5. Phillips/Jackson, 7th Ed., pg.582-597.
6. P.P Criag. Pg.142.
7. Chapter 10 of the Constitution of Uganda, 1995.
 - a) R vs Thames Magistrate's Court exp Greenbaum (1957)55 LGR 129.
 - b) Enfield LBC vs Boundary Commission (1979)3 ALL ER 747.
 - c) Webb vs Minister of Housing and Local Government (1965)1 WLR 755.
 - d) R vs Secretary of State for the Environment exp. Hillingdon LBC (1986) 1 WLR 192/(1986)1 WLR 807.
 - e) R vs Newham LBC exp. Haggently (1986)85 LGR 48.
 - f) Rands vs Oldroyd (1956)1 QB 204.
 - g) Ministry of Housing and Local Government vs Sharp (1970)2 QB 223 at 269, 275.
 - h) Brown vs Director of Public Prosecutions (1956)2 QB 369.
 - i) R vs Commissioner for Local Admin. Exparte Croydon London
 - j) Berough Council & Anor (1989)1 ALL ER 1033.

D. PUBLIC CORPORATIONS

Garner 345-370

Foulkes 23-33

Wade 153 - 171

Yardley - 9-14

P.Paul Jackson, 7th Ed., pg.606-613

Common Wealth L. Bulletin, Jan 1995, pg.43-46.

Wettenhall, Roger, 1995; Corporations and Corporatisation: An Administrative History Perspective, Public Law Review 6(1)

Privatization of Delivery of Public Services

The Civil Aviation Authority Act

The Uganda Revenue Authority Act

The Bank of Uganda Act

E. TRIBUNALS

1. Wade, 890-948
2. Wade, 955-996
3. Garner, 275-320
4. Yardley, 270-212
5. Criag, pg.170-192
6. B.L Jones & K. Thompson Chp.11, pg.374-398.
7. Report of the UK Committee of Administrative Tribunals and Inquiries, (Franks Report) 1957.
8. Michael Adler (2006), Tribunal Reform: Proportionate Dispute Resolution and the Pursuit of Administrative Justice, Modern Law Review 69 (6), 958-985.
9. UK Department of Constitutional Affairs', White Paper Transforming Public Services: Complaints, Redress and Tribunals, 2004
10. H. Genn, 'Tribunal Review of Administrative Decision-Making' in G. Richardson and H. Genn (eds.) *Administrative Law and Government Action* (Oxford: Clarendon Press, 1994) at 266.
11. Uganda Land Alliance, Evaluating the Performance of District Land Tribunals in Uganda
12. Halsbury's Laws 1 (1), pg.133-176.
13. P.Paul Jackson, pg.637- 646
14. E.C Wade & A.W Bradley, 10th Ed., pg.703-729.

The Land Act (Land Tribunals)

The Uganda Communications Act (Communications Tribunal)

The Labour Disputes Act (Industrial Court)

The Tax Appeals Tribunal Act (Tax Appeals Tribunal)

The Advocates Act (Disciplinary Committee of the Law Council)

The Medical and Dental Practitioners' Act (Uganda Medical Council)

- a) Equator Inn Ltd vs. TWomasyan (1971) EA 405.
- b) Pritam vs Tatthal and Anor (1972)EA 560.
- c) Desai and Anor vs Shah and others (1974)EA 197.
- d) Choitram and others vs Mystery Model Hair Saloon (1972) EA 525.
- e) R vs Deputy Industrial Injuries Commissioners, exp. Jones (1962)2 QB 677.
- f) R vs Deputy Industrial Injuries Commissioners Moore (1965)1 QB 456 at 486.
- g) A.G vs British Broadcasting Corporation (1981)AC 303.
- h) R vs Lands Tribunal Exp. City of London Corpn (1982)1 ALLER 592.
- i) A.G vs Mulholland & Foster (1963)2 QB. 477/(1978)QB 287.
- j) Stefan vs General Medical Council Privcy Council Appeal No.16 of 1998 (1999) UKPC.10.
- k) R vs Fulham etc Rent Tribunal exp. Zerek (1951)2 KB 1
- l) R vs National Insurance exp. Hudson (1972)AC 944.
- m) R vs Deputy Industrial Injuries Commissioner exp. Jones (1962)2 QB 677.
- n) R vs Race Relations Board exp. Selvenayan (1975)1 WLR 86.
- o) Hanson vs Church Commissioners (1978)QB 823.
- p) A.G vs B.B.C (1981) AC 303.
- q) Munira vs National Council Insurance Corporation (1985)HCB 110.

F. INQUIRIES

1. Wade, 219-226, Ghai & McAuslan 272-273
2. Chapter 13 Constitution of Uganda 1995
3. Inspectorate of Government Act 2001.
4. Commissions of Inquiry Act, cap 166 Laws of Uganda
5. Leadership Code Act 2005
6. P/P Jackson, 7th Ed., pg.647
7. P.P Criag, pg.173
8. B.L Jones & K. Thompson, chp.12, 427-440
9. Halsbury's Law 1(1) 278.

G. THE POLICE

1. Wade 147 – 148
 2. The Constitution of Uganda 1995, 211-214
 3. The Police Act Cap 303, Laws of Uganda.
 - Nature of the police force – is it independent? – Police Act, sections 5(2) and 6
 - Functions of the police – Police Act, section 4
 - Powers and duties of police officers –Police Act, sections 21 and 22
- The Role of Police in the Criminal Process
- Police Act, sections 23, 24, 25, 26
- Discipline and complaints against police officers
- Police Act, sections 25(4), 44, 45,46, 49, 58, 70

- Use of firearms – Firearms Act Cap 299, section 1; Police Act, section 28
- Powers to regulate assemblies and processions
 - Police Act, sections 32, 33, 34, 35, 36
 - Statutory Instrument 53 of 2007
- a. R v Metropolitan Police Commissioner ex p. Blackburn (1968) 2 QB 118
- b. Muwanga Kivumbi vs. Attorney General Constitutional Petition No. 9 of 2005 [2008] UGCC 4
- c. Moses Mwandha v Attorney General Constitutional Petition No. 5 of 2007 [2019] UGCC 5 (30 May 2019)

SOURCES OF ADMINISTRATIVE POWER

A. PRINCIPAL LEGISLATION

1. Chapter 6, Constitution of Uganda.
2. Acts of Parliament Act, Cap. 2 Laws of Uganda
3. Interpretation Act Cap.3 Laws of Uganda
4. Edward Page, The Civil Servant as a Legislator: Law-Making in British Administration, Public Administration, Vol 81(4) p. 651, 2003
5. Blackpool Corporation vs Locker (1948)1 KB 349
6. Lewisham B.C vs Roberts (1949)1 All E.R at 823 E.
7. Jackson Stansfied vs Butterworths (1948)2 All E.R 558.
8. Yates vs Vegetable Seeds Committee (1945) 72 CLR 37.

B. SUBSIDIARY LEGISLATION

1. Wade 314 -321, 330-331, 337-245
2. Ghai & McAsiam 268-273.

3. Oluyede
4. Interpretation Act
5. Local Government Act S.33-34, Cap. 243.

- a) Mwangi vs R. (1960)24 KLR 72.
- b) Bailey vs Williamson (1873)LR 80 B.118.
- c) Simms vs Minister of Labour (1946)2 Aller
- d) Johnson vs Sergeant, (1918)1 KB 101
- e) National Social Security Fund Act SS.54 and 37.
- f) Dunkey vs Evans (1981)3 All E.R 285.

DELEGATION OF FUNCTIONS

1. Wade 61-67
2. Ghai & McAuslan 226-268
3. De Smith 263-272
4. JG Christensen et al, Delegation and Specialisation in Administrative Regulation: A Comparative Analysis of Denmark, Sweden and the Netherlands,
5. T Sargentich, The Delegation Debate and Competing Ideals of the Administrative Process, The American University Law Review, 1987
 - a) R vs Admirally Bound of Defence Council ex.p.Baire James Coupland
 - b) Barnard vs National Dock Labour Board (1953)2QB 18.
 - c) Municipal Board of Mombasa vs Kala (1955)22 E.A.C
 - d) Winder vs Cambridgeshire County C. [1978]LCR 549
 - e) Osman vs Govt of Malaysia [1973] 2 M.L.J 143
 - f) Howard vs Bogneman 6 [1973] 3 All E.R 641.
 - g) Allingham vs Minister of Agriculture, and Fisheries (1948)1 All E.R 780.
 - h) Vine vs National Dock Labour Board (1956)3 All E.R 939.
 - i) Blackpool Corporation vs Locker (above)

- j) Lewisham B.C vs Roberts (above)
- k) Jackson Stansfield vs Butterworth (above)
- l) Carltona vs Commissioner of Works (1943)2 All E.R 560.
- m) R vs Skinner (1968)3 All E.R 124.
- n) Karia vs Dhanani (1969)E.A 392.
- o) D'Silva vs Republic [1968]E.A 660
- p) Nelmas vs Roe (1970)1 W.L.R 4.
- q) Municipal Board of Mombasa vs Kala (1955)EACA 319.
- r) Jeffs vs New Zealand Dairy Board (1966)3 All ER 863.
- s) Ellis vs Dubouski (1921)3 KE 621
- t) Mills vs L.C.C (1925)1 KB 213.
- u) Hardware vs A.G (1972) E.A 271.
- v) R vs Minister of State for the Interior [1972]20 FLR 449.
- w) Amos Mugisa vs Uganda (1989)HCB 271.
- x) Rwakasisi vs A.G (1985) HCB 113.
- y) Oliso E. vs Ibumps 2 Others (1985) HCB 89.
- z) Katabalwa vs Uganda (1980)HCB
- aa) Sayani v. Nsubuga (1994) 6 KALR 50

PROCESSES OF GOVERNMENT

(Consultation, Public Inquiries, Registration, Inspection & Enforcement of Standards, Licensing)

1. Halbury's Law 1(1), pg.108
2. Foulkes 8th edition
3. Richard B. Stewart, Regulation, Innovation, and Administrative Law: A Conceptual Framework, California Law Review, 1981 Vol .69 (5)

4. S. 45, Interpretation Act.
5. National Bureau of Standards Act, Cap 347 laws of Uganda
6. Factories Act Cap 220, Laws of Uganda
7. Commissions of Inquiry Act, Cap 166, Laws of Uganda
8. Trade Licencing Act (1969) cap 101, Laws of Uganda
9. Traffic and Road Safety Act 1998, cap 361 Laws of Uganda
10. The Uganda Electricity Regulatory Authority Act
11. The Uganda Communications Act
12. The National Environment Management Authority Act
13. The Forests Act
 - a) Re An Application by Summaria Bus Service (1959) E.A 227.
 - b) Dent vs Kiambu Liquor Licensing Court (1968)E.A 80.
 - c) Fernandes vs Kericho Liquor Licensing Court (1968) E.A 640.
 - d) Ahmed vs Republic (1973)E.A 237.
 - e) Shah vs Dershi & Co. Ltd vs The Transport Licencing Board (1970)E.A 631.
 - f) Karia & Co. Ltd vs Dhanani (1969) E.A 392.
 - g) Muhuri vs Iron Mongery Ltd vs A.G (1972) E.A 271
 - h) Mahon vs AIV New Zealand Ltd (1984) AC 808.
 - i) R vs Huntingdon District Council Explowna (1984)1 ALLER 58/(1984)1 WLR 501.
 - j) R vs Bristol City Council, Exp. Pearce (1985) 83 LGR 711.
 - k) Public Disclosure Commission vs Isaac's (1989)1 ALLER 137.

THE CONTROL OF PUBLIC FINANCE

1. The Constitution of 1995 (Articles 152-164 and 223 - 232)
2. Public Finance and Accountability Act, 2003
3. Inspectorate of Government Act, 2001

4. Leadership Code Act, Cap 80
5. The Prevention of Corruption Act, Cap 121
6. The Inspectorate of Government Act, 2002
7. The UN Convention Against Corruption
8. The Public Procurement Regulations
9. Rules of Procedure of the Parliament of Uganda

ADMINISTRATIVE TRIBUNALS

1. The Tax Appeals Tribunal Cap .115 vol. 13 The Uganda Communications Commission Act
2. The Employment Act 2006
3. The Labour Disputes (Arbitration and Settlement Act) 2006
4. The Medical and Dental Practitioners' Act
5. The Advocates Act
6. Halsbury's Laws 1 (1) pg. 133
7. Gullam Hussein vs Lila 1959 F.ACA 734
8. Patel vs Plateau Liquor Court 1954 24 KLR 147
9. Stevenson vs United Transport Union 1926 IWCR 233
10. University of Ceylon vs Fernando (1960) IWCR 233
11. De Souza vs Tanga Town Council (1961) E.A. 377

JUDICIAL REVIEW

1. Foulkes pg. 314-402 De Smith - Judicial Review
2. Common Wealth Law Bulletin July - Oct. 1996. pg 725-734
Common Wealth L.B. Jan, 1995, pg.40-41 8th Edn
3. Foulkes: Judicial Review 337 - 361 R vs Devon County, experte
Baker & Anor (1995) I ALTER
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NATURE AND CONSTITUTIONAL FRAMEWORK OF ADMINISTRATIVE LAW

Introduction

This session will introduce you to the nature and function of Administration Law. It defines Administrative Law, gives objectives of administrative Law. The session also covers the subjects of administrative law and its Administrative powers, as well as its relation to constitutional principles.

Objectives

By the end of this session you should be able to

- To know the relevancy of the constitution to a public officer.
- To identify the provisions of the Constitution that has a bearing on administrative law.
- Objectives of administrative law
- Administrative powers

Definition of Administrative Law

Administrative law is the law concerning the establishment, powers, functions and procedures of public officials and public administrative authorities.

Wade In his book **Administrative Law** gives the definition which is based on function. He says Administrative Law is concerned with the operation and control of powers of administrative authorities”.

According to **Griffith and Smith**,

Administrative Law determines the organisation, powers and duties of administrative authorities.

Administrative authorities include public officers, government departments, local authorities and other public bodies that are entrusted with the implementation of policies of government and the enforcement of laws. Administrative Law therefore regulates and controls the administrative process. The processes of government include consultation, adjudication, inspections, registration, licensing, and enforcement of standards.

Objectives of Administrative Law?

The general objective of administrative law is to ensure that public authorities act within the confines of the law and that they make decisions that promote good governance.

The specific objectives of Administrative Law are:

Acting Intra vires

- a) To ensure that public administrative authorities **exercise powers which are entrusted to them under the law**. This eliminates the possibility of wrong authorities exercising powers. It ensure that all public authorities act within the powers which have been conferred i.e. intra vires.

Procedures

- b) Administrative Law requires that public administrative authorities follow established procedures. Procedures are important because they ensure
- Transparency in operations
 - Consistency in decision making
 - Uniformity of decisions
 - There is no arbitrariness in decision making
 - Certainty of what is expected of officials or ordinary individuals
 - Order efficiency in operations

Proper use of discretions

- c) Administrative Law expects public officials entrusted with discretionary powers to **use** such powers in manner that promotes the objective of specific government policies and laws. In this respect public authorities are not expected to use discretionary powers unreasonably, take into account irrelevant factors, or use powers to achieve purposes over than those anticipated under the law.

Properly constituted Authorities

- d) Administrative Law ensures that public powers are exercised by proper authorities. These are therefore restrictions on delegation of statutory powers. The law also restricts divestiture of discretionary powers.

Observance of principles of Fairness and Justice

- e) Administrative Law is to promote the observance of principles of natural Justice. **Article 42** of the Constitution of Uganda requires all public officials and public officials to ensure fairness and justice in their entire task which involve decision making. Furthermore **Article 28** of the Constitution provides for a fair hearing in all matters adjudication of disputes. Administrative Law invalidates decisions that are made without recourse to principles of fairness, justice and fair hearing.

Remedies against public officials

- f) Administrative Law also provides for remedies against public officials. Individuals or institutions aggrieved by decisions of public officials, government departments, public corporations are entitled to redress under various legal processes. Remedies may be obtained through court processes or through non judicial processes. The law does not allow any wrong to be suffered without availability of redress of remedies.

Accountability of public officials

- g) Administrative Law also promotes accountability in the process of exercising public powers. Public officials are expected to exercise public powers in a manner that promote public interest. They are therefore expected to protect public resources, respect individual freedoms and generally to act in a manner that promotes public welfare.

Administrative Law in a modern state

Administrative Law has grown in importance because of social, political and economic developments in society. Originally the state was concerned with only matters of sovereignty i.e. territorial integrity, foreign relations, law and order. The Modern state is concerned with activities that have nothing to do with sovereignty.

The modern state also provides services, regulates social and economic activities, owns property, contracts for goods and services. The aspects of service provision, regulation, and transactions bring it in direct contact with individual interests. Services delivery and regulatory responsibilities affect and also affect individual freedoms and rights. Administrative Law comes into strike balance between service delivery, regulation and individual rights.

Subjects of Administrative Law

The subjects of Administrative Law are those officials, public bodies and public organisations that are bound by the principles of Administrative Law. These are the public officials or bodies whose decisions or procedures can legally be challenged by aggrieved persons.

The subjects of Administrative Law are bodies or public officials that exercise public powers. Public powers are derived from:

- a) The Constitution of Uganda.
- b) Laws made by Parliament.
- c) Subsidiary Legislation.
- d) Government Policies.

Public powers are usually exercised during the process of policy formulation and implementation. Public powers are also exercised during the process of gathering views, registration of activities, planning for public services, inspections for licensing activities, supervision of delivery of public services, maintenance of standards, taxation of activities, hiring and exercising disciplinary proceedings over employees. Public powers may be exercised by the following:-

The President

Has constitutional power relating to formulation of policies, public appointments and overall supervision of governmental activities Article 98 and 99 of the constitution.

Ministers

Have functions relating to formation of policies, political supervision a direction of government departments, enactment of rules and regulations.

Civil Servants or Public Officers

Are normally charged with the duty of implementation of policies and enforcement of laws.

Public Corporations

Are set up to carry out specialised services on behalf of government. They are given powers to provide services and regulates activities relating to a particular sector or aspect of service delivery.

Local Governments

Have executive, legislative, planning and financial powers within them are of jurisdiction They can formulate policies, enact ordinances and byelaws, maintain law and order. They also enforce laws on behalf of the Central Government.

The Police

Has responsibility for maintenance of law and order.

Administrative Tribunals

Have statutory powers to resolve administrative disputes.

Constitutional Commissions

Have constitutional powers to manage particular sector of government.

Constitutional Offices

Have constitutional mandate to carry out specific constitutional functions

SOURCES OF ADMINISTRATIVE POWERS

Principal Sources

The sources of administrative powers include the Constitution, Acts of Parliament, And Subsidiary legislation (already discussed above).

Subsidiary Sources

Subsidiary sources of Administrative Law include official records. Many instructions and policy decisions are made and communicated through circulars, memoranda, letters and minutes. These instructions form part and parcel of the general administrative law. They may also contain terms and conditions of service, revised government policies, procedural matters and codes of conduct. A public officer is always under a duty to comply with such instructions.

Constitutional Framework for Administrative Law

Administrative Law is grounded on some Constitutional foundations. The understanding of constitutional provisions is vital in so far as it enables the public administrator to assess the constitutional implications of all intended actions.

The constitution of Uganda (1995) is a fundamental document that governs all aspects of life within the country. The constitution gives a broad framework for allocation of state powers. It establishes and allocates power the main organs of the state ie the President, Parliament and the Judiciary. It also establishes the major public and constitutional offices. The constitution declares the Human rights of the individuals and provides the machinery for enforcement of rights and freedoms. The constitution also has provision relating for the public service, Local Government, public Finances and Security.

A comprehensive study of the constitution is reserved for the public law subject of constitutional law. However many aspects of the constitution and constitutional law have a direct relevancy to the practice and enforcement of principles of a Administrative law. The basis constitutional law principles of direct concern to public officers and Administrative law as follows:

Supremacy of the constitution

The constitution is the supreme law of Uganda

Art 2 of the constitution provides that *“This Constitution is the supreme law of Uganda and shall have binding force on all authorities and persons throughout Uganda. (2) If any other law or any custom is inconsistent with any of the provisions of this Constitution, the Constitution shall prevail, and that other law or custom shall, to the extent of the inconsistency, be void”*.

The import of the article is that all action, laws, practices, codes of conduct, beliefs are subordinate to the provision of the constitution. The supremacy of the Constitution cannot be overemphasized. We are all bound by it in its Article 2. Manyindo DCJ (as he then was) in **Major General David Tinyefuza v. AG Constitutional Petition No. 1 of 1996 p.69** observed;

“... once a polity has enacted a constitution then the rule of law, that is the constitution becomes the cornerstone of all laws and regulates the structure of the principal organs of government and their relationships with their relationships to each other and to the citizen, and determines their main functions. Needless to emphasize, all laws must conform to the Constitution as the supreme law of the land. It is the constitution, and not the Executive, Legislature or Judiciary, which is supreme. Under Article 2 (1) and 2 of the Constitution it has binding force on all authorities and persons throughout Uganda.”

Anything done in contravention of the constitution is void and of no legal effect. In the case of **Semogerere Vs Attorney General** a petition was filed to nullify the Referendum Act which was allegedly passed by parliament without the required quorum set by the constitution. The constitutional court declared the law a nullity and Parliament had to reconvene to enact on new Referendum Act which legalised the conduct of the referendum in 2001

The Rule of law

According to E.C.S. Wade and Godfrey Phillips, in Constitutional Law 8th Edn at p.62 Rule of law means that the exercise of powers of government shall be conditioned by law and that the subject shall not be exposed to the arbitrary will of his ruler. Rule of law basically means that functions, powers will be exercised in accordance with the law. The concept of rule of law was formulated by Prof. Dicey who said that the rule of law had three meanings.

- (a) The absolute supremacy of the law on opposed to arbitrary exercise of powers.
- (b) Equally before the law
- (c) The supremacy of the constitution

In most cases it is the duty of the judiciary to uphold rule of law as discussed in **R v. Horseferry Road Magistrates Ex parte Bennet**, [\[1993\] UKHL 10](#); [\[1994\] 1 A.C. 42](#). the House of Lords stated that:

“...the Judiciary accepts a responsibility for the maintenance of the rule of law that embraces a willingness to oversee executive action and to refuse to countenance behavior that threatens either basic human rights or the rule of law. ... [Authorities in the field of administrative law contend] that it is the function of the High Court to ensure that the executive action is exercised responsibly and as Parliament intended. ”

Over the years the basic elements of the Rule of law have been concretised. In 1959, the International Coalition for jurist [ICJ] met in Geneva and formulated certain general principles for determining circumstances in which the rule of law can be said to be in existence. These include:

Existence of strong Government

The rule of law requires that there be in place a strong and effective government. Such a government must be capable of enforcing law and order and protecting individual freedoms and rights. A strong and affective government must have in place a system of resolution of disputes following the law. Absence of a strong government leads to anarchy.

Government According to Law

Must be established in accordance with the existing law. Such laws are the constitution and election laws. Government must also be governed in accordance with the existing law. Such laws must also not only be in existence but must also be fair and aimed at promotion of public welfare. Oppressive and arbitrary laws cannot constitute a government according to law.

Equality before the law

Just laws should also be administered to guarantee all people equal rights. Law should equally and consistently be applied to all citizens. **Art 21** of the constitution provides that all persons are equal and order the law. Equality requires treatment of all persons with equity. Consideration should not be given to colour, place of origin social standing, race economic status, religious inclination or political affiliation.

The constitution however **in Art 21** allows affirmative action (a negation of equality before the law) in respect of women, children, disability or minorities eg women are awarded 1.5 points as an affirmative action for entry in public universities sometimes regarded as positive discrimination.

Independence of the Judiciary

An independent judiciary is a prerequisite for existence of the rule of law. A judiciary is independent when it is capable of dispensing justice in freely and fairly without consideration of extraneous factors. An independent judiciary is one that which is capable of making decisions without due regard to executive or legislative interest or without consideration of a person's social or economic standing.

An independent judiciary can be ascertained from the existence of the following

- ❖ Security of tenure of judges - Judicial officers should hold office without fear of possibility of loss of office arising from executive decisions. In Uganda High Court judges serve up to 65 years of age. Court of Appeal and Supreme Court Judges serve up to 70 years age. Judges can only be removed from office for inability to hold office of judge after a recommendation of a judicial tribunal¹. Only one judge has ever been removed through such a process.
- ❖ Terms and condition of service- Judges should be guaranteed salaries and facilities that enable them to carry out their duties without social, economic and political influences. In Uganda judges are paid relatively high salaries which are not subject to income tax².
- ❖ Qualifications must reflect professional competence. In Uganda judges must have a minimum of ten years working experience.

¹ Article 128, 144 and 143 of the 1995 constitution.

² Article 128 (5) of the constitution

Human Rights

The Rule of law requires that rights of persons be respected. Human Rights are fundamental and should be protected by the state. Such rights include freedom of expression, movement, religious beliefs and association. These are also rights relating to ownership and enforcement of property and the security of the person. Chapter IV of the Constitution of Uganda has a declaration of rights and freedoms of persons. (Please read **Articles 20 to 42** of the constitution).

Constitutional rights and freedoms are however not absolute. Rights and freedoms may be limited in order to protect the rights and freedoms of other persons or public interest (Read Article 43 of the constitution)

Article 44 gives circumstances where rights remain absolute. This Article provides that the rights and freedoms relating to freedom from torture, cruel and degrading punishment, slavery, the right to fair hearing and the right of Habeas corpus cannot be taken away

The constitution also gives the machinery for enforcement of rights and freedoms. The enforcement of rights may be through courts, Uganda Human Rights Commission and other Government Departments like Probation and Police.

Representative Government

The rule of Law can only exist where democracy is in place. The rule of law requires that leaders be elected by the people through democratic processes. This normally involves free and fair elections following universal adult suffrage. Democracy also requires periodic elections and accountability of elected officials.

Article 1 of the Constitution of Uganda provide that the people of Uganda shall determine their leaders and how they are to be governed through free and fair elections or referenda. The relevant laws giving effect to this Article is the Presidential Elections Act, The Parliamentary Elections Act and the Local Governments Act.

Fair Law of Criminal Process

The Rule of law requires that suspects or accused persons be treated in a fair and human manner. A fair criminal process involves observance of the following principles as set out in Article 28 of the Constitution.

- Presumption of innocence. All persons are presumed to be innocent until proved guilty. It is the duty of the state and complainants to adduce evidence which convinces the Court that the accused is guilty
- The right to know the charges
- The right to interpretation in a language which the accused undertakes
- The right to be represented by counsel of one's choice
- The right to a speedy trial
- The right to an impartial trial
- The right to be heard

Sound and effective Principles of Administrative Law

The rule of law requires that there be in place clear rules of procedure to be followed by public officials that public officials should be at all times balance individual interests against the overall responsibility of executing public duties. That individual should have recourse to remedies if they are aggrieved against administrative officials.

Article 42 of the Constitution requires public officials to exercise Justice and fairness. The Article also allows unhindered access to courts of law where persons feel aggrieved about an administrative decision.

Respect for Principles of International Law

The Rule of Law also requires that states be cognisant of the basic principles of International relations may determine domestic stability's and internal treatment of citizens.

Social Justice for All

The Rule of Law requires that there be in place institutional mechanisms that ensure that all persons name meaningful enjoyment of life within their means. This includes freedom to engage in economic activities, availability of social amenities, right to clean and health environment, right to the basic needs of life like shelter,

food education and health. It also includes the right to cultural, intellectual rights etc.

Cases

Read the Ruling of Hon. Lady Justice Lydia Mugambe in the case of Lukwago Elias Lord Mayor vs. The Attorney General and 3 others Misc. Application No. 94 of 2014

Doctrine of Separation of Powers

The Doctrine was formulated by a French Philosopher called Montesquieu. Accordingly to Montesquieu in his book *The Spirit of the Laws* [1748], there must be 3 separate organs of government. There must be the organ that makes law i.e. The Legislature, there must be the organ that executes law i.e. Executive and lastly there must be a body to interpret the law and to mediate disputes over the law i.e. judiciary.

To Montesquieu therefore, separation of powers meant 3 basic things;

- Each organ of the state should be operated by different people i.e. it should not be one individual running all the 3 organs so that at no time should a judge make the law nor should he be involved in an executive function.
- That each of the state organs should be independent of one another i.e. there should be an absence of control, influence or direction by one organ of state over another i.e. there should be autonomous operation. No one organ of state should control activities of the other.
- No one organ of the state should take over the power

The doctrine was exemplified in the case of **Major General David Tinyefuza v AG Constitutional App. No. 1 of 1997. Wherein Kanyeihamba JSC** noted that the principle of non- interference by the judiciary in legislative and executive matters should prevail save for exceptional circumstances involving the deprivation of the liberty of a citizen.

Doctrine of Checks and balances

The 1995 constitution has adopted the doctrine of checks and balances to serve as an exception of separation of power which is to the effect that there is equilibrium between the organs of state which needs cooperation between the organs of state that is in non-antagonistic relationship, as argued in the case of *Rev. Christopher Mtikila*

vs. A.G Case No 5 of 1993 “where the judge stressed that the court came only to interfere in the executive or legislative action in order to protect and promote the rights of individual citizens beyond that courts will not go” thus in the above case it demonstrated that the doctrine of separation of power has been eroded, instead what has developed is the doctrine of checks and balances thus the doctrine of separation of power as to Montesquieu in Uganda has less application instead the doctrine of checks and balance has been adopted.

The 1995 constitution has adopted the doctrine of checks and balances to larger extent as opposed to the doctrine of separation of powers as the three organs of government are inter twined in the composition and duties under the constitution.

- ✓ Read Articles 118, 121, 137, 142, 91, 107 etc.
- ✓ Consider the practice of appointing ministers who are also members of parliament.
- ✓ Subsidiary legislation by ministers
- ✓ Onapito Bill

Ministerial Responsibility

Article 117 of the constitution provides that Ministers are individually responsible to the President and collectively responsible to Parliament in the performance of their functions.

What is individual Responsibility

The individual responsibility of Ministers relate to their function as Political Head of Government Departments. In this respect they are expected to ensure that appropriate policies are formulated, get approval of Cabinet and are enforced by civil servants.

Individual responsibility also requires Ministers behave in a manner that does not bring their public offices to embarrassment. This therefore expects ministers to be morally upright, truthful, professional employing due care and responsibility and avoid fronting private interests against public interest. They are not expected to use their public offices for private transactions and personal gain.

Collective Responsibility

Ministers are collectively responsible for Cabinet decisions. This means that all Ministers are accountable for Cabinet decisions. This calls to Ministers to display the following qualities.

- Frankness in Cabinet deliberations
- Ministerial solidarity
- Defence of cabinet position in Parliament and General Public
- Observance of rules of secrecy.

Censure of Ministers

Art 118 of the Constitution gives Parliament powers to censure Ministers under certain circumstances.

This include

(Read Article)

This Article may be involved where the Minister has failed in his individual responsibility

Fairness and Justice

Article 42 of the Constitution

(Read Article)

Protection of the Public Officers

Art 166 gives the Public Service Commission power to appoint and exercise disciplinary control over public officers.

Article 173 protects public offices from **unwarranted removal** from office, demotion or other punishment without a **justice cause**. In the case of **Charles Rwomushana vs. Attorney General Civil Suit 783 of 2003** court noted that to have the plaintiff cease from enjoying the higher and better and better terms and conditions of an RDC, the post which he was substantively appointed, and subject him now to take lower terms, merely because he is being re-deployed from Pader District to the president's office, is contrary to Article 173 of the Constitution; in that the plaintiff is being victimised, or discriminated against, or reduced in rank or otherwise punished without just cause,

Court further relied on Article 158 of the constitution which provides that, where any salary or allowance of the holder of any office is charged on the consolidated fund, it shall not be altered to his or her disadvantage after he or she has been appointed to that office.

Inspectorate of Government

This is a constitutional office established for the purpose of checking on all aspects relating to abuse of public powers. The Inspectorate has Constitutional Powers to enforce the Leadership Code of Conduct and to investigate and report on allegation of corruption and other forms of abuse of public offices.

Senior Public Officers

The Constitution also established the Senior Public Offices like Attorney General, Director of Public Prosecutions, Permanent Secretaries, and for Inspector General of Police. These officers are given constitutional powers and the constitution and the relevant enabling laws like the police Act, Audit Act etc.

ADMINISTRATIVE AUTHORITIES

Definition

Administrative authorities are public officials, bodies, commissions or institutions which are concerned with:

- a) Implementation of government policies; and/or
- b) Enforcement of duly enacted laws.

Objectives

By the end of this session you should be able to

1. Identify administrative authorities
2. Know the functions of administrative authorities
3. Explain the limits of administrative powers

Public administrative authorities include the following:

- a) President
- b) Ministers
- c) Permanent Secretaries
- d) Public officers employed in the Public Service
- e) Local Government and administrative units
- f) Constitutional Commissions
- g) Constitutional officers
- h) Public Corporations
- i) Administrative Tribunals
- j) Police Force

THE PRESIDENT

Art 98 of the Constitution establishes the office of the President and specifies that the President shall be the

- Head of State
- Head of Government
- Commander in chief of UPDF

Art 99 vests the executive authority in the President. This aspect of the presidential powers is not necessarily a subject of Administrative Law. The executive function extends to the formulation of policies and supervision of the affairs of government.

How the President becomes an administrative authority?

The President becomes an administrative authority when exercising his powers under the constitution, therefore a subject of administrative law when his/her actions involve putting in place or executing a provision of the law or the Constitution. Such execution requires the President to act in a particular way without the option of exercising executive discretions. These include:

Constitution of Cabinet

The President is under a constitutional duty to constitute and appoint persons to Cabinet. In the same way, the President is required to appoint Ministers to be in charge of Government departments. In appointing members to Cabinet, the President is expected to adhere to the constitutional provisions relating to composition of Cabinet. The President must also follow the established procedures of getting the necessary parliamentary approval.

Read Articles 98, 99, 111 – 114 of the Constitution

Appointment of Public Officers

Art 172 (a) of the Constitution gives the President power to appoint certain categories of public officers. These include:

- Permanent Secretaries
- Directors in government departments
- Ambassadors/High Commissioners
- Members of the Public Service Commission, Health Service Commission, Education Service Commission, Judicial Service Commission
- Governor of the Bank of Uganda
- Auditor General
- Inspector General of Police
- Members of the Inspectorate of Government
- Members of the Uganda Human Rights Commission
- Members of the Electoral Commission
- Judges of the Courts of High Court, Court of Appeal and Supreme Court
- The Director of Public Prosecutions

While performing the functions relating to appointments, the President becomes an administrative authority. Hence, he/she is expected to:

- i) Comply with the requirements of qualifications relating to particular appointments.
- ii) Follow the procedures established in the Constitution and other laws relating to such appointments.

As noted in the case of **Hon. Gerald Kafureeka Karuhanga vs. Attorney General Constitutional Petition 0039 of 2013**, where the constitutional court overturned the appoint of Hon. Justice Benjamin Odoki as Chief Justice by the president and held that:

1. That under the 1995 Constitution, a Chief Justice who has vacated office by reason of having attained the mandatory age of retirement is not eligible for re-appointment as Chief Justice of the Republic of Uganda.
2. That the re-appointment of Hon. Justice Benjamin Odoki as Chief Justice of Uganda after vacation of office by virtue of having attained the mandatory age of retirement is inconsistent with and/or in contravention of **Articles 133 (2); 142 (1); 144 (1) (a); 147 (1) (a), 147 (2); 147 (3) and 253** of the Constitution of the Republic of Uganda.
3. That the advice of the Judicial Service Commission is a pre-requisite for the appointment of a Chief Justice and an appointment done without advice from the Judicial Service Commission is inconsistent with and in contravention of **Articles 142 (1); 147 (1) (a), 147 (2); 147 (3)(a) and 253** of the Constitution of the Republic of Uganda.

Emergencies and a State of War

Article 110 of the Constitution gives the President in consultation with Cabinet power to declare a state of emergency in the following situations:

- External aggression of war
- Where natural security or economic life is threatened
- In the interests of public safety

Furthermore, Art 124 gives the President power to declare a state of war with approval of Parliament.

The foregoing powers are administrative in nature because they must be exercised in particular circumstances and following established procedures.

International Relations

The President has powers under Art 122 of the Constitution to make appointments of Ambassadors and Heads of Diplomatic Missions. The President may also under Art 123 make Treaties, Connections, agreements and other arrangements between Uganda and any foreign country or international organization.

These powers are also administrative in nature because the President has to follow the administrative procedures which are contained in the necessary legal instruments including the Constitution and Acts of Parliament and Public Service regulations.

Prerogative of Mercy

Art 124 (a) of the Constitution gives the President power to grant a pardon, respite, reduction of sentence or remission of sentence to persons convicted of crimes. This is done on the advice of the Prerogative Committee of Mercy.

MINISTERS

The functions of Ministers are not specified in the Constitution. The Constitution provides for Cabinet and other Ministers. As Cabinet Ministers, their functions mainly relate to formulation of policies. Art 113 (3) and 114 (4) both specify that the functions of Ministers will depend on presidential directives.

Art 99 (5) allows Ministers to sign statutory instruments on behalf of the President. The Article provides that such instruments shall be valid.

The Ministers are also expected to perform administrative functions in relation to the following:

Appointment of Public Officers

Ministers in charge of government departments are normally given power to make appointments to senior positions in public corporations. These include the members of the Board of Directors, Managing Directors, General Managers and Corporation Secretaries. In doing so, the relevant Minister is expected to adhere to the provisions of the relevant laws and procedures. Ministers are also expected to display transparency and integrity in making such appointments. Nepotism and other

sectarian considerations should not be fronted to the detriment of appointing the best qualified person.

Regulatory Function

These are Acts of Parliament that give the Minister Powers to regulate a particular aspect of public concern. For example, S. 20 of the Workers Compensation Act gives the Minister Powers to regulate insurance aspects relating to workers compensation. Furthermore, under that Act, only insurance companies specified by the Minister may offer insurance services relating to workers compensation.

Minister as a Licensing Authority

Ministers may through Acts of Parliament be given power to issue or cancel licenses relating to a particular sector. For example, S. 68 the Electricity Regulatory Authority Act, the Minister responsible for Energy is given powers to issue and revoke licenses relating to the generation and transmission of electricity.

Minister as a Law Maker

Many Acts of Parliament give Ministers powers to make rules, regulations, orders or guidelines relating to the implementation of a particular law e.g.

The Community Service Act

S. 12 (1) The Minister may make regulations prescribing:

- i) *The duties of the supervising officers;*
- ii) *The composition and function of the District Community Service Officers;*
- iii) *Other matters necessary for the proper implementation of the Act.*
- iv) *Any forms necessary for the purposes of this Act.*

The Local Governments Act

S. 175 of the Local Governments Act gives the Minister power to amend the schedules to the Local Governments Act.

Justification

Ministers are given the powers to make laws because of the following considerations:

1. They have access to technical advice of the relevant department. Art 174 (b) of the Constitution provides that the Permanent Secretary shall advise to the responsible Minister in respect of the business of the Ministry.
2. The requirements of flexibility – Ministers can make regulations, rules, and guidelines which reflect social and economic realities. They can easily adjust to changing circumstances.
3. Ministers are in position to ensure that the policies of government are reflected at the implementation stage.

In the carrying out this function, the Minister is expected to act within the scope of powers given, follow the necessary procedures like approval, acting on advice, consultation and publication.

To do otherwise may expose the Minister to challenges on grounds of procedural or substantive *ultra vires*.

THE PERMANENT SECRETARY

The office Permanent Secretary is created by Art 174 of the Constitution. The Permanent Secretary is the administrative head of government Department of Ministry. Permanent Secretaries are appointed by the President on advice of the Public Service Commission. However, disciplinary action, if any, can only be taken by the Public Service Commission. [Read the public service standing orders para F-S]

The specific constitutional functions of the Permanent Secretary are outlines as:

1. Organization and operation of the department or ministry.
2. Lending advice to the Minister.
3. Implementation of policies of government.
4. Responsibility for proper expenditure.
5. Accountability for public funds in the respective Ministry or Department.

Cases

Uganda vs. John Kashaka Muhanguzi and 5 others **HCT-00-AC-SC 0047-2012**

PUBLIC OFFICERS

Definition

Art 175 of the Constitution defines “Public Officer” to mean any person holding or acting in any office in the Public Service.

The “Public Service” is defined as *‘service in any civil capacity of the government the emoluments for which are payable directly from the consolidated fund or directly out of monies provided by Parliament’*.

This definition covers all persons who are appointed by the Public Service, Judicial Service Commission, Education Service Commission and the Health Service Commission. On the other hand, the commonly used term of civil servants refers to persons who are appointed and deployed in the ministries of government. It therefore excludes Judicial Officers and employees of public corporations.

In a typical government department, public officers referred to all those employees that are subordinates to the Permanent Secretary.

Appointments

The appointments in the Public Service are entrusted to the Service Commissions, for example:

Art 166 (1) (b) of the Constitution provides that the function of the Public Service Commission shall include:

“to appoint, promote and exercise disciplinary control over persons holding office in the Public Service of Uganda’.

Read Art 168 (1) (b), Art 170 (1) (b) and Art 147 (1) of the Constitution.

The Public Service is governed by the Constitution, the Public Service Act, Public Service standing orders and Public Service Regulations.

Appointments in the Public Service must follow Public Service standing orders or regulations. All appointments must be in writing. In the case of **Kayondo Vs Attorney General (1989) KA.LR 37**, Kayondo’s case for unlawful deprivation of office was dismissed because he had not been appointed in writing. He had been appointed by radio announcement as High Commissioner in London by no evidence of appointment in writing was presented to court.

Appointments in the Public Service may be on the following terms:

1. Temporary
2. Probationary
3. Contract
4. Permanent and Pensionable

Terms and Conditions of Service

It is the duty of the Service Commission to determine the terms and conditions of service of public officers. For example, Art 166 of the Constitution provides that the function of the Public Service Commission include:

“to review the terms and conditions of service, standing orders, training and qualification of public officers and matters relating to personal management and development of the Public Service and make recommendation on them to the Government”.

It is therefore a duty of the Service Commissions to recommend to Government on terms and conditions of service. The applicable terms and conditions of service are contained in the standing orders.

The terms and conditions of service relate to:

1. Salary
2. Allowances
3. Conduct
4. Termination of service
5. Vacation of office
6. Entitlement on retirement

The Pensions Act also gives the legal framework for payment of persons who leave service on permanent and pensionable terms.

Security of Tenure

Prior to the enactment of 1995 Constitution, public officers did not guarantee constitutional tenure of office. In the case of **Opolot Vs Attorney General**, the court held that the President had a constitutional prerogative to dismiss any public officer at will and without assigning any reason. In that case, Opolot was dismissed from his position as Army Commander because of the 1966 crisis. The court agreed that under the Constitution, the President had inherited the prerogatives formerly enjoyed by the Queen as a Head of State. This included the common law prerogative to dismiss a public officer at will.

This position however is not tenable under the 1995 Constitution because of the following provisions:

1. Art 28 provides for a fair hearing. It provides that in determination of civil rights and obligations or any criminal charge, a person shall be entitled to a **before fair, speedy and public hearing an independent and impartial court or tribunal established by law.**
2. Art 42 of the Constitution provides that “any person appearing before any administrative official or body has a right to be treated **justly and fairly** and shall have **a right to apply to a court of law** in respect of any administrative decision taken against him or her.
3. Art 166 of the Constitution vest disciplinary powers in the Public Service Commission. There are equivalent provision for the Health, Education and Judicial Service Commission.

4. Art 173 of the Constitution provides that a public officer shall not be:

- Victimized or discriminated against for having performed his/her duties faithfully in accordance with this Constitution; or
- Dismissed or removed from office or reduced in rank or otherwise punished **without a just cause.**

In the case of **Major David Tinyefuza vs. AG**³ JSC kanyeihamba held that the royal prerogative cannot be used to deprive a citizen of his/her vested interest without compensation thus the royal prerogative must be in the interests of the citizens as a whole not individual constitutional procedures must be followed.

The Public Service Act, Standing Orders and Regulations have elaborate provisions that must be followed in all cases which include disciplinary action. The disciplinary processes are expected to include the following salient features:

1. Disciplinary action must be initiated by the appropriate officer. This is usually the Head of Department who determines and documents a case for disciplinary action.
2. Disciplinary action must be in respect of breach of standing orders.
3. Disciplinary action can only be handled by the appropriate officer. This can include supervising officer, head of department, Permanent Secretary and the relevant Service Commission.
4. The public officer must be given notice of the alleged breach and intervention to disciplinary proceedings. In most cases, this is preceded by supervision or interdiction from duty.
5. Principles of Natural Justice apply to all disciplinary proceedings. This includes the right to be heard and the freedom from bias.
6. Punishment can be given in respect of particular breaches of standing order. The usual punishments include; warning, suspension, reduction in rank, withholding a salary increment, termination and dismissal.

Cases

1. Wycliff Kiggundu Kato v Attorney General (1992) 1 KA.L.R page 123

³ Attorney general vs. Major David Tinyefuza Constitutional case No 1 of 2007

2. John Kashaka Muhanguzi v C.C. Songhor . Mbale HCCS No 94/1999

Government Policies

A public officer may also be removed from service without recourse to disciplinary proceedings as provided in the regulations and the employment Act Section 69. Art 165 of the Constitution provides that in performance of its functions, the Public Service Commission shall be independent (See also Art 147 (2), Art 168 (2), and Art 170 (2)).

These Articles however require the Service Commissioners to take into account government policies relating to the relevant sector under its regulation. These government policies that have affected recruitment, wage levels and retention of public officers in the Public Service.

CONSTITUTIONAL COMMISSIONS

These are commissions that are established under the Constitution to attend to matters relating to a particular operations of government. The constitutional commissions include:

1. Public Service Commission
2. Education Service Commission
3. Judicial Service Commission
4. Uganda Land Commission
5. Uganda Human Rights Commission
6. Electoral Commission
7. Health service commission

The members of these commissions are appointed by the President with approval of Parliament.

The Commissioners perform such functions that are specified in the Constitution and the relevant Acts of Parliament. For example, the Electoral Commission functions under Art 61 of the Constitution which include organizing election in accordance

with the law, demarcation of constituencies, compiling voters register, declaration of results, hearing complaints before and during elections and voter education.

Constitutional Commissioners are appointed by the President and members must be persons of high moral character and proven integrity.

Constitutional Commissioners are functionally independent from the Executive, Parliament or any other authority. The standard provision provides that:

“subject to the provisions of this Constitution, the Commission shall be independent and shall, in the performance of its functions, not be subject to the direction and control of any person or authority”.

Read Articles 62, Art 147 (2), Art 165.

Duties of Constitutional Commissions

Constitutional Commissions have a legal obligation to carry out their duties:

Act Within Powers Granted

The law usually the Constitution and the enabling Act of Parliament. For example, the Electoral Commission is under a duty to implement the provisions of the Constitution, the Electoral Commissions Act, Parliamentary Elections Act, Presidential Elections Act and the Local Governments Act.

Follow established procedures.

The Constitution, Acts of Parliament and other relevant subsidiary laws normally give procedures to be followed in carrying out.

For example in the **Election Laws**, there are procedural matters relating to:

- Registration of voters
- Nomination of candidates
- Voting procedures
- Publication of results

A breach of some of these procedural requirements may lead to nullification of results.

Exercise discretions judiciously

Constitutional Commissions are usually given discretionary powers. For example, the Art 53 (2) in the Constitution provides that:

“The Commission may, if satisfied that there has been an infringement of a human right or freedom order;

- *Release of detained or restricted person;*
- *Payment of compensation;*
- *Any other legal remedy or redress”*

The Commission can only reach a prudent judgment if it takes into account the requirements of the law, aim at achieving the objectives of the law, considering relevant facts and exercising powers directly unless delegation is authorized. Failure to do exposes the Commission to possibility of legal sanctions.

Principles of Natural Justice

Constitutional Commissions make decisions that have fundamental effect on people's rights and freedoms. It is important that such decisions are reached after a full inquiry and after taking into account Principles of Natural Justice. These include the right to be heard and absence or possibility of bias.

CONSTITUTIONAL OFFICES

Constitutional offices are those offices that are established by the Constitution. Their functions are also established by the Constitution and the enabling Act of Parliament. These include:

1. Auditor General, Clerk to Parliament, Chief Justice, Inspector General of Police, Commissioner of Prisons, Director of Public Prosecution, Attorney General
2. Constitutional offices operate under enabling laws like National Audit Act, Judicature Act, Police Act, Trial on indictments Act etc. The relevant Acts will set out functions, powers, procedures and other operational matters.

NB: A lot of reference should be made to the aforementioned Acts.

PUBLIC CORPORATIONS

Public Corporations are statutory bodies i.e. established by an Act of Parliament. These are established by Parliament in order to regulate or render services in a particular sector. Public Corporations are administrative authorities because they implement government policies outside the mainstream government departments.

The Act of Parliament establishing a public corporation has the following provision relating to the corporation.

1. Objectives of the Corporation – Objectives give the scope of the corporation's activities. These are the things it is authorized to do. A corporation is expected to confine its activities to those stated areas. It will be acting *ultra vires* if it exceeds the scope of its powers.
2. Powers of the Corporation – Powers are given to public corporations in order to enable them to carry out the stated objectives. Powers normally:
 - Include raising funds for purposes of the objects of the Corporation.
 - Entering into contracts and other transactions in furtherance of objectives of the Corporation.
 - Charge for its services.
 - Licence and regulate activities that tally with the scope of the Corporation.
3. Policy making organ e.g. Board of Directors, Governing Council, Board of Governors, Committee, etc.
4. Corporate Personality i.e. that the public corporation shall have power to sue or be sued in its own and shall have power to own property in its own name. Corporations have perpetual succession in that they continue to existence irrespective of the personalities involved in management.

Reasons For Creation of Public Corporations

Public Corporations are established for a variety of reasons. Each public corporation has a dominant purpose for which it was formed. Some of the reasons for establishing public corporations are the following:

- i) **Regulatory purposes** – To regulate a particular social or economic sector on behalf of government. The regulation may include registration, inspection, licencing and maintenance of standards.
- ii) **Strategic purposes** – To give a service which is of strategic importance to the economy or security of the country. Such services cannot easily be left to the private sector.
- iii) **Provision of essential services** – To provide an essential service. Such essential services cannot be left to the private sector because they may be too expensive. They normally meet a government subsidy, external infusion of funds and regulation of tariffs and prices.
- iv) **To carry out commercial activities** – Such public corporations may be started as engines of development. They are also expected to make profits and give dividends to the Treasury.

Control over Public Corporations

Public Corporations are legal entities. They are subjects of Administrative Law and they are therefore controlled in order not to abuse the public powers entrusted to them. They usually control and include the following:

1. Ministerial appointment of policy making body and top management.
2. Ministerial approval of budgets.
3. Ministerial supervision to ensure compliance with government policies.
4. Audits by Auditor General.
5. The Doctrine of *ultra vires*.
6. Parliamentary control through its sector committees.
7. Abuse of discretionary powers.
8. Jurisdiction of Inspector General of Government.
9. As legal entities, they can be subjected to legal proceedings.

Cases

1. Mukama Vs Uganda Wildlife Authority

2. Kabugo Vs Uganda Electricity Board

ADMINISTRATIVE TRIBUNALS

Administrative Tribunals are judicial or quasi judicial statutory bodies. Tribunals are established for two main reasons:

1. To regulate and ensure good administration of government policies and legislation.
2. To resolve disputes between public authorities and individuals that may arise in the course of implementation of policies or enforcement of laws.
3. To resolve disputes arising between individuals in the course of implementation of policies and laws.

Why Tribunals?

The ordinary courts of law are established to resolve disputes and to administer justice in accordance with the Constitution. However, Parliament enacts laws that put in place tribunals to carry out functions that are normally carried out in ordinary courts. This is justified on the following grounds:

1. Tribunals have the advantage over courts because they can use experts (over the lawyers) in the resolution of disputes. Some disputes require knowledge beyond the law. For example, valuation courts are better placed to handle valuation disputes instead of lawyers who are not trained in valuation matters. Under the Medical and Dental Practitioners Act, the Uganda Medical Council tries doctors who act unprofessionally.
2. Tribunals are cheaper than ordinary courts. Parties may present cases without necessarily resorting to legal representation.
3. Tribunals are faster in disputing justice. This is because they deal with a few cases.
4. Tribunals may also adopt procedures that are less formal. Courts insist on procedures and cases may be won or lost on a Technically. Tribunals aim at subsistence other than procedural rules.

5. Tribunals are also normally not bound by Doctrine of Precedent. Tribunals are free to develop new rules. They are therefore more flexible in the course of administration of justice.

Characteristics of Tribunals

Creatures of Acts of Parliament

Tribunals are creatures of Acts of Parliament. Here below are the examples.

- | | |
|----------------------------------|---|
| 1. Land Act | Land Tribunals |
| 2. Uganda Communications Act | Communication Tribunal |
| 3. The Tax Appeals Tribunal Act | Tax Appeals Tribunal |
| 4. Advocate Act | Disciplinary Committee of the Law Council |
| 5. Labour Disputes Act | Industrial Court |
| 6. Local Government (Rating) Act | Valuation Courts |
| 7. The police Act | The police disciplinary committee |
| 8. Income Tax Act | The Tax Appeals Tribunal |

Have Various Names

Tribunals may be known by various laws. These may be called courts, committees, councils.

Membership

Tribunals are usually composed of persons who reflect the following characteristics:

1. Representation of persons with expertise in a particular field. eg The Valuation Courts are composed of persons with qualifications in matters relating to land e.g. lawyers, valuers and surveyors.
2. Representation of interest groups. The key stakeholders are usually represented on tribunals e.g. the Industrial Court has representation of workers and employers.

3. Disciplinary Committees of professional bodies are composed of members of that profession e.g. architects, doctors or lawyers.
4. Professional legal qualifications are required of the person to be Chairperson especially where the tribunal is interdisciplinary e.g. Industrial Court or Tax Appeals Tribunal.
5. The Secretary to the Tribunal is always a public officer. Proceedings of tribunals and other records are kept by the Secretary.

Appointments

The relevant Acts of Parliament give the mode of appointment. In most Acts of Parliament, the Minister appoints members of Tribunals under his Ministry. Appointments are for a specified period of time. Membership is therefore not permanent.

Procedures

There is need tribunals, unlike courts, should be as informal as possible in their procedures, it has been cautioned though that informality should not be at the expense of an orderly procedure. According to Foulkes, the object should be the combination of a formal procedure with an informal atmosphere, the latter meaning a sympathetic attitude on the part of tribunal and the absence of the trappings of court

There are no uniform procedures for all tribunals. Procedures are usually contained in the relevant regulations. For example, under the Tax Appeals Tribunal Act, the Minister issued regulations to be followed by the Tribunal. A few procedural aspects may also be contained in the relevant statutes. In absence of statutory procedures in the Act and regulations, the tribunal may be left with room to enact its own procedures. However, the standard regulation of any tribunal will include the following:

1. Requirements as to notice – This will include length on notice about proceedings and mode of service.
2. The right to be heard

3. Right to cross examination
4. Public hearings
5. Legal representation
6. Statement of reasons

This is in addition to the processes of decision-making and procedures of appeal and/or review. Depending on the provisions of the parent statute the rules could also prescribe the constitution and quorum of the tribunal, any decision taken by a tribunal that is not properly constituted as per the rules will be null and void. In *Equator Inn v Tomasyan* it was held that the decision of the tribunal was a nullity because the tribunal had not been constituted properly. A decision had been made in the absence of the chairman, yet the regulations required quorum to be at least two, including the chairman.

Powers, Privileges and Immunities

Tribunals have powers that are enjoyed by ordinary courts which include:

1. Power to summon witness
2. Power to examine witness
3. Power to order production of documents in accordance with the relevant laws
4. Power to initiate contempt of court proceedings against any person

The proceedings before tribunals are privileged. They cannot form a basis of court action. In **Suleiman Vs Sayani**, the court held that an advocate cannot be sued in respect of words uttered in proceedings before a tribunal. Similarly, members of the tribunal do not have personal responsibility for the decisions or words uttered during the proceedings.

Decisions

Like is with the courts the general rule is that tribunals may decide by a majority of its members. Additionally, like is with the courts, tribunals are bound by the common law principle of *functus officio*, meaning that once a decision has been reached it cannot not be revisited save in accordance with the procedures that allow

for either review or appeal. It should also be noted that decisions of tribunals, like those of courts, should be reasoned. This enables the parties to understand the basis upon which the tribunal has reached its decision and a hallmark of justice. The parties are able to appreciate all the factors that the tribunal has considered in reaching its decision. It should be noted, however, that in England a tribunal is only obliged to furnish the reasons for its decision upon request. There is no similar provision in Uganda; this though should not be interpreted as vitiating the obligation on the tribunals in Uganda to furnish reasons.

Appeals

Tribunals are not final adjudication bodies. Their decisions may be a subject of appeal. Appeals may be instituted in accordance with the relevant Act of Parliament. Appeals are usually instituted in the High Court or in the relevant Appellant Tribunal e.g.

1. Appeals from decisions of Disciplinary Committee of Law Council may be heard by the High Court.
2. Appeals for decisions of Court Marshall may be heard by the Court Marshall Appeal Court, then to the Court of appeal. [Read the case of *Joseph Tumushabe v Attorney General Constitutional Appeal No. 3 Of 2005 & Uganda law society v Attorney General*]
3. Appeals may be instituted on matters relating to interpretation of the law or on matters of evaluating evidence.

THE UGANDA POLICE FORCE

Objectives

1. To understand the constitutional frame work of the Uganda police force.
2. To understand the administrative structures of the Uganda police force.
3. Discipline procedures and code of conduct
4. Police powers in regulation of public assemblies and processions.
5. Understanding community policing.

The Constitutional Frame Work

Establishment

The Uganda police force is established in the 1995 Constitution of Uganda [Article 211 (1) of the 1995 Constitution of Uganda] with the mandate to preserve law and order, protect life and property, prevent and detect crime. [Article 212 of the constitution]. The Police Act also establishes a force to be known as the Uganda Police Force. [Section 2 of the police Act]

Functions of the police.

Police roles, functions and duties in the community are varied and multifarious. There are two intertwined roles the police are expected to play in society that is maintenance of law and order. These are however ramified the numerous duties, functions, powers, roles and responsibilities of the police force.

The generalized functions of the police are;

Crime Management

The Police Act places crime prevention within the ambit of Police Force.⁴ Although there isn't an official crime prevention policy, the departments within the Police have a bearing on crime prevention. The Uganda Police Standing Orders divides the prevention of crime role of police into three parts;

⁴ Section 4 of the Police Act cap 303.

1. Direct Police Action in which method police officers may use patrols and beats whether on foot, bicycle or a motor vehicle. This method prevents crime through the actual presence of police officers at different places intended to enable the public to report or ask for assistance needed.
2. Indirect Police Action is used by police officers by educating the public through lectures and films, use of press, television and radio on how they can prevent crime in their communities.
3. Action by the Public is another strategy police officers employ to help prevent crime. This is done through encouraging the public to take certain measures such as securing the safety of their property or even informing neighbors when leaving one's premises.

Crime prevention is a responsibility entrusted to the uniform branch of police and police officers are urged not to leave it to the Criminal Investigation Department of Police whose primary function is to investigate crimes which have been committed.⁵

Public Order and Safety

Policing requires the police to maintain law and order. Police officers are expected to prevent crime and proactively maintain public safety and social peace. Public order is maintained through traffic control, crowd control, ensuring peaceful processions and demonstrations.

This role is also reflected in the international framework for policing, the UN Basic Principles on the Use of Force and Firearms by Law Enforcement Officials which perceives the role of police as encompassing the administration of justice, the protection of the right to life, liberty and security, as well as the maintenance of public safety and social peace.

Traffic Management

The police force is also responsible for the maintenance of smooth and safe flow of traffic by efficient regulation and enforcement of traffic laws to ensure prevention of accidents. Police are charged with the responsibility of ensuring that efficient road

⁵ Uganda Police Standing Orders, 7th Edition, Volume 1, chapter 13, paragraph 5(b).

traffic management is realized by all stakeholders through enforcing the Traffic laws and making certain that perpetrators of traffic offences are penalized accordingly.

Police officers are involved in manning fixed traffic points, checking and controlling rash, dangerous and drunken driving, prompt arrival at the scenes of road accidents, mobile patrol to regulate traffic and setting up barricades to check vehicles as a way of managing traffic.

Community Assistance.

The police have an important role in assisting the community to prevent crime and disorder from society. The relevance of the police to a community is hinged its primary function of assisting the community by maintaining law and order.

The police plays an important role in the administration of justice with involves arrests, crime investigation, recording of statements relevant in the administration of justice process which is for the good of the public.

Intelligence

Police functions of detecting and preventing crime in society as well as maintain security within the country equips police officers to do intelligence work to achieve those goals. The police force plays an important role of collecting intelligence relating to matters affecting public peace and all kind of crimes including social offences, communication, terrorism and other matters relating to national security.

Intelligence is the responsibility of the Criminal Investigations Directorate of the police which handles investigations into the commission of crimes as well as assembling evidence in that regard.⁶ This directorate is also responsible for crime detection through obtaining information about criminals of various crimes.

The functions of the police that are particularized In Constitution **Article 212** and the police Act as to:

1. Protect the life, property, and other rights of the individual;
2. Maintain security within Uganda
3. Enforce the laws of Uganda;

⁶ The Police Standing Orders ,chapter23, paragraph 7(2)

4. Ensure public safety and order
5. Prevent and detect crime in society;
6. Perform the services of a military force when empowered to do so by the Police authority
7. Perform any other functions assigned to it under the Act.⁷

General Considerations In Using Police Powers

Human Rights Considerations

Human rights by nature are inherently universal and therefore are to be enjoyed by all people.⁸ The Uganda police force as an agency of government should endeavour to respect, uphold and promote human rights and freedoms of individuals and groups enshrined in chapter four of the 1995 Constitution of Uganda. **[Article 20 of the constitution]**

In this sense, respect for human rights by police is, in addition to being a moral, legal and ethical imperative, also a practical requirement for law enforcement. When the police are seen to respect, uphold and defend human rights benefits accrue to the entire police force for instance;

1. Public confidence is built and community cooperation fostered
2. Legal prosecutions are successful in court
3. Police are seen as part of the community, performing a valuable social function
4. The fair administration of justice is served, and, consequently, confidence in the system
5. An example is set for respect for the law by others in the society
6. Police are able to be closer to the community, and, therefore, in a position to prevent and solve crimes through proactive policing
7. Support is elicited from the media, from the international community, and from higher authorities

⁷ Section 4(1) of the Police Act .

⁸ Article 20(1) and article 21(1) of the 1995 Constitution of Uganda.

8. A contribution is made to the peaceful resolution of conflicts and complaints in society.

During the law enforcement process, police officers more often than not interface with situations that might cause particular human rights or groups to be of individuals to be violated. Some of these key human rights that police officers should be keen to uphold are discussed below.

The right to a fair hearing should not be compromised by police actions [**Article 28 of the constitution**]

The principle of legality [**Article 28 (12) of the constitution**] should be borne in the mind of a police officer to secure protection of the citizens, their freedoms and rights from excessive or unlawful repression by the state bodies and furthermore secure the strict implementation of rules that protect freedoms and human rights. This is especially so when it comes to the charging process.

A police officer should ensure that the offence for which a person is being charged is defined and the penalty for it is prescribed by law. For a police officer to charge someone with an offence that is not defined would amount to violation of that person's right to fair trial guaranteed by the Constitution of Uganda.

The right to privacy [**Article 27 of the constitution**] should also be adhered to by a police officer when discharging his/her duties. This should be done by avoiding unlawful search of a person, home or other property of a person, unlawful entry on a person's premises or interference of a person's correspondence and communication.

A police officer who is below the rank of a sergeant while conducting a search should ensure that he/ she has been authorised to do so as evidenced by a search warrant⁹.

The protection of human dignity and protection from inhuman treatment [**Article 24 of the constitution**] should be maintained by a police officer. A police officer discharging his duties should avoid undermining human dignity as may be manifested in brutalisation, excessive use of force, custodial violence, psychological and mental torture.

⁹ Section 27 of the police Act cap 303.

The right to personal liberty [Article 23 of the constitution] should be not be violated by police officers in the enforcement of law and order. Police officers conducting arrests should ensure that the circumstances are justified for deprivation of liberty in accordance with the 1995 Constitution of Uganda. **[Article 23 (1) (a-h).**

The freedom of expression, assembly and association **[Article 29 of the constitution]** should be respected by police officers. Freedom of opinion and expression is essential for the political processes in the same way that freedom of thought is. The liberty to express oneself freely is a significant instrument of freedom of conscience and self-fulfillment. It enables people to contribute to debates about social and moral values.

Respect for human rights of individuals or a group interfacing with the police is so important that failure to do so might lead to serious consequences to the individual police officer and the government in vicarious liability.

In Uganda vs Robert Sekabira and 10 others High Court Criminal Session Case No. 0085 of 2010, the eleven accused persons were charged with the offence of terrorism contrary to section 7(1)(b) and 7(2)(c) of the Anti-Terrorism Act 2002. At the close of the prosecution case, the defence counsel raised three points that intended to dispose of the case before the “no case to answer submission” stage. The three points were concerned with the violation of fundamental human rights of the accused. It was submitted that the state had violate article 23(4) of the 1995 Constitution of Uganda since the accused were arrested and detained in the dock between 10th and 23rd of September, 2009 eleven days beyond the constitutional 48 hours. It was also argued that the unlawful detention and investigation were tainted with gross violations of the right to a fair hearing that is non derogable under article 44of the Constitution. Counsel for the accused submitted that the above mentioned violations rendered the prosecution a nullity and entitled the accused to compensation under article 23(7).Reference was made to the constitutional court decision in **Dr. Kiiza Besigye & Others vs the Attorney General Constitutional court petition No. 07 of 2007** . In which the court stated that court cannot sanction any continued prosecution of the petitioners where during the proceedings, human rights of the petitioners had been violated. Court acquitted and set free the accused on grounds that the numerous instances of blatant illegalities and violations of the law, the prosecution of the case could not stand because it would give rise to a miscarriage of justice.

In *Hafasha James vs D/SP John Bwango Uganda Human Rights Commission Complaint No. UHRC 335/1998* the complainant alleged that the police had violated his right to personal liberty contrary to article 23 and also subjected to torture, cruel and inhuman treatment also as a result of his arrest and detention by police which occurred on 9th of November, 1996. The facts showed that he had been arrested in relation to possession of Uganda National Examination Board past papers. The police claimed that they suspected the papers were leaked examination papers which were about to be done that year. The police officers were shown proof that the complainant had bought papers by a receipt from the Uganda National Examination Board but they were dissatisfied and proceeded to lock him up till 11th of November, 1996 when they received information from Uganda National Examination Board that the papers had been bought from there. The human rights commission considered the Constitutional safeguards on the right to liberty in article 23 and the prohibition of torture under article 24 of the constitution as well as the international covenant on civil political rights and concluded that the complainant's right to liberty had been violated. The commission then awarded compensation to the complainant in accordance with article 53(2)(b) of the 1995 Constitution of Uganda.

Professionalism

The other important attitude for the police is the question of its efficiency or professionalism. The entire Uganda Police Force should avoid a picture that paints the police as an instrument of physical coercion and power element based solely on force, but on the contrary as a segment of society and a necessary institution of social control, as a middle point that reflects society. It should be known that police professional ethics hold an important place in their overall effectiveness.

If the police are efficient, honest, and impartial and conduct themselves as servants of the public, they gain public regard and can confidently rely on the assistance from the general public. The police should show a level of professionalism of ethical and legal policing based on respect and obedience of the law, respect for the dignity of human beings as well as respect for and protection of human rights.

The police are also expected to exercise objectivity in the enforcement of their duties. Police officers should always act and be seen to act with unquestionable fairness towards all groups, and with clear respect for cultural and other differences. Due to the police role in society, they ought to accept the fact that they need to act as a 'role-model' for all public agencies in promoting fundamental rights. This therefore calls

onto police officers to avoid scandalous acts and allegations of corruption which undermine public confidence in the force as a whole.

Children Rights

In all societies children commit crimes and there are necessary steps to ensure that the due process of law is followed and their rights are upheld. Police attitude towards children is imperative as they are usually their first point of contact with the law.¹⁰ Children are supposed to be treated differently from adults by police officers.

Where a child above the age of 12 years commits the offence and is brought to the Police, the Secretary for Children of the Local Council (LC) and the parent or guardian shall be informed. [Sec 89 of the children's Act] The parent or guardian must be present at the time of interviewing the child. Where the parent or guardian cannot be found, the Police shall contact the Probation and social welfare officer or the Secretary for Children and asks either both or one of them to be present at the interview. [Sec 85 (5) of the Children's Act]

In case a Police officer is satisfied that the offence committed by a child is not serious, he/she has the powers to caution and release the child. Since the Children's Act does not provide a list of offences considered 'not serious', this is delegated to the Inspector General of Police. A police officer must use his discretion if no definition is forthcoming. Such offences should only be petty in nature towards life and property.

When a child commits a serious offence but for a variety of reasons cannot be taken to the Family and Children's Court immediately, the Police may release the child on police bond or release the child to a parent or guardian on their promise of the child's return.

¹⁰ Role of the police under diversion: an assessment, successes and failures by Asan Kasingye commissioner of police/community affairs.

Administrative Structures Of The Uganda Police

Command of the police

The Constitution is to effect that Uganda Police shall be under the command of the Inspector General of Police assisted by the deputy inspector General of Police. **[Article 213 of the 1995 constitution]**

The police Act also provides for the force command by reiterating the provisions of the constitution. The inspector general of police is given powers to make standing orders **[Sec 6 of the police Act]**. The police standing orders regulate internal mechanisms and guide police officers on general matters of administration, discipline and procedure.

Internal structure

The departments of the Uganda Police Force are;

1. Legal Department
2. Traffic
3. Communication
4. Training and Planning
5. Marine
6. Mobile Police Patrol Unit (VIP guarding and escorting and Public Order Policing)
 - (i) Dog Section
 - (ii) Fire Arms
 - (iii) Child and Family Protection Unit
 - (iv) Police Anti-Terrorism Unit
 - (v) Local Administration Police;

7. And sundry departments such as the police band, stores, public relations and the sport department.¹¹

The internal structure of the Police includes directorates. The Uganda Police currently has ten directorates;

1. Directorate of Police Administration
2. Directorate of Criminal Investigations
3. Directorate of Operations
4. Directorate of Logistics and engineering
5. Directorate of Human Resource Development and management
6. Directorate of Information and Communications technology
7. Directorate of Research, Planning and Development
8. Directorate of Political Commissariat
9. Directorate of Interpol and Peace Support Operations.

The office of the inspector General of Police handles the functional areas of;¹²

1. The department of legal services
2. Department of Professional Standards
3. Department of finance and office support services
4. Government Security Unit
5. Public Relations and Police spokesperson

The directorate of Administration is headed by a director and its main role is to improve on the general administration and management of the Uganda Police force. This department has the following departments;¹³

¹¹ The police, the people, the politics police accountability in Uganda, a 2006 publication by the Commonwealth Human Rights Initiative pg 22.

¹² Appendix A1 to the Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009.

¹³ Appendix iii to the Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009.

1. Department of barracks administration
2. Department of health services
3. Protocol, Honors and Ceremonies Unit.
4. Police Sports and Games Unit

The directorate of criminal investigation is headed by a directive director of Police who is assisted by two deputy directors in charge of two divisions. The directorate ensures effective investigations, detection and prevention of crime. The directorate is arranged in the following way;

1. Investigations division has the following departments;

- (i) Department of Anti- corruption
- (ii) Department of Economic Crimes
- (iii) Department of media crimes
- (iv) Department of Electoral and political crime
- (v) Department of Anti- Narcotics
- (vi) Department of Homicide Crimes
- (vii) Department of General Crimes

2. Crime Intelligence Division with the following departments;

- (i) Department of collation
- (ii) Department of analysis and dissemination
- (iii) Department of data collection

3. Department of forensic laboratory services
4. Department of CID administration
5. Rapid Response Unit

The Directorate of counter terrorism is headed by a detective of police with a major role to counter terrorism by handling threat assessment, protection of targets, neutralization and counter terrorism contingency planning. The directorate consists of;

1. Department of technical services
2. Department of tactical response

The directorate of operations is headed by a director who is assisted by three commissioners of police. The directorate is responsible for the planning, implementation, and coordination of all operational activities in the Uganda police force.¹⁴ It is this directorate that oversees the following departments;

1. Department of traffic and road safety
2. Department of private security and firearms
3. Department of operational planning and coordination

The directorate of research, planning and development is headed by the director of police and its role is to develop and coordinate strategic plans, policy formulation and carry out police reviews. This directorate consists of;

1. Department of strategic planning
2. Department of research and development
3. Department of police review

The Directorate of political commissariat is headed by a director of police above the rank of assistant inspector of police with the role of building a patriotic, nationalist and pro- people police force. The directorate consists of the following departments;

1. Department of political education
2. Department of community policing
3. Department of information and publications
4. Department of music, dance and drama
5. Department of welfare and production
6. Department of child and family protection

The directorate of information and communication technology is charged with the responsibility to plan, develop and advise the Uganda police on the implementation

¹⁴ Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009, page x.

of ICT policies in accordance with the National ICT plan and other international standards. The department consists of the following departments;¹⁵

1. Department of information technology and information management
2. Department of communications
3. Department of electronic counter measures
4. Department of closed circuit television
6. Department of ICT maintenance.

The directorate of human resource development and management is headed by a director and it is charged with the role of putting in place appropriate human resource policies that enhance the performance of the Uganda police force. This directorate consists of two departments;

1. Department of human resource development
2. Department of human resource management¹⁶

It is this directorate that initiates and develops human resource development and management policies and regulations that enhance the performance of the police force, ensures recruitment of personnel into the force, compiles and submits documents required for pensions authority and the ministry of public service for appropriate action.

The directorate of logistics and engineering develops plans, policies, strategies and guidelines for logistics and engineering support services for the police force. It consists of the departments of logistics and engineering.

The directorate of Interpol and peace support operations is headed by a director who is assisted by a deputy director. Its role is to ensure international and regional cooperation in the fight of trans-national and trans-border crimes and promote peace regionally and internationally. It is composed of two departments;

1. Department of Interpol

¹⁵ Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009, Pg. 85.

¹⁶ Appendix VII to the Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009

2. Department of peace support operations¹⁷

This directorate develops and manages systems and policies for effective management of Interpol and peace support activities, regional framework to foster bilateral, regional and international cooperation with countries and organizations. It is also responsible for liaison with other law enforcement agencies in combating trans-national operations and investigations.

The Uganda Police force has specialized and field units which report directly to the inspector general of police. They were established to ensure efficient and effective functional command and control of the force. These units undertake operations at the regions, districts, special operations and lower police levels. They are serviced and supported by the directorates, departments and units as required.¹⁸ The specialized and field units consist of the following;

- (i) Kampala metropolitan police
- (ii) Other territorial police (regional, district and division)
- (iii) Mobile police patrol department
- (iv) Very important people and vital installation
- (v) Anti-stock theft unit
- (vi) Police fire brigade
- (vii) Police dog operations unit
- (viii) Aviation police unit
- (ix) Police railway unit
- (x) Marine police unit
- (xi) Police air wing unit
- (xii) Oil fields unit
- (xiii) Tourism police unit

¹⁷ Appendix IX to the Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009

¹⁸ Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009.pg, 109.

Regional command units are very important for the coordination of all operations at the regions, districts and the lower police levels. They initiate and implement appropriate strategies for purposes of guiding police work in the regions as well as promote community policing and community assistance to police through mobilization and sensitizations of people against crime.¹⁹

The internal command of the Uganda police force flows right from the inspector General, to the deputy inspector general of police, commissioners and then to the senior Assistant commissioners of police, Principal officers, superintendent of police, assistant superintendent of police, police sergeant, police corpol and police constables that are charged with different roles cutting across the entire police framework such as administration, support services and the different police units.

Discipline And Code Of Conduct

Rights of the police officers

In case of disciplinary or penal proceedings taken against him, a police officer has the right to be heard and to be defended by a lawyer. The decision shall be taken within a reasonable time and He or she shall also be able to seek the assistance of a professional organization to which he or she belongs like any other citizen in light of the provisions of the 1995 Constitution of Uganda. [**Article 28 of the Constitution**]

A police officer against whom a disciplinary measure has been taken or penal sanction imposed shall have the right of appeal to an independent and impartial body or court as guaranteed by the 1995 Constitution [**Article 42 of the constitution**]. The rights of a police officer before any courts or tribunals are the same as those of any other citizen in case of criminal proceedings.

Supervision and control over police

In order to make the control of the police as efficient as possible, the police ought to be made accountable to various independent bodies. A complaint handling mechanism is important to ensure the effective control of the police as well as enhancing their accountability which eventually results in building of public trust in the police force.

¹⁹ Report on the Approved Structure for Uganda Police Force by the management services department of the ministry of Public Services, 2009.pg, 110-111.

Police accountability operates at different levels namely; State control exercised by the three arms of government namely the Executive, Legislature and Judiciary and secondly through Independent external control from civil society organizations and government agencies such as the Uganda Human Rights Commission and the Inspector General of Government. Thirdly the Police internal control is exercised through disciplinary measures and other administrative means. At all the levels, accountability and transparency should be held in high regard.

Internal controls

Direct control is carried out by immediate senior officers and administrators through different forms of supervision of the work of each police officer most commonly through an inspection in official documents and immediate inspection and control of the working place of the police officer. Other measures of concrete responsibility which are professional and disciplinary in nature are pronounced through an impartially determined procedure, which determines all objective and subjective circumstances of a matter in issue.

Police Committees

Police committees are established under the police Act [Sec 12]. They are to be established in each district for purposes of advising the police council on appointments, promotions and other personal matters. Through their advice to the police council they are able to ensure proper appointments and promotions and as such act as a check on police officers.

Police Council

Police Council is established under **section 11 of the Police Act**. This council exercises disciplinary control over all police officers through the police courts.

Police Authority

Police authority is established under **section 8 of the police Act** with powers to hear and determine appeals from the decisions of the police council.

The police authority is also given powers to dismiss a police officer of or above the rank of assistant superintendent of police [Sec 47 of the police Act].

Disciplinary Procedure

The disciplinary processes are executed by the police disciplinary courts which are constituted at the Police headquarters, regional headquarters, district or division headquarters, police station and police post or detachment. These disciplinary courts are categorized into subordinate police courts, regional police courts and police appeals courts. **[Sec 49 of the police Act]**

The subordinate police courts are instituted at each police unit whenever a disciplinary offence is committed and their composition includes;

1. A presiding chairperson who shall not be below the rank of assistant inspector
2. Two other officers above the rank of the defaulter
3. An independent prosecutor who may be an officer of the criminal investigations department.

The regional police courts are established at each regional headquarters and extra regional headquarters with both original and appellate jurisdiction to try and determine all disciplinary cases. **[Sec 52 of the police Act]** The regional police courts are composed of;

4. A presiding chairperson who shall not be below the rank of assistant superintendent
5. Two or four other officers not below the rank of corporal
6. An independent prosecutor who may be an officer of the criminal investigations department **[read section 52 (2) (a-c) of the police Act]**.

The court is competent to award punishment in accordance with the Schedule to the Police Act but where it does not have jurisdiction to award a punishment, the court convicts the defaulter and submits a record of the proceedings to the Inspector General of Police, who may present the proceedings to the police council appeals court with recommendations, for awarding punishment.

Where the punishment awarded involves dismissal of a senior police officer, the record shall be submitted to the police authority.²⁰

²⁰ Ibid sec 52(6).

The police appeals court is the highest appellate court [section 51 of the police Act] in the Uganda Police Force consisting of

- a) A presiding chairperson who shall not be below the rank of assistant commissioner of police
- b) Two other senior police officers
- c) A police legal officer
- d) One other member appointed by the chairperson of the police council

It shall be constituted at any place within Uganda whenever an appeal is properly lodged. An appeal to this court can properly be lodged on grounds of

- a) Erroneous findings
- b) Illegality of sentence
- c) Any miscarriage of justice
- d) A point of law
- e) Severity of punishment

The police Act give the disciplinary court power to hear and determine any disciplinary matter involving a person subject to the code as well as to award any punishment authorised by the act. [Sec 49 of the Police Act]

Complaints desk

Any person who has a complaint to make either against a member of the police force or any other sort of complaint may opt to go to the nearest police post/station. At the police station/post, a complainant will be advised by a person in charge of the police post/station on how to register a complaint. Police stations have a public complaints desk that handles complaints against members of the police force.

The complaint will be reviewed by the officer in charge of the police station. When the officer deems the complaint to be of a serious nature, the complaint will be investigated. If the complaint is considered relatively minor for instance an allegations that a police officer was rude to a complainant, an official investigation may not be pursued and instead an apology or explanation may be offered.

External Controls of the Police Force

The Judiciary.

The police are not immune from criminal liability if they commit criminal acts. The courts therefore through civil and criminal proceedings initiated by state bodies or the public provide solid control over police officers.

The police officers as employees of government make the attorney general vicarious liability in cases of civil liability where the individual officer's liability arose out of the course and scope of his/ her employment.

In cases where the individual police officer acted in excess of power such as use of force that is unreasonable in the circumstances, individual liability ensues.

The Prohibition of torture Act imposes personal liability to a police officer involved in violation of an individual's freedom from torture.

Uganda Human Rights Commission

The Uganda Human Rights Commission (UHRC) is established under the 1995 Constitution of the Republic of Uganda [**Article 51 of the constitution**]. The Uganda Human Rights Commission is governed by Uganda Human Rights Commission Act Cap 24 Laws of Uganda. The core mandate of the Commission is promoting and protecting human rights.

The Inspector general of Government

The office of the Inspector General of Government is established under the Constitution [**Article 223 of the Constitution**]. It is operationalized by the Inspectorate of Government Act, 2002. The Mandate of the Inspector general of Government covers all government departments, including the police, dealing with whatever complaints it receives, and there is no system of monitoring police misconduct or dealing with police illegality systematically.

Parliament

The Parliament of Uganda is established under the 1995 Constitution of Uganda [**Article 77 of the Constitution**]. It has the power to question police wrongdoing,

correct systemic faults by passing new laws, seek accounts of police performance, and to keep policing under constant review.

The Police Code of Conduct

The Police Act provides for a Disciplinary Code of Conduct. Under the Code, disciplinary proceedings can be instituted against a member of the Police force. The police code of conduct is established under police Act as a basis for disciplinary control of all police officers and other persons employed in the force. **[Sec 44 of the police Act]**

Persons Subject to the Code

Persons subject to this code are provided for in the police Act **[Sec 45 of the Act]** and Schedule to the Police²¹ as follows;

- (a) An attested member of the force.
- (b) A person enlisted as a police officer or who is under training as a police officer.
- (c) A member of the local administration police force provided for under section 67.
- (d) A special constable referred to in section 64.
- (e) A police officer employed on contract under sect 16.
- (f) A member of a security organisation placed under demand of the inspector general for the performance of police duties.
- (g) Any other person who accepts to perform duties in the force.

Regulation of Public Assemblies and Processions

Freedom of assembly and expression are some of the basic civil and political rights that are nationally and internationally recognised. They are critical for ensuring that governments are accountable, reduce corruption and promote development through improved governance and public participation. These freedoms are indispensable conditions for the full development of the person and are essential for any society. They constitute the foundation stone for every free and democratic society.

²¹ Paragraph 1 of the schedule to the police Act.

The Law Regulating Demonstrations and Assemblies

The law applicable to public demonstrations is to be found in the Constitution of the Republic of Uganda, 1995, the Police Act, Cap. 303, Public Order Management Act, 2013 Laws of Uganda; International and Regional Human Rights Instruments rectified by Uganda; common law and judicial decisions. The essence of the law is to ensure that every person has the right to demonstrate with others peacefully and unarmed. The right however, is not absolute and can be limited but any limitation imposed should not prevent the enjoyment of the rights and;

- (i) It should be in the public interest
- (ii) It should be in the interest of law and order; and
- (iii) It should be such as is acceptable and justifiable in a free and democratic society.

It is important to stress that this right is a positive right with the qualification that it must be exercised peacefully without participants being armed.

Article 29(1) (d) of the 1995 Constitution provides for the freedom to assemble and demonstrate together with others peacefully and unarmed. **Article 29 (1) (e)** of the constitution provides for the freedom to form and join associations. The freedom of assembly and association are subject to restrictions that are provided for under **Article 43** of the constitution. These restrictions should not go beyond what is acceptable and democratically justifiable in a free and democratic society, or what is provided in the constitution. In the case of *Muwanga Kivumbi vs. Attorney General Constitutional Petition No. 9 of 2005 [2008] UGCC 4* The court declared Section 32 of the Police Act unconstitutional and echoed the importance of freedom of assembly as well as the restrictions attached to it. The court observed that in a democratic society, the police are supposed to keep law and order as well as to direct rallies and not to disperse them.

Managing Assemblies and Demonstrations

Article 20 (2) of the constitution provides that all government agencies and organs shall respect and promote fundamental human rights and freedoms. **Article 212** of the constitution provides for the functions of the police among which include to protect the lives and property of the people. The police Act and the penal Code Act,

among others also provide some guidance on assemblies, notably the law governing assemblies and demonstrations is not comprehensive.

In order to avoid the aforementioned undesirable occurrences, it is important to draw the attention of all stakeholders especially organizers of assemblies and processions to guidelines on Public demonstrations in Uganda that were developed by a Task Force that included the Uganda Human Rights Commission, The Police, Civil Society, the justice Law and Order Sector (JLOS), Political parties and parliament in 2007 (see: *Uganda Human Rights Commission. 14th Annual Report 2011 to the Parliament of the Republic of Uganda* p67), which were endorsed by all stakeholders.

The guidelines were developed in the context that in the exercise of one's rights especially the right to assemble peacefully and unarmed as provided for in **Article 29(d)** of the constitution there are obligations embedded to ensure that rights of others are not infringed. It should be noted that they are based on International Human Rights Standards and practices and are yet to have the full force of the law.

The above notwithstanding in the exercise of the mandate of the police under **Article 212** of the constitution and **Sect. 32(1)** of the Police Act, the police is mandated and empowered to regulate assemblies and processions to ensure that these rights are exercised without infringement on the rights of others as indicated in **Article 43(1)** of Constitution of Uganda.

To comprehensively deal with this question, and provide the guidelines backing of the law, a Public Order Management Act, 2013 has been passed by Parliament. Its purpose is to provide for the regulation of public meetings, indicate duties and responsibilities of the Police, organizers and Participants in relation to public meetings and to prescribe measures for safe guarding public order and other related matters.

Dispersing Unlawful Assemblies

An assembly is a peaceful gathering of two or more unarmed people in a private or public place, inside or outside with the common intention to express an opinion, idea or information to others (see: *M.Nowark CCPR Commentary (N.P Engel, 2005 487)*). This freedom should be enjoyed without compromising public interest, order and the rights of others. The element of the freedom of assembly is that people should be

able to gather peacefully for public expression of religion, political or any other grievances. Freedom of assembly is closely connected to freedom of political expression. Citizens should be able to peacefully consult one another about public affairs and petition redress of grievances from government.

State has the duty to protect lawful demonstrations therefore; the law protects peaceful assemblies, those that are non-violent. In the event that these demonstrations turn violent, they must be legitimately dispersed as provided for under the UN Basic principles on the use of force and firearms by law enforcement officials as well as the UN Code of conduct for law enforcement officials. At the national level **Section 36 of the police Act and Section 69 of the Penal Code Act** also provide that the police should use reasonable force while dispersing demonstrations. The basic principles require that rubber bullets and live ammunition shall not be used against persons except in self-defence or defence of others against imminent threat of death or serious injury. Use of force is only permitted when less extreme means are insufficient to achieve the desired objective of managing the demonstration. If one's freedom of assembly is restricted, this restriction must have a proper basis in law, it must be necessary and proportionate in order to protect national security, prevent public disorder or crime, protect health morals and rights and freedoms of others.

Cases

1. Muwanga Kivumbi vs. Attorney General Constitutional Petition No. 9 of 2005 [2008] UGCC 4
2. Moses Mwandha v Attorney General Constitutional Petition No. 5 of 2007 [2019] UGCC 5 (30 May 2019)

Community Policing

Community policing, as a model of policing, was introduced in Uganda in the late 1980s, at first in the form of a pilot project in the Old Kampala Police Division. The pilot project was born out of community dissatisfaction with police performance in the face of increasing theft of electrical goods, which had assumed political

overtones. Community policing was aimed at improving police/public relations, providing the public with crime prevention tips.²²

The basis for community policing in Uganda is both Legal and doctrinal. The constitution emphasizes cooperation between the police with the public, other security organs and the population generally [**Article 212(d) of the constitution**]. It is also the duty of the citizen under the Constitution to co-operate with lawful agencies in the maintenance of law and order. [**Article 17 of the Constitution**].

The concept of community policing is now considered as second generation policing. This new doctrine in police work requires the integration of traditional police duties and functions into life and activities of communities in the fight against crime. There are four basic elements that distinguish community policing from other forms of policing;

Community Based Crime Prevention

Community based crime prevention involves encouraging and facilitating efforts by the public to take protective measures on their own behalf. It grows out of the realization that the first line of defense against crime is not the police, but potential victims. Crime prevention is achieved better with social interaction playing an important role in preventing, detecting, and reporting of crime. Groups like church-run youth groups, community service organizations as well as the small or largely voluntary organizations, professional organizations, are utilized in the advance against crime prevention. To realize this effect the police are urged to engage the public in crime prevention by the police standing orders.

b) Proactive Servicing

This element can be described as patrol deployment for non-emergency interaction with the public. In Uganda, patrol deployment is majorly based on the patrol car. Patrol orders are to be given by the District Police Commanders to be displayed in all stations with a patrol route map [**Policing standing Orders para 20 chapter 13**]. The patrols are meant to be performed regularly by patrol constables who gather and record all items of significant local information. Research has however shown that patrol and deployment strategies are still demonstrably ineffective and inefficient.

²² Police and crime prevention in Africa: A brief appraisal of structures, policies and practices by Elrena van der Spuy & Ricky Röntsch Cape Town Draft reported Draft reported on October 31st 2008, page 74.

Non-emergency interaction is therefore called for in that patrol operations should have a deeper involvement with the community which is not only instigated predominantly by emergency calls for service but full time basis.

Devolution of Command Responsibility

Effective policing is dependent upon as many members of the police service as possible considering themselves part of local teams and so identifying themselves with their local areas. Community policing therefore instigates more effectiveness in the police officers irrespective of rank.

Public Participation in the Planning and Supervision of Police Operations

A key element of the community policing strategy is the notion that to accomplish safer and more orderly communities, police must acknowledge that they share that responsibility with the community that indeed without close cooperation these objectives can never be realized. The establishment of community crime committees consisting of members of the public, police officers, welfare and other community groups should be adopted as an important step in the articulation of community needs on a consultative basis.

The Advantages of Community Policing

Community policing aims at creating positive attitudes and behavior among individual members of the community that will enable them to reduce and possibly eliminate crime and insecurity. Consequently, community policing builds trust between the police and the public through emphasizing the culture of honesty, accountability and transparency.

Community policing is also relevant in the fight of crime in the country. The understanding of causes of crime such as unemployment, homelessness, illiteracy and social disintegration is crucial for the prevention of crime in society with a target focused on these key areas. This can only be achieved with the involvement of the community in which these social upheavals are experienced. This makes community policing relevant for purposes of addressing the root causes of crimes.

Community policing redevelops police activities and operations to be more relevant in society. This is done through local problem solving, crime prevention education

and publicity. It helps police develop community-specific objectives which generates a sense of accountability, responsibility and public trust in the police.

Generally, community policing helps both the police and community achieve a decreased potential for police-citizen conflict, a reduction in crime rates, a better flow of information between the police and the community, and better implementation of crime prevention and crime control activities, as a result of both parties working together towards shared goals.

Challenges of Community Policing in Uganda

Community participation is the cornerstone of community policing. It is based on the presumption that community members will be both willing and able to respond to a community policing initiative. An evaluation of Uganda's initiatives reveals that responses vary considerably; some groups are fearful or unappreciative of an increased police presence. An example of this is the situation in rural areas where a person regardless of whether a criminal or not will take off on mere sight of a policeman.²³ In these circumstances a partnership with the community towards crime prevention becomes hard to realize.

There has been a poor conception, design and management of community policing. Community policing in Uganda receives authorization from police professionalism and little support from the community. It is largely perceived as a police centered approach. There is for this reason little reciprocity between the police and the public in their dealings. Therefore whereas the police should use community policing as a crime prevention tool, the public views it from a different perspective and the two factions fail to operate together effectively.

The police are faced with the dilemma of governing communities that are in fact complex, ambiguous, diverse and highly stratified. Community policing is confronted with settings of severe social disorganization, which often curtails the rise and vibrancy of organizations within the community. The Ugandan police force is national and it gets represented to the public as a force of outside leaders as opposed to local defense units whose members are drawn from the local area that they serve.

²³ William. d. baker , management systems international corporate office ; community policing assessment in northern Uganda. a publication by united states agency for international development , 2006, p 12.

There is also lack of training for police in community policing. The police still handle crimes in a complex way by using brutality in some instances and this makes it hard to convince communities to forge a partnership with the police.



DELEGATION OF POWERS

Definition of Delegation

Delegation is a process by which the powers, functions and responsibilities of a superior officer are performed by a subordinate officer. It therefore involves transfer of tasks and action points from a superior officer to a subordinate.

Objectives

By the end of the session, you will be able to:

1. Understand the concept of delegation.
2. Refresh yourself on necessity of delegation of powers.
3. Know the statutory provisions relating to delegation.
4. Internalize legal limitations relating to delegation of powers.
5. Give the justifications for and arguments against delegated legislation.
6. Understand the procedural requirements in delegated legislation.
7. Know valid or invalid delegated legislation.

Delegation of Administrative Powers In General

Administrative powers and functions in public offices are carried out by public officers and administrative departments. The ultimate administrative powers are usually entrusted to the Heads of Departments i.e. Permanent Secretaries or Chief Administrative Officers. Below the Permanent Secretary or Chief Administrative Officer, there are other public officers who exercise administrative functions and powers i.e. sector heads of departments. The functions and powers of administrative officials are derived from:

- a) **Legal provisions** e.g. the Permanent Secretary gets his/her powers from the provisions of Art 195 of the Constitution. There are also Acts of Parliament that give Permanent Secretaries specific administrative functions and powers.
- b) **Administrative instructions** – These may allocate duties and functions within a particular department.

- c) **Terms of Contract** – A contractual appointment may sometimes spell out in details the powers, functions and responsibilities of a particular public officer.

It is the responsibility of a particular officer to ensure that the powers, functions relevant to a particular department are executed. Proper execution of duties does not necessarily mean individual execution of all the tasks. In the administrative process, it is inevitable that powers, functions and responsibilities of a superior officer are carried by another officer. This is done through a process of delegation.

There is no statutory or definition of delegated powers. There however accepted description of what constitutes delegated legislation or subordinate legislation. Recourse can be made to a loose definition found in **Jowitt's Dictionary of English Law** where it is stated that they are rules made by some authority subordinate to the legislature for the regulation administration or management of a certain district, property, undertaking, etc and binding on all persons who come within their scope.

Subsidiary legislation in Uganda is also governed by the Interpretation Act Cap. 3. Section 14 provides that where any law confers on the President, Minister or any other authority power to make subsidiary legislation, such power shall be exercised by making **statutory instruments**.

Section 16 on the other hand provides that any statutory instrument shall be published in the Gazette and shall be judicially noted.

Why Delegation

Delegation of powers, functions and responsibilities is justified on a number of grounds. These include:

1. Effective distribution of the work load. This enables various officers in departments to contribute without a possibility of unbalanced sharing of tasks.
2. Personnel development – members build capacity through being exposed to handling particular tasks. This leads to accumulation of expertise.
3. It promotes staff morale – makes officers feel wanted and responsible in the organization.

4. Raises level of efficiency in handling, executing policies and execution of laws.
5. Promotes accountability and transparency in public affairs.

Chain of Command

Delegation of powers normally follows a chain of command. This is so in order to avoid demoralization of the immediate subordinates.

In the case of **Jackson Vs Butterworths**, it was emphasized that where delegation is authorized, it should be exercised by transfer of powers to civil servants within the Ministry and not to another Minister or local authority.

It is therefore expected that delegation be made to deputies or assistants depending on the organization structure.

How Delegation is Effected

There are various methods of delegation of administrative powers. The method of delegation may depend on statutory provisions or administrative procedures and practices. The usual methods include:

Statutory Notices

There are requirements under various laws for gazetting of delegation of powers. These require a notice to be published in the Uganda Gazette. There are gazetting requirements under S.2, the Transfer of Powers and Duties Act, and S.29 of the Local Governments Act.

Circulars

Delegation which does not require gazetting may be effected through circular notices. These are in-house notices for information of departmental staff.

Duty Instructions

Delegation may also be communicated to a subordinate through instruction relating to duties to be performed. A schedule of duties may include delegated powers, functions and responsibilities.

Control of Delegated Powers

Delegated powers must be used to achieve the objectives for which they were given. The exercise of delegated powers may be challenged in the following circumstances:

The Principles of *Delegatus non potest delegare*

i.e. a delegate cannot delegate.

The maxim *delegatus non potest delegare* (a delegate cannot delegate) is used to express the principle that statutory authority should not be delegated.

The following examples illustrate cases where administrative action was held to be *ultra vires* because the decision was taken by a person or body to whom the power did not properly belong:

Nazarali Hassanali Sayani vs. Edward Mperese Nsubuga (1994) 6 KALR 50 [Byamugisha J.]

The plaintiff, an Asian, upon his application for repossession of his expropriated property, was given a letter of repossession by the Minister of State for Finance. The Expropriated Properties (Repossession and Disposal) regulations provided that it was the Minister of Finance to issue the Certificate of Repossession. It was held that the letter of repossession was of no consequence since it was not provided for in law. The Expropriated Properties (Repossession and Disposal) regulations empowered only the Minister of Finance to issue a Certificate of Repossession. A letter of repossession by a Minister of State for Finance was not provided for in law.

Allingham vs. Ministry of Agriculture and Fisheries (1948) 1 All E.R. 780 – Local committees were empowered to direct farmers to grow specified crops on specified fields. A committee decided to order eight acres of sugar beet to be grown by a farmer, but left it to their Executive Officer to decide on which field it should be

grown. It was held that the direction by the Executive Officer was void since he had no power to decide as to the field.

Barnard vs. National Dock Labour Board (1953) 2 QB 18 – Registered dock workers were suspended from their employment after a strike. The power to suspend dock workers was vested in the Dock Labour Board. The suspensions were made by the Port Manager, to whom the Board had purported to delegate its disciplinary powers. The dockers obtained declarations that their suspension was invalid since the Board had no power to delegate its functions and should have made the decision itself.

In a similar case, **Vine vs. National Dock Labour Board (1957) AC 488**, a registered dock worker was dismissed. The House of Lords granted a declaration that the dismissal was invalid because the Board, instead of declaring itself, entrusted the matter to disciplinary committee.

However, it should be noted that such a strict application of the rule against delegation would cause a lot of administrative inconvenience and a huge burden for administrative authorities. Courts therefore emphasize that a subordinate official or body may merely recommend action, but the actual decision should be taken by the official or body specifically empowered by the law. In substance, this means that administrative power will be exercised by the subordinate that makes the recommendation. Thus, it may be concluded that the law allows for delegation of administrative powers, although emphasis is placed on the actual decision being made by the official or body with statutory authority. Nevertheless, the general rule is that delegation must be authorized by statute, either expressly or impliedly; otherwise the action can be challenged as *ultra vires*.

Statutory Prohibitions

An Act of Parliament may specifically prohibit the delegation of powers, for example, S.75 of the Local Governments Act provides that:

The Minister may lay statutory instrument and with approval of Cabinet, amend, replace or revoke any of the schedules provided under this Act, and the Minister **shall not have power to delegate this function**. This is an express prohibition to delegation of the specified power if any delegation in S.174 (2).

Legislation On Delegation Of Powers

The laws of Uganda allow for delegation of some executive and administrative powers, for example:

Legislation on Delegation of Powers

i) **Article 99(4) of the Constitution** provides that the functions conferred on the President as the Executive Authority of Uganda may be exercised by the President directly or through officials subordinate to the President.

ii) **S.1 of the Transfer of Powers and Duties Act** provides that:

“Whereby or under any Act of Parliament, the President is empowered to exercise any power or perform any duty, the President may, by statutory order, transfer the exercise of that power or performance of that duty to an Minister or public officer”

iii) **Section 32 of the Local Governments Act:** A Minister responsible for a government Ministry may, after consultation with the Minister of Local Government, delegate functions, powers and responsibilities vested in that Ministry to a Local Government Council; and a Local Government Council may delegate its functions, powers and responsibilities to a lower local government council within its area of jurisdiction. Such a delegation shall not be effected unless:

- a) all the parties are in agreement;
- b) adequate resources are made available for the exercise of those functions, powers, services and responsibilities; and
- c) Appropriate measures are taken to bring the change to the attention of the public.

A copy of the instrument of delegation shall be registered with the concerned local governments and the Ministry and shall be open to public access.

- iv) **Section 33 of the Local Governments Act** – A Local Government Council may delegate some of its functions, powers or responsibilities under the Act to the Chairperson, or a Committee of the Council.
- v) **Section 29 of the Interpretation Act** says that any power conferred or duty imposed on the Attorney General by or under any Act may be exercised or performed by the Solicitor General:
 - a) in any case where the Attorney General is unable to act owing to illness or absence; and
 - b) in any case where the Attorney General has authorized the Solicitor General to do so.

Delegation within Limits

Delegated powers may also be exercised within the limits that are imposed by the officer who is delegating powers e.g. S.174 of the Local Governments Act allows a Minister to delegate powers and also to impose such conditions, exceptions or qualifications. Such limitations may include requirements of consultations on some issues, reporting on how a power is exercised, etc. See also S.32 of the local Governments Act

Delegation of Discretionary Powers

As a general rule, delegation of discretionary powers is prohibited. This is so because it offends the understanding on which such powers were given. A delegate is given powers on the understanding that it will be exercised through personal judgment of that delegate see **Barnard Ns National Dock Labour Board**.

Delegation of Judicial Powers

Judicial powers involve discretions. These powers cannot be delegated. A judge or magistrate cannot delegate his or her powers to a lower judicial or non-judicial officer.

Delegation may be Cancelled

The officer with discretionary powers retains the power to recall the delegated powers. The powers can therefore be cancelled or revoked at any time. The officer delegating powers can exercise this power if and when he/she feels that the powers are not being exercised properly.

Responsibility

The transfer of powers, functions and responsibility does not take away the aspects of accountability. The original holder of powers remains responsible and accountable for the actions of the delegate. For example, accounting officers remain accountable to Parliament even if they have delegated some of supervisory functions relating to accountability.

Government Departments

As already stated, if the judicial aversion to delegation is carried too far it would occasion undue difficulties in the administrative process because in practice, governments require a great deal of delegation. Thus, government departments enjoy the benefit of a special rule whereby officials may act on the Minister's behalf without any formal delegation of authority. So, when powers are conferred on a Minister, it is obvious that he won't exercise the power himself without the need for any particular delegation.

The constitutional foundation of this rule was explained by the House of Lords in **Caltona vs. Commissioner of Works and Others (1943) All ER 560**. The appellants were manufacturers of food products but their factory was requisitioned by the Commissioner of Works under the provisions of the Defence Regulations 1933. The appellants challenged the Committee's Act but court while dismissing the appeal explained.

"In the administration of government in this country, the functions which are given to Ministers are functions so multifarious that no Minister could ever personally attend to them. Powers given to Ministers are normally exercised under the authority of the Ministers by responsible officers of the department. Public business could not be carried out if that were not the case".

However, there are limitations to the doctrine, for instance, it applies only to Departments of the Central Government and not local authorities or statutory bodies.

It also applies to departmental officials in the same Ministry, thus it does not apply across the departments or ministries.

Ratification

This is a process whereby an illegal act is validated by a person who had powers to initially carry out the act. It arises where there is likelihood to challenge *ultra vires* exercise of power. The proper authority will bless the said *ultra vires* act by confirming that it was carried out properly.

However, this must be done before the *ultra vires* act becomes a subject of judicial proceedings.

In **Cheetham vs. The Mayor of Manchester (1875) L.T. 28**, the Town Clerk of the corporation directed the City Surveyor to demolish a dangerous building. Such powers were vested with the corporation only and the clerk did not consult them. Court held that the subsequent employment and payment of the workmen by the corporation to bring down the building amounted to ratification of the Clerk's act and cured the invalidity.

In **Municipal Board of Mombasa vs. Kala (1955) EACA 319**, the Board's Engineer and Town Clerk purporting to act under a byelaw exercised the Board's powers and served a notice to destroy a building upon the respondent. The Board entered on the property and demolished the building thus purporting to ratify the notice.

Held: The Clerk's notice was invalid and could not be ratified subsequently by the Board because the case concerned an exercise of judicial powers.

A ratification can only be upheld as valid if:

1. Made by proper authority
2. Made within a reasonable time
3. The relevant Act which is a subject of ratification was done in good faith

4. It unequivocal and wholly own the illegal act as if it was done by the proper authority.

Delegated Legislation

Art 79 of the Constitution provides that:

- (i) Subject to the provisions of this Constitution, Parliament shall have power to make laws on any matter for peace, order, development and good governance of Uganda.
- (ii) Except as provided in this Constitution, no person or body other than Parliament shall have power to make provisions having the force of law in Uganda except under authority conferred by as Act of Parliament.

The legislative powers of Parliament as are exercised following the procedures established in the Constitution and Acts of Parliament (Act 16 of 2000).

Art 94 of the Constitution gives general procedures. The Article has given Parliament power to regulate its own procedures. At the beginning of each Parliament, rules of procedure are adopted to guidance of proceedings relating to motions, legislation and other matters that may be brought before Parliament.

The procedures and format relating to the enactment of Acts of Parliament are contained in Acts of Parliament Act. The general procedures contained in the rules o procedure and Acts of Parliament include:

- (i) Antecedent publication of bills
- (ii) First reading
- (iii) Second reading
- (iv) Third reading

(v) Presidential assent

(vi) Publication

Art 79 (2) gives Parliament powers to enact Acts of Parliament that enable other authorities to make provisions having the force of law.

Provisions With force of Law

Rules

These are provisions that set out what may or may not be done. Rules may set out rights and obligations of the concerned parties and procedural requirements in connection with a particular activity e.g. the civil procedure rules.

Regulations

These are mainly procedural and regulatory. They set out how a particular policy or legislation is to be implemented e.g. Public Service Regulations which used to regulate aspects of employment in the Public Service. The Employment regulations are used in implementing the provisions of the Employment Act.

Orders

These are directives as to what shall be done. The time to do particular things as how certain things shall be done. Orders are mandatory and they leave no room for discretion.

Ordinances

These are laws enacted by the District Council in accordance with S.38 of the Local Governments Act e.g. Kampala City Solid Waste Ordinance 2000.

Bye Laws

These are laws enacted by lower local governments in accordance with S.39 of the Local Governments Act.

Notice

It is a communication of a decision made by a relevant authority e.g. The Bank of Uganda (fixing of time of calling bank notes) Notice 2000. It is used give public information of what is expected to be done.

Proclamations

Proclamations are declarations regarding the status or activities of a particular authority. This is given to the public as information e.g. Art 101 (2) of the Constitution empowers the Speaker of Parliament to issue proclamations for the beginning of parliamentary sessions. The proclamation states the dates and place of sittings.

Statutory Instruments

S.14 of the Interpretation Act provides that where a power is given to the President, a Minister of any other authority, to make proclamations, rules, regulations, bye laws, statutory orders or statutory instruments, such as power, shall be exercised by the passing of statutory instruments. Statutory instruments are numbered and cited after due publication in the Uganda Gazette.

Practice Directions

These are rules of procedure issued by a Minister or Chief Judicial Officer on how certain proceedings are to be handled. They usually relate to legal proceedings.

Reasons for Subsidiary Legislation

Although it is frowned upon by the traditional conservatives because of its infringement on the doctrine of separation of powers, it is nonetheless a necessary evil. According to Wade – Administrative Law, it is more possible to justify it in theory than it is to do without it in practice.

1. Parliament has no sufficient resources, time and personnel to attend to all matters. Thus it is enough for Parliament to concern itself with principles but their application in the detailed regulations is left to the administrative bodies. Besides, there is need not to be too much detail in the Act itself which can lead to difficulty, for example, the Town and County Planning Act imposes planning controls on building operations. However, the details of planning controls are provided for under rules and regulations made by responsible Minister.
2. There is need to deal with emergencies and unforeseen circumstances by allowing for flexibility. Consequently, departments, ministries and local authorities have to be armed with powers to make orders and regulations to deal with emergencies such as animal diseases, wars and other economic crises. Thus, subsidiary legislation enables the executive to authorize certain actions.
3. Sometimes the subject matter on which legislation is required is of too technical a nature for Parliamentarians to understand. Thus legislation in such cases needs to be entrusted to experienced professionals who have expertise in the relevant areas.
4. Parliament has a bulk of business to attend to due to increased activities in the state life. For instance, it has to approve budgets, government appointments as well as attending to other national business, thus there is no time for Parliament to legislate on everything.
5. It enables a specialized approach to local issues applicable to a geographical area and this especially with regard to byelaws and ordinances made by the sub-county councils and district councils under the Local Governments Act.

Arguments Against Subsidiary Legislation

1. As already stated, subsidiary legislation is incompatible with the doctrine of separation of powers because it invites the executive branch of government to legislate. This infringes on the principles of democracy since people are not allowed to make laws through their elected representatives.
2. Both parliamentary and judicial controls which are supposed to regulate subsidiary legislation are inadequate and they cannot keep watch of all the byelaws and ordinances.

3. One of the advantages is that it allows for flexibility but this is at the expense of uniformity. Local authorities make laws suited to their particular circumstances which lead to different byelaws in different areas. This sometimes thus defeats the objectives of the Parent Act.
4. It is generally unavailable to lawyers and the public. This is because too many volumes are produced every year and keeping an eye on every byelaw or statutory instrument is difficult.

Procedure For Making Subsidiary Legislation

Apart from the particular procedures prescribed by Acts of Parliament authorizing subsidiary legislation, for instance the 3rd Schedule to the Local Governments Act, there are generally procedures which must be complied with when making subsidiary legislation.

Consultation

This is normally done among the people who are likely to be the subjects of the subsidiary legislation or a body of experts in that field. It takes various forms ranging from public discussions to allowing members of the public submit written views in form of memoranda.

Publication

This normally makes two forms, antecedent publication whereby the instrument is supposed to be published before it becomes law. For instance, under S. 38(4), a bill by a District Council is supposed to be published both in the Gazette and the local media.

The second form of publication is subsequent publication. This is where subsidiary legislation has been passed but must be published in the Gazette and the local media before it enters into force.

Approval

Most of the Parent Acts put in place approval as a requirement for subsidiary legislation. This is normally done by a higher authority. For instance, under Section 38(2) a District ordinance must be submitted to the Attorney General for approval

before it can enter into force. Similarly, most statutory instruments made by Ministers are approved by the Cabinet.

Approval may also be required to be obtained from Parliament. This may involve laying the statutory instrument before Parliament for an affirmative resolution or simply to be tabled for notification of Parliament. It is expected that Parliament may resolve on the statutory instrument if it does not promote the intended objectives.

The failure to comply with any of the above requirements may render the resulting Ordinance, Byelaw or statutory instrument invalid. Thus in **R Vs. Wakiso Estates (1955) 7 ULR 137**, the Employment Ordinance gave powers to the Governor to make regulations but such regulations after being made had to be read before the Legislative Council for approval before entering into force. The rules which the accused had breached were made at Entebbe on 21st May 1946 and approved by the Legislative Council on 30th April 1946. The issue before court was whether the non-compliance with the procedure was fatal to the validity of the rules. Court held that the rules were invalid because they did not comply with the procedural requirements under the Employment Ordinance. To arrive at that ruling, court stated that there is nothing which was approved on 30th April 1946 because the rules had not been made and were only made on 21st May 1946.

Judicial Controls on Subsidiary Legislation

The courts are endowed with powers to check on the excesses of administrative authorities which are entrusted to make subsidiary legislation through a process called judicial review. According to Oluyede, Administrative Law in East Africa, judicial review is a process by which courts control the exercise of a power to make delegated legislation. The courts are concerned with whether subsidiary legislation is constitutional and whether it complied with the procedural requirements laid down by law after which they may invalidate the purported legislation. Other defects are uncertainty, unreasonableness and the doctrine of *ultra vires*.

Invalidation of Subsidiary Legislation

Incompatibility with the Constitution

Art. 2 of the Constitution emphasizes the supremacy of the Constitution and provides that any other law inconsistent with it is null and void to the extent of the inconsistency. Thus, laws made by administrative authorities are also subjected to the Constitution.

Sometimes conflict with the Constitution is embodied in a wider principle of *ultra vires* which also includes other defects like unreasonableness.

In **Nanalal Damodar Kanji Vs. Tanga Township Authority (1940) 1 TLR 239**, the accused owned a house and papers were found outside it. He pleaded not guilty to a charge under Township Rules which had been made under the Local Government Ordinance and contained a provision stating “No one shall deposit any dust, refuse or obnoxious matter on the streets. If any accumulation of rubbish is found near any person’s house, it will be *prima facie* evidence that the owner of the house put it there”. It was held unconstitutional because it contravened the constitutional presumption of innocence.

Conflict with the Parent Statute or any other law made by a Higher Authority

Section 18(1) of the Interpretation Act Cap 3 provides that any statutory instrument which is inconsistent with any provision of the Act under which it was made shall be void to the extent of the inconsistency. This came up for adjudication in **Koinange Mbui Vs R** where the Crop Production and Livestock Ordinance allowed the governor to fix by name all areas to which rules for controlling crops might apply. He made rules stating that no coffee shall be grown by an African except on a plantation approved by the Director of Agriculture. Court held that the rule was invalid because it conflicted with the coffee industry Ordinance which allowed any person to plant coffee anywhere as long as he obtained a licence.

The Rule against Sub-delegation

In pure legislative matters there is a rule that “*delegates non potest delegare*” which means a delegate cannot delegate. Thus authorized sub-delegation will result in the invalidation of the resulting ordinance, byelaw or statutory instrument.

In **Gulamani Vs R**, the governor was given power to make byelaws for the destruction of cotton plants harbouring pests and diseases but this power was exercised by the Director of Agriculture. The accused contravened it and was fined 300/-. His conviction was quashed on the ground that the exercise of the power was unlawful.

Uncertainty

A law which is uncertain as to its scope and application will be pulled down by the courts. This is because laws must have no doubt as to what is prohibited and their application. In **R Vs Hermitte (1938) 18 KLR 55**, the provision stated, “No one shall make any disturbance so as to be an annoyance to the residents or passengers. It was held invalid for want of certainty because it was not clear on what had been prohibited.

Unreasonableness

This ground of invalidity includes such instances as the prohibition being too wide or too narrow or the punishment prescribed being too heavy or too light.

In **Sheik Bros Vs Hotels Authority**, by a regulation, the Hotels Authority was empowered to fix accommodation percentages and entertain complaints and adjudicate upon them for the residents. The Authority fixed 100% instead of the previous 85%. It was held that the Hotels Authority had clearly exceeded its powers.

Publication, both Antecedent and Subsequent

Under Section 16 of the Interpretation Act, every statutory instrument shall be published in the Gazette and judicially noticed. Thus, failure to comply with such a requirement can render subsidiary legislation invalid.

In **Mwangi Vs R**, the proprietor of an African barber shop was charged with overcharging in hair cutting services. In 1948, an order had been made fixing the price at Shs 1 and published in the Gazette. In 1949, it was repealed by Order 20 of 1949 which fixed the price at 50 cents but was not published. Court held that it was invalid for want of publication.

Failure to comply with Procedural Requirements

As already stated, failure to comply with procedural requirements will render subsidiary legislation null and void (**R Vs Wakiso Estates**).



LOCAL GOVERNMENTS

Introduction

The system of government in Uganda is divided between the central Government and local governments. Central Government institutions are those that were discussed in the preceeding unit under Administrative Authorities. These include President, Ministers, Government ministries, Public Corporations, Constitutional Commissions and Offices, Tribunals and the Police force. These operate at national level and usually do not have geographical limits. On the other hand, local governments are restricted specified areas and powers.

Objectives

In this Unit you are expected;

1. To know the justifications of establishing local governments
2. To understand the principles underlying the local governments
3. To know the powers of the local governments
4. To internalize the limitations of local government powers
5. To establish central/local relationships

Principles of Decentralization

The Local Government system in Uganda is derived the **National Objectives and Directive Principles of State Policy** which are part of the Constitution of Uganda. Among the political objectives there are democratic principles.

The applicable **democratic principles** are:

1. *The State shall be based on democratic principles which empower and encourage the active participation of all citizens at all levels in their own governance.*

2.

3. *The State shall be guided by the principle of decentralisation and devolution of governmental functions and powers to the people at appropriate levels where they can best manage and direct their own affairs.*

Background to Decentralization in Uganda

The Government of Uganda set up the Mamdani Commission in 1986 to inquire into the local Government system in Uganda. The commission recommended the decentralised system of government in order to ease the governance problems in Uganda. Decentralisation was not imposed by donors, “but it is home grown”. Since 1993, Government has pursued a decentralized system of government, under which political, administrative planning and financial powers were transferred from the central government to local governments and administrative units. Uganda’s decentralisation policy is outlined in chapter 11 the constitution. It is amplified and operationalized by the Local Governments Act. The reform is generally intended to make Local Governments effective centres of self- governance, participation, local decision- making, planning and development.

Defination

Decentralization is a process of dispersing decision making and implementation from the central government to lower government units. It also includes delivery of services at lower levels of governments. Such decisions, implantation and services may relate to planning for local areas, raising of local revenue, management of resources, accountability for public resources and promotion of public welfare.

The Legal Framework for decentralisation

The 1995 Constitution sets the following as the tenets of Uganda’s decentralization:

1. The state shall be guided by the principle of decentralization and devolution of governmental functions and powers to the people at appropriate levels where they can best manage and direct their own affairs.
2. The system shall be such as to ensure that functions, powers and responsibilities are devolved and transferred to local government units in a coordinated manner.

3. Decentralization shall be a principle applying to all levels of local government and in particular, from higher to lower local government units to ensure people's participation and democratic control in decision making.
4. The system shall be such as to ensure the full realization of democratic governance at all local government levels.
5. There shall be established for each local government unit a sound financial base with reliable sources of revenue.
6. Appropriate measures shall be taken to enable local government units to plan, initiate and execute policies in respect of all matters affecting the people within their jurisdiction.
7. Persons in the service of local government shall be employed by the local governments.
8. The local governments shall oversee the performance of persons employed by government to provide services in their areas and monitor the provision of government services or the implementation of projects in their areas.

The Local Governments Act

For purposes of giving full effect to the provisions of the constitution, the Local Governments Act was enacted in March 1997. Specifically, the act aims to consolidate and streamline the law on local government to be in line with the constitution, to give effect to decentralization and devolution of powers, functions and services. It also provides for decentralization at all levels of local governments to ensure good governance, democratic participation and control of decision making by the people. Lastly, it provides for the political and administrative set-up of local governments, the district public service, finance and local elections.

Centralised Governments

Decentralisation is contrasted from a centralized system of government which is characterized by the following;

1. Decisions are made by the central government with minimal or no input from the local areas.

2. Local administrative units are expected to implement directives of the central authorities.
3. All laws are made by the central government. Local governments are expected to implement them without input or questions.
4. Recruitment and control of all employees is done centrally by the central government authorities.
5. All financing arrangements are made from the central government.
6. Accountability is made and enforced by the central government organs.

Reasons for Decentralised of powers

Decentralization is justified on the following grounds:

1. It enables the public to participate in decision making.
2. It brings services closer to the people.
3. It promotes accountability of public officials.
4. It minimizes bureaucracy.
5. It creates efficiency in government operations.
6. It allows optimum utilization of resources.

The policy and concept of Decentralisation

Decentralisation has been defined as the transfer of powers from the central government to local governments. The powers transferred to local Governments are;

1. Planning – developing plans
2. Financial – revenue collection, budgeting, accounting and reporting.
3. Administrative – making bye laws and ordinances
4. Judicial – local administration of justice through Local Council courts.

Decentralisation takes many forms i.e ; de-concentration, devolution, delegation and privatization. These four forms of decentralisation are primarily distinguished on the basis of the powers that central Governments transfers or gives up to the Local units.

Principles of the Local Government System in Uganda

Art 176 of the Constitution puts in place the principles of decentralization. The Article provides that the Local Government shall be based on the district and lower local governments and administrative units as Parliament may by law provide.

Art 178 of the Constitution allows two or more local governments to form a regional government. This aspect is yet to be operationalized in both law and fact. This part will therefore discuss districts and lower local governments.

The principles that shall apply to local governments system include:

1. Devolution and transfer of functions, powers and responsibilities from the central government to local governments.
2. Decentralization to ensure peoples participation in decision making.
3. Democratic governance.
4. Sound financial base with reliable sources of revenue.
5. Ability to plan, initiate and execute policies in local areas.
6. Control over local staff.
7. Monitoring central government programmes and services.

Some of the applicable Laws

There are many laws that govern the operations of local governments. These laws include the Constitution, Acts Parliament and subsidiary legislation enacted by the respective local governments. Some examples applicable laws are the following;

1. Articles 176 – 207. Chapter 11 of the Constitution.

2. Local Governments Act Cap 246.
3. Physical Planning Act.
4. Animal Diseases Act.
5. Education Act.
6. Land Act.
7. Local Government (Rating) Act.
8. National Environment Act.
9. Trade (Licencing) Act.

Local Government Units

Local Governments include the District Council, Sub-county Councils, City Council, City Division Councils, Municipal Council, Town Council and Municipal Division Councils. Within the local governments, there are administrative units which include the District, Sub-county and Parish.

Powers of Local Governments

The powers of local governments are derived from the Constitution, the Local Governments Act and other Acts of Parliament some of which are indicated above.

The various powers of local governments include:

1. Executive powers
2. Legislative powers
3. Planning powers
4. Financial powers

Executive Powers

The Constitution gives executive powers to local governments under Article 180. The executive powers of a local government are entrusted to the Local Council. Under S. 17 of the Local Governments Act, the Executive Committee of a Local Council performs the executive functions of a Local Council. In effect, the Executive Committee is a delegate of the Council.

Executive functions relate to the formulation of policies and supervision of implementation of policies.

S. 31 of the Local Governments Act provides that executive functions can only relate to the jurisdiction of the Local Council. In the case of **UGMA Engineering Co. Vs Lugazi Town Council**, the court held that a Local Council cannot exercise its powers beyond the geographical limits of the local area.

The executive functions must also relate to the jurisdiction of the subject matter of each local government as specified under the **2nd Schedule** to the Local Governments Act. The schedule lists the functions that may be performed by the Government centrally and the respective local governments and administrative units.

S. 17 and S. 26 of the Local Governments Act both give the functions of executive Committee at District and lower Local Governments levels.

Read sections 17 and 26 of the Local Governments Act

Legislative Powers

The legislative powers of local governments are derived from Art 206 (2) (a) of the Constitution. It provides that Parliament shall make laws enabling local governments to make laws, regulations or other instruments for the administration of their areas of jurisdiction. Pursuant to this article, the Local Governments Act has provisions relating to local government legislation.

S. 38 gives District Councils to make ordinances for their areas. In similar terms S. 39 gives lower local governments power to make bye laws.

Procedure of making Local Legislation

The Local Governments Act does not give a detailed procedure for the discussion of a bill. The councils are advised to borrow from the parliamentary procedures where they are applicable. Local governments can also develop their own procedures as provided for in section 11(9) (b) of the local governments Act. A district Council can therefore follow the following procedure while making an ordinance.

Initiating a bill

Reg 15 of the third schedule provides that a bill for an ordinance can be initiated by any member of a district council or city council in his or her council. A bill for an ordinance is first introduced by a motion to which the proposed bill is attached. The following steps are recommended;

1. The initiator of the bill writes to the clerk to council giving notice of intention to move a motion in the council introducing a bill for an ordinance
2. The clerk to council circulates the motion to all members of the council.
3. The motion is moved in the council on a given date and must be seconded by at least one member of the council before it is debated. If the motion is not seconded then it is left out and therefore, no debate takes place. However such a motion can be moved on a subsequent date.
4. After secondment, the speaker reads out the motion to the council in form of a question. This process is called “proposing the question from the chair”. It should however be noted that the motion to be moved should not be the same as one that council has taken a decision on in the same session or even pending a decision or one which is inconsistent with a resolution of council. When the debate on the motion is over, the speaker reads it to the council and directs a vote on it.

Publication of the bill

Regulation 16, 3rd schedule of the Act provides that the motion that is carried by council should be published not later than fourteen (14) days before the council debates the motion. The law provides the following methods of publication

1. Fixing a copy of the bill in a conspicuous place on or near the outer door of the office of the district council during office hours
2. Including the bill as a supplement to an official local publication if any
3. Availing copies of the bill to the general public.
4. Publishing or distributing it in any manner that is customary to the area.

The role of the standing committee in the district legislative process

On publication of the bill, it is referred to the appropriate standing committee for examination and further scrutiny. The committee examines the bill in detail and makes all inquiries in relation to it, as it deems fit. This is done within the fourteen days as prescribed in regulation 20 (1) of the 3rd schedule of the Local Governments Act.

Debating the bill

Debating a bill is done by full council. The clerk to council or whoever is designated reads the title of the bill to the council so that the members attention is drawn to the particular bill. The speaker then calls upon the member who initiated the bill to open the debate by addressing the council on the bill. The standing committee's report on the bill is presented to the council by the chairperson / member of the committee. The bill is debated on the basis of the presentations of the initiator and the report from the respective committee. The bill is passed in clauses. Where an ammedment is proposed on a clause, then the clause is deemed to have passed with amendments. New clauses can be introduced during the passing of the bills as an amendment. All proposed ammendments are made in writing. The motion will be considered passed if a motion without debate is moved and the question put by the speaker "that the bill do pass"

Role of the minister

The clerk to council notifies the speaker and chairperson and forwards the passed bill to the minister. Section 38 (2) (3) of the Local Government Act provides that a passed bill shall be forwarded to the Attorney General through the minister to certify that the Bill is not inconsistent with the constitution or any other law enacted by parliament. Where the local bill is found inconsistent as specified above, the minister returns the bill with comments to the relevant council for modification or other appropriate action. The minister must return the bill to the district with in 90 days. Where a bill is returned certified without recommadations/ ammendments, the minister signs on the bill and indicates the date of the signing in five copies.

The ordinance

Once the chairperson signs the bill returned from the minister responsible for local Government it becomes an ordinance of the district Council. The chairperson signs five copies to be distributed as follows:

1. The chairperson -1 copy
2. The speaker -1 copy
3. The minister -1 copy
4. Attorney General -2 copies one for publication in the Gazette.

Procedure for passing laws by Local councils [bye laws]

Section 39 of the Local Government Act gives urban, Sub – County Divisions and Village Councils powers to make laws not inconsistent with the constitution or any law enacted by parliament, or ordinance of the district Council or a bye law passed by a higher council. Just like the passing of bills for ordinances, the Act does not give a detailed procedure for the discussion of a bye law by lower local councils.

The councils are advised to borrow from the parliamentary procedures where they are applicable. The local councils empowered to make bye laws are:

1. Municipal councils
2. Municipal council Divisions
3. City Council Divisions
4. Town Boards
5. Sub-county Councils
6. Town councils
7. Village Councils.

Legislation by lower Local Governments

The municipal Council

Section 39 (2) (a) of the Local Government Act provides that bye laws made by Municipal Councils shall be subject to sub section (2) of section 38 of the local Governments Act. The implication is that a bye law made by the Municipal council is forwarded to the Attorney General through the minister to certify that the bye law is not inconsistent with the constitution or any law enacted by parliament before the

mayor signs it. In case of city council, the laws made are forwarded to the Attorney since section 4 (a) provides that a city division shall be equivalent to a municipality.

Municipal Divisions and Villages

Section 39 (2) (c) of the Local Governments Act provides that the Municipal, villages and Municipal Division Councils shall forward their bye laws to municipal councils to certify that they are not inconsistent with any law or ordinance or bye-law passed by a higher council.

Other Lower Local Councils of the District

Other Lower Local Councils like the sub-counties and town councils are mandated by section 39 (2) (b) of the local Governments Act to forward their laws to the district council for certification. The rural villages councils send their laws to their sub-county council. The city divisions send them to the city council. The higher councils certify that the laws are not inconsistent with the any law or ordinances or any law passed by a higher council.

NB: Procedure for making laws by lower local governments see schedule 3 regulation 22 (1-6).

Jurisdiction for local legislation

The jurisdiction of legislative powers is confined to geographical limits and the distribution of powers as contained in the 2nd Schedule to the Local Governments Act. There are also specific restrictions to legislative powers in S. 39 and 40 of the Local Governments Act.

Tests of Validity of the Local Legislation

Ordinances made by District Councils and bye laws made by lower local governments can only be valid if they pass the following tests.

Constitutionality

S. 38 and S. 39 are both clear that the ordinances and bye laws should not be inconsistent with the Constitution. According to **Art 2 of the Constitution**, if any

law is inconsistent with the Constitution, such a law shall be void. To avoid this situation, the procedures require reference to Attorney General for certification that the proposed law is in conformity with the Constitution.

Acts of Parliament

S. 38 and 39 of the Constitution also provide ordinances and bye laws must be in conformity with other laws enacted by Parliament. To this end, the ordinances and bye laws should not exceed the powers granted under the Local Governments Act or any other Act of Parliament. It is also the responsibility of the Attorney General to review proposed bills and advise on their compliance with Acts of Parliament.

Certainty

Laws must be clear and unambiguous. They must be clear as to what is permitted or prohibited. They must be clear as to sanctions or consequences of non-compliance. In the case of **R Vs Harmittee**, the appellant was convicted of breach of a rule that provided that **“No person shall cause any disturbance so as to be an annoyance to any residents or passengers”**. The court held that such a law was ultra vires because it was uncertain. It was not clear on what is prohibited or authorised.

Reasonableness

Laws must be reasonable in the context of the local community. Unreasonable laws can be struck out by courts. In **Kanji Vs Tanga Township Authority**, a rule which took away the presumption of innocence was regarded as unreasonable. The rule provided that **“No person shall know or deposit in or upon any street dust, refuse or noxious matter. Any such accumulation being in front of any house shall be *prime facie* evidence that the same has been through there or deposited the occupier of the house”** The court held that such a clause was unreasonable.

Ultra Vires Doctrine

Laws must comply with the subject matter jurisdiction as provided for in the Local Governments Act and other Acts of Parliament. The relevant public authorities at local government level must also be properly constituted in terms of membership and quorum.

Procedural *Ultra Vires*

The established procedures must be complied with. In **Wakiso Estates Vs R**, the court set aside regulations which the Governor had enacted without following established procedures. In that case, the Statute provided that the Governor shall enact regulations which will only be enforced after being laid before the legislative Council. The Governor had omitted that procedure. The court held that the regulations could not be enforced because they were invalid.

Therefore, failure to make the necessary publication or approval of Attorney general or omission of other procedural requirements renders the ordinance or bye law a subject of challenge.

Planning Powers

Local Governments are given power to draw up development plans for their local areas. The local development plans are supposed to be integrated into national plans by the National Planning Authority.



Financial Powers

The financial powers of local governments are based on the following constitutional principles:

1. Local governments must have a sound financial base with reliable sources of revenues.
2. Local governments must be able to plan, initiate and execute their own projects and programmes within their local areas.

The above principles are given a legal framework under the Local Governments Act. The Act gives:

1. Sources of local government finances.
2. Acceptable expenditures and procedures.
3. Controls over local government financial powers.

Sources of Local Government Finances

Section 80 of the Local Governments Act provides local Governments powers to levy, charge and collect fees and taxes as a means to generate local revenue. The fifth schedule of the Local Government Act spells out the regulations governing the Local Governments revenue. The sources of revenue for Local Governments include:

Grants to Central Government

Article 193 of the Constitution and S. 83 of the Local Governments Act provides that the President shall for each financial year propose grants to be approved by Parliament for purposes of financing local government operations. These grants include:

- a) **Unconditional grants** – this is minimum grant given to Local Governments to run decentralized services. Local Governments have independence, to a great extent as to how to budget for this grant, taking into consideration the national priority programme areas.
- b) **Conditional grants** – being money given to local governments to financial projects or programmes that are agreed upon between the Central Government and Local Government.
- c) **Equalization grant** – this is money paid to Local Governments for special provisions for the least developed districts. It is based on the degree to which a local Government is lagging behind the national average standard for a particular service.

Taxes, Fees, Charges, etc

Article 191 of the Constitution and S. 80 of the Local Governments Act allow local governments to levy, charge and collect fees and other taxes, including rates, rents, royalties, stamp duties and registration and licencing fees.

Local Service Tax

This tax is levied under the Local Service Tax Act 2006. It is based on productive activities of the population.

Borrowing

Local Governments have powers to borrow funds for purposes of its operations.

Grants on Non Government Services

Local Governments are empowered to receive gifts or donations for purposes of their operations.

Investments

Being corporate bodies Local Governments are also may make investments and can therefore receive funds as returns on investments. This is rare given the levels of funding.

Controls over Local Government Financial Powers

There are various controls that ensure that Local Government financial powers are not abused. These include:

1. Planning Process

Local Governments are expected to appropriate funds to the projects and programmes that have been agreed upon in their development plans.

2. Budgetary Process

Under S. 77 of the Local Governments Act, local governments have powers to formulate, approve and execute their own budgets. Under S. 81, no funds may be appropriated except in accordance with a duly approval budget.

3. National Priorities

Local Government budgets must reflect national programmes priority areas. It is the duty of the Local Government Financial Commission to advise the President where a

local government fails in this obligation. It is expected that the President will take appropriate action.

4. Accounting Officer

The Chief Administrative Officer is also the accounting officer. He/she takes responsibility to ensure that all financial transactions conform to budgets and the Local Government financial regulations, procurement and other accountability laws. The accounting officer is answerable to Parliament and can be personally held responsible for any financial loss.

5. Internal Auditor

This is a statutory office which has responsibility of ensuring that all financial expenditures are incurred in accordance with the relevant regulations and standards.

6. District Public Accounts Committee

This is a statutory committee whose responsibility is to examine reports of Auditor General and Commissions of Inquiry and make appropriate reports to the Minister.

7. Inspectorate of Government

Inspectorate of Government has constitutional and statutory powers under the Leadership Code Act to investigate any cases of financial indiscipline.

8. Books of Account

Local Governments are under a duty under S.86 of the Local Governments Act to keep proper books of accounts.

9. Auditor General

Auditor General audits all Local Governments books of account and makes reports to Parliament and the District Public Accounts Committee.

10. Procurement and Disposal of Assets

The procurement and disposal of assets of a local government is governed by the provision of the Public Procurement and Disposal of Assets Act. This Act aims at

transparent procurement and disposal of assets processes and also aim at value for money procurement.

11. Resident District Commissioner

Under S. 71 of the Local Governments Act, the Resident District Commissioner has powers to monitor activities of a local government and can draw to the attention of the Auditor General the need for special investigation audits.

Administrative Powers

The administrative functions of local governments are performed by district officers through administrative units. S. 45 of the Local Governments Act establishes administrative units at county, parish and village levels. Administrative powers are exercised by district officials and departments.

Local Governments Act

The administrative powers of a District local government are entrusted to the Chief Administrative Officer. The Town Clerk has administrative powers over an urban administrative council like a town, municipality, and a city.

The Chief Administrative officer or Town Clerk is assisted by Deputies and assistants. Other administrative functions are performed by Heads of Departments and district officers appointed by the District Service Commission.

The administrative functions of officers include the implementation of Government and Local Government policies and the execution of laws by the central and local governments. The specific administrative functions are set out in 64, 65 and 69 of the Local Governments Act.

Read S. 63 to 65 and 69 of the Local Governments Act.

Other Acts of Parliament

Local Governments also carry out administrative functions under various Acts of Parliament e.g. under the **Physical Planning Act**, the local authorities have powers to

ensure planned developments of buildings and structures within their areas of jurisdiction.

In the **Public Health Act**, local authorities have powers to inspect both public and private premises with a view of ensuring that such places are fit for habitation and not dangerous to the general public.

In the **Animal Diseases Act**, local authorities have powers to impose quarantine and other restrictions for purposes of preventing the spread of diseases.

In the **Trade (Licencing) Act**, local authorities have powers to issue licences after duly inspection of places of business. Local authorities can also cancel licences where the holders fail to comply with the licencing conditions.

Under the **Local Government (Rating) Act**, local governments have powers to levy and charge rates on properties within their areas of jurisdiction.

Local Government Employees

The administrative functions are preformed by local government employees. Art 198 of the Constitution establishes a District Service Commission. The function of the District Service Commission are set out in S. 55 of the Local Governments Act.

The main function of the District Service Commission include the following:

1. The power to appoint persons to hold or act in any office in the service of the District or Urban Council;
2. Power to confirm appointments;
3. Power to exercise disciplinary control or district staff;
4. Determine the terms and conditions of service.

The Chief Administrative Officer and Deputy Chief Administrative Officer and Town Clerks are appointed by the Public Service Commission. Other district officers are appointed by the District Service Commission.

The terms and conditions of service for all local government staff are those that apply to the public service generally. It is the responsibility of the Public Service Commission to coordinate these aspects and to ensure uniformity.

Section 11 of The Public Service Act 2008 on Chief Administrative Officer and Town Clerks.

Section 12 of the Public Service Act on the Obligations, Rights and Privileges of Public Officers.

Security of Tenure

Art 173 of the Constitution that protects all public officers from victimization, discrimination or unwarranted removal from office equally applies to officers of the local government. Specifically, and in similar terms, S. 59 of the local governments staff provides that a District officer shall not be victimized discriminated against where she or he performs his or her duties in accordance with the Constitution and other laws. The same section requires that any dismissal or removal from office must be with a **just cause**.

A **just cause** must relate to a breach of a law, standing orders and terms and conditions of service. The established disciplinary processes and procedures must be invoked.

Disciplinary action must be taken by the proper authority. In **Kashaka Muhanguzi Vs Songhor**, the court held that dismissal of Chief Administrative Officer by the Chairperson of the District was illegal. The complainant was reinstated in office.

Similarly, in the case of **The matter of Interdiction of Bukeni Gyabi Fred**, the judge said that the Constitution and the Local Governments Act requires disciplinary action to be taken by the District Service Commission and no other person or authority. The court further said that the District Service Commission is independent and cannot work on the directives of the Executive Committee.

S. 61 in the Local Governments Act provides that the terms and conditions of service shall conform to those prescribed for the Public Service generally. This means that the salary, entitlements and disciplinary procedures are the same like the Public Service. The section however provides for compensation for persons who are removed from the district service contrary to the terms and conditions of service.

This compensation is punitive and high in order to minimize such occurrences.(read s.61 in entirety)

Legal Liability of local governments

S. 6 of the Local Governments Act provides that a Local Government Council shall be a body corporates. The implication of that is;

1. It has perpetual succession i.e. it continues in existence irrespective of the nature of holders of office at a particular time.
2. It has a common seal – all transactions are evidence by affixing thereto a seal as a symbol of authentication.
3. It may sue or be sued in its corporate name. Individual district officers faithfully acting in accordance with the law and on behalf of the Council do not incur individual liability. The Council is vicariously liable for their actions. Likewise, the Local Councils have powers to institute suits in order to protect their legal interests.
4. It may own property in its own name. This includes movable and real property. It is therefore subject to all rights and obligations relating to ownership, control and use of property as if it was a private individual.

Local Governments are liable to legal proceedings as if they were private persons. The provisions relating to proceedings against government apply. Hence the applicable laws contained in the Government Proceedings Act and Civil Procedure (Miscellaneous Provisions) Act apply to local governments e.g. a statutory notice of 45 days must be served on the Chief Administrative Officer before proceedings can be instituted against a local government.

Local Governments can also be subjected to the enforcement processes like individuals. Hence contempt of court processes can be initiated where an officer has disobeyed court orders.

Property of local governments may be attached as a consequence of court orders. However, S. 6 of the Act gives limitation to attachment of property. Only movable property may be attached. Attachment can only be effected after a notice of six months.

Central Government Controls

Why are controls in place?

The Local Government Act gives various controls in which the Central Government is given power to ensure that powers are exercised in a particular way. These controls are put in place to ensure that decentralized powers are abused. Why controls:

1. To ensure compliance with laws.
2. To ensure compliance with national policies.
3. To ensure compliance with government procedures.
4. To ensure efficiency in operatives.

The Controls

Ministry of Local Government

Under S. 98, the Ministry of Local Government has statutory powers to monitor and coordinate the activities of local governments. This ensures uniformity of actions, practices and procedures. It eliminates arbitrary action by local governments.

Line Ministries

Line ministries have powers to guide local governments on the implementation of laws and policies relating to the relevant Ministry. In this regard, the Ministry officials are empowered to inspect local government premises, records and make appropriate findings. Line ministries also handle complaints emanating from local governments as far as they relate to the Ministry.

Minister of Local Government

Minister of Local Government has powers to interfere where a local council is exercising powers unlawfully or inefficiently. The Minister can set up a Commission of Inquiry and make its findings known to the relevant authorities for appropriate disciplinary action.

Inspectorate of Government

The Inspectorate of Government has powers under the Leadership Code Act and Inspectorate of Government Act to take action where there suspicion or allegation of corruption and other forms of abuse of powers in a local government. The Inspectorate of Government can recommend appropriate administration sanctions against public officers who misuse their powers.

Public Service Commissions

(including Education and Health Service Commission)

These Commissions have constitutional duty to **guide and coordinate** the activities of the District Service Commission. This ensures uniformity in terms of procedures of employment, terms and conditions of service and disciplinary procedures. Decisions of the District Service Commission can be a subject of appeal to the Public Service Commission. However the public Service Commission cannot impose its decisions on the district service commissions. In case of differences of opinion the provisions of s.61 will apply.

Office of the President

Under S. 110 of the Local Governments Act, the President may take over the administration of a District under the following circumstances:

1. Where the District Council request so.
2. Where a state of emergency exists in the District of Uganda generally.
3. Where it has become extremely difficult for the district government to function.

This takeover is subject to approval of Parliament as it is for a limited period of 90 days unless extended. In such a period, the President will exercise legislative and executive powers through an appointed public officials

Public Offices and Bodies

There are also other public offices that have a role in ensuring that local government powers are not abused. These include:

Auditor General

Ensures financial discipline in government financial transactions under the Public Finance and Accountability Act and Audit Act.

Public Procurement and Disposal of Assets Authority

Ensures transparent value for money procurement in accordance with established laws and regulations under the Public Procurement and Disposal of Assets Act.

Police

Detects crimes and apprehends offenders. This may especially be effective in cases of fraud, causing financial loss and other economic crimes.

Director of Public Prosecutions

Prosecutes suspects in courts of law. He may take action in cases of misuse of public resources. Advises the President where a local government detracts from national programme priority areas.

Local Government Finance Commission

Advises the President on the level of grants payable to local government and sources of local government revenue.

Regional Governments

Article 178 of the Constitution and S.8 of the Local Governments Act provides that two or more districts **may** form a regional government. Regional governments shall be body corporates with power to handle matters which are contained in the 5th Schedule to the Constitution. These include secondary education, regional roads, regional hospitals, culture, water and sanitation, services surrendered by districts, land use.

Regional governments are supposed to operate through democratically elected assemblies and shall have executive and legislative powers on matters within their jurisdiction. They may raise charges subject to approval of central government. They may also receive reports of accountability from districts.

The **Regional governments Act 2009** was passed to operationalise the provisions of Art 178.

See also The Traditional and Cultural Leaders Act 2011

Kampala Capital City Authority Act 2011

This Act operationalises Art 5(6) of the Constitution which provides for a separate law for management of the Capital City. It provides for a Lord Mayor and political head of the authority. The Lord Mayor presides over the meetings of the Council of the Authority. There is an executive Director who is appointed by the President and is responsible to the Central Government.



JUDICIAL REVIEW

Introduction

Judicial review is a process by which courts of law intervene in administrative decisions. This is done where it is alleged that an administrative decision or action has been made illegally, or a result following wrong procedures or following a process that reflects abuse of discretionary powers.

Judicial Review is contrasted from other legal processes. A complainant who is aggrieved against a decision of an administrative official has many options including the following options for redress.

Objectives

At the end of this session, you should be able to:

1. Know the various legal options available against public officers who act contrary to the law.
2. Understand the Doctrine of Ultra Vires – acting within powers given.
3. Know the relevancy of procedures.
4. Internalize what constitutes abuse of discretionary powers.

Administrative Tribunals

Most tribunals are constituted for the purposes of challenging government administrative decisions. This could include decisions regarding the amount of tax payable by an individual, a decision that one is not entitled to a certain social benefit, a decision that a person should be denied entry to a country or expelled from the same, and a decision that a certain proprietor should not be granted a trading license, amongst others. Others exist as avenues for regulating and disciplining members of a specific profession such as lawyers, members of the medical profession, accountants, surveyors and architects etc

A complainant may file his/her case before an administrative tribunal if there is a law providing for grievances of that nature to be filed in a tribunal. Tribunals are

established by Acts of Parliament. They are given jurisdiction of our particular matter e.g. The Tax Appeals Tribunal is established by an Act of Parliament and it is given powers of resolving tax disputes between the tax payer and Uganda Revenue Authority. Another example is the Industrial Court which is established by the Labour (Disputes) Act to handle disputes between employers and employees on matters relating to employment, Uganda Law Council Disciplinary Committee and the Uganda Medical and Dental Practitioners Council.

Additionally, some tribunals have powers to entertain disputes between citizens and not merely those between government departments and citizens. It should, however, be noted that there are many bodies that function as tribunals although they are described by different names such as “committee” or “council”. It should also be noted that the designation of tribunals as administrative might be misleading. This is because some tribunals decide not merely administrative but also legal issues, they have to establish the facts and apply legal rules to resolve the conflict. Yet there could also be courts that are described as tribunals yet they are courts in a true sense. Tribunals should, however, be distinguished from bodies that are constituted for the purposes of making investigations and coming up with recommendations. These are not tribunals but inquiries, otherwise known as Commissions of Inquiry.

It therefore covers matters relating to terms and conditions of service and other aspects covered in the employment laws.

The powers and procedures of each tribunal is ascertainable from the enabling law of a particular tribunal.

Advantages of Administrative Tribunals

There are a number of advantages associated with tribunals when compared to courts.

1. Tribunals provide simpler, speedier, cheaper and more accessible justice than do the ordinary courts. Another advantage with tribunals when compared to courts is that unlike judges who are generalists and positioned to hear cases in any field of law, persons that have expertise in very specific areas man most tribunals.
2. The experts that man these tribunals are able to use their expertise to understand the precise nature of the dispute and the consequences of any decision, and being

experts in the field, they are able to resolve technical disputes without resorting to time wasting processes of having to call expert witnesses.

3. The tribunals exist in their own right, independent from the judiciary, in spite of this, like the judiciary the powers and jurisdictions of tribunals are defined by legislation, which may also prescribe their composition and whether or not their decisions are appealable and to which forum.
4. It should be noted, however, that these tribunals should not be viewed as agencies that are detached from the judicial system. They are, to some extent, bound by the principles that govern the exercise of judicial power; according to Wade, they are not merely administrative devices for disposing of claims and arguments conveniently. Sometimes their decisions are subject to judicial review and may be set aside should they be found to flout justice. Tribunals are, therefore, to some extent under the direct control of the courts. Yet, in practice, most tribunals proceed in a judicious manner by defining the issues in a dispute, entertaining and evaluating evidence and applying the law to the facts to reach a decision.
5. In addition to the above, tribunals, like courts, enjoy a certain level of independence from the executive branch of the state. This is irrespective of the fact that most of them are appointed by ministers and are under their direct administrative supervision. It is in fact common for government to appoint tribunals composed of persons not connected to the government civil service but who are independent experts in their own right. Indeed, in England, the Frank's Committee recommended that tribunals be regarded as machinery provided for by Parliament for adjudication rather than as part of the administrative machinery. According to the Committee, the intention of Parliament to provide for the independence of tribunals is clear and unmistakable.
6. Historically, tribunals were created to deal with questions of policy rather than law which were considered to be the preserve of the ordinary courts especially in contexts where disputes could be decided according to pre-determined rules. Later it was realized that tribunals offered many advantages compared to courts, as already observed, they are cheaper, speedier and more accessible. This should be compared to judicial processes which are slow, elaborate and very expensive.
7. It should be noted that some administrative functions require that disputes be disposed of very quickly to avoid bringing the administrative machinery to a standstill. Yet, at times the most ideal system of dispute resolution, in some administrative matters, may not be one that is based on adversarial litigation but

one that finds solutions and ensures effective administration. It should be noted, however, that adversarial processes of dispute resolution are very common in many tribunals which makes them function in the same manner as the courts of law, they also allow for legal representation.

The UK has been struggling to effect Tribunals reforms since the 1950s when the Frank's Committee was appointed and its reforms endorsed. Later in 2001, the Leggat Report was published, proposing further reforms. Some of the issues discussed and proposals made by these reforms processes are relevant to Uganda, a country which has not undertaken any tribunal reforms. The Franks's Report took note of the need to ensure that tribunals were treated as part of the machinery of adjudication judicial and not as part of the administrative machinery.

This required the tribunal processes to be open fair and impartial. Although some of the proposals made by Frank's Committee were implemented, the main one being the established of the Council of Tribunals, major problems still remained. The Leggat Committee was required to look into issues of fairness, timeliness, proportionately, independence and impartiality, funding and management systems and performance standards of tribunals.

The Leggat Committee found that Tribunals had grown in a haphazard ways that only meet the needs of the departments under which they are set up. The biggest concern was with the lack of independence and impartiality in its tribunals.

The respect departments that sponsored the tribunals developed their legislative framework, developed the tribunal rules and procedures and appointed the chairpersons/members. The Leggat Report recommended the established of a Tribunal Service, analogous to the court service, under which all Tribunals would be placed.

Appeals

A person aggrieved by a decision of an administrative tribunal may also make an appeal against that decision. An appeal is a request made to a higher authority seeking a reversal of an earlier decision. Appeals can only be instituted in the following circumstances.

1. Where there is a law providing for the right of appeal. There is no general right of appeal against administrative decisions. Appeals are creatures of statutes. An aggrieved party can only institute an appeal if there is a statutory provision putting in place that right of appeal. In **Karimari Corner Bar and Restaurant Vs Embu Liquor Licencing Court (1967) EA 426**, the appellant was denied a new liquor licence. He lodged an appeal against that decision. The relevant law did not provide for a general right of appeal against all decisions of the licencing authority. In the relevant statute, appeals could only be lodged against decisions to renew or transfer a licence. The appeal therefore failed on grounds that there was no right of appeal.
2. Where the aggrieved party seeks a reversal of an earlier decision. Appeals normally seek a reversal of decision which is already made. There is no appeal where the decision is not yet made. There is nothing to reverse.
3. Appeals can lead to a reconsideration of the merits of a particular decision. In the case of **Kenya Aluminum Vs Minister of Agriculture**, the judge said that:

Where a right of appeal is entirely unrestricted, it is open to the court to hear all the evidence that has been adduced and substituted its decision thereon for that of an administrative agency.

In this respect, an appellant court or tribunal can also try the case as if it was the court or tribunal of the first instance. Appeals are therefore for reconsideration the merits and not purely on procedural issues.

4. Where the appellant falls within the specified grounds for appeal. The law providing the grounds of appeal also sets out the grounds on which the appeal may be based. Appeals may be on grounds of interpretation of law or on grounds of facts. An aggrieved party cannot lodge an appeal unless he/she falls within the specified grounds.
5. An appeal may also be restricted by time limits Judicial Review is however normally open and can be brought at any time. In **An Application of Punja Shah**. The statute provided for the time limit of 21 days in which an appeal could be made. The decision which was subject of complaint was communicated after expiry of the period in which the appeal could be made. In such circumstances an appeal cannot be made unless there is a waiver of the time limit. The court however may exercise its discretion to review this matter on its own merits.

Legal Suits or ordinary suits. (This aspect is discussed in detail in another section)

Judicial Review

Persons aggrieved by decisions of administrative authorities may apply for judicial review. Judicial review can be justified on the provisions of Art 42 of the Constitution which provides that:

“Any person appearing before any administrative official or body has a right to be treated justly and fairly and shall have a right to apply to a court of law in respect of any administrative decision taken against him or her”.

Furthermore, Art 28 of the Constitution provides that:

“In determination of civil rights and obligations or any criminal charge, a person shall be entitled to a fair, speedy and public hearing before an independent and impartial court or tribunal established by law”.

The powers of judicial review are also contained in the S. 36 of the Judicature Act which provides that the High Court shall have powers of review and shall have powers to grant prerogative remedies of certiorari, mandamus and prohibition.

Grounds for Judicial Review

Judicial Review is applicable in the following situations:

1) Where the aggrieved party has exhausted the local remedies

S.36 (4) of the Judicature Act provides that the prerogative remedies of certiorari and prohibition shall not be granted to a complainant unless such a party had exhausted the available local remedies. This means that where the law provides for appeals, the appeals processes must be completed before a party becomes eligible for judicial review. Similarly, where a tribunal is established to solve a particular dispute, the courts are not expected to hear those disputes except where parallel jurisdiction is justified e.g. the case of **Rabo Enterprises (U) Ltd Vs Commissioner General of URA (2003)**. According to S. 36 (2), the High Court will not embark on the review process if the outcome is likely to render its orders unnecessary because the case has been decided elsewhere. It is the responsibility of the courts to handle disputes that cannot be settled out of court. Avoiding other

non litigation processes may also be interpreted on as abuse of court process. It may be an issue to be considered during the taxation of costs.

2) Grounds for Judicial Review

An applicant for judicial review can only succeed where it is proved that the case falls within the specified rounds for judicial review. In the case of **CSSU Vs Minister of Public Service**, the grounds for judicial review as follow:

- i. Illegally (substantive *ultra vires*) or
- ii. Procedural impropriety (procedural *ultra vires*)
- iii. Irrationality (Abuse of discretionary powers)

3) Where the complaint is about Process / procedure

An applicant for judicial review must be raising complaints about how a particular decision was arrived at. This therefore involves questioning the process leading to the decision. Judicial Review does not lead to examination of the correctness or the merits of a particular decision. It leads to examination whether the process leading to a decision is what ought to have been in motion. The process leading to a decision includes the following:

- b) **Jurisdictional issues** – Has the decision been made by the relevant authority?
- c) **Procedural matters** – Has the relevant authority followed the established procedures for making a particular decision?
- d) **Abuse of powers** – Are their aspects of abuse of power in course of making a decision?
- e) **Principles of Natural Justice** – Has the relevant authority applied the principles of natural justice?
- f) **Evidence** – Is there evidence to lead to a particular conclusion?
- g) **Reasons** – Has the relevant authority given reasons for a particular decision?
- h) **Errors on record** – Are there apparent errors that affect the authenticity of a decision?

There is no pre-determined appeal process and procedures that apply to all tribunals, yet the right to appeal is not automatic, it must be granted by legislation. It should be

noted though that courts have powers to review tribunal decisions if they are based on an error of law or if it is clear that the rules of natural justice have been abrogated. Decisions of certain tribunals may either not be appealable or appealable to another tribunal, minister or even to a court of law. It should be noted, however, that whatever the case may be, any decision of any tribunal taken outside its jurisdiction is subject to review by the ordinary courts. If a tribunal exceeds or acts outside the law by which it is constituted it will have acted outside its jurisdiction. This is in addition to acting outside the rules of natural justice. In *Chiotram v Mystery Model Hair Saloon*, it was held that:

Where a statutory tribunal sits to administer justice it must act in accordance with the law, if it does not the courts are entitled to make a declaration to the effect that the tribunal has not complied with the law.

The Court also held that the lack of jurisdiction for tribunals may arise either from the fact that the formalities or conditions precedent for the tribunal to exercise its jurisdiction are absent. It could also arise from the fact the tribunal has made an order it has no powers to make. The Court added that a tribunal will have also acted outside its jurisdiction if it departs from the rules of natural justice.

In the case, the Court found that the tribunal has acted outside its jurisdiction because it made an order it was not authorized to make. The tribunal had awarded compensation to a tenant arising out of damage occasioned by the landlord.

The Court held that the power to of a tribunal to award compensation must be expressly given by Parliament and cannot be implied. The Court observed that compensation for damages is a matter for the ordinary courts on whose jurisdiction pecuniary limits have been placed

In *Pritam v Ratilal* the Court held that a decision made by a tribunal outside its jurisdiction is a nullity and should be reviewed and set aside. The Court found that the tribunal in the case had acted outside its jurisdiction because the parties were not subject to its jurisdiction, their relationship as landlord and tenant had ceased to exist. Failure on the part of the Plaintiff to refer a notice to the tribunal had effectively terminated the tenancy.

4) Nature of Remedies to be obtained

According to S. 36 of the Judicature Act, the prerogative remedies of mandamus, certiorari and prohibition can only be obtained from the High Court. These public

law remedies can only be obtained through a process of judicial review. Hence a party seeking any of these remedies has no option but to apply for judicial review. Other remedies like damages, injunctions and declarations may be obtained from ordinary courts without following the process of judicial review.

Doctrine of Ultra Vires – or Illegality or Substantive Ultra Vires

Ultra Vires means acting beyond the powers which are given. It is contrasted from *intra vires* which means within the powers given. Public authorities are given specific powers, functions and responsibilities. They use these powers, functions and responsibilities in order to achieve the objectives of a particular statute. A typical statute will normally have a section on the objectives for which it was enacted. The powers, functions and responsibilities are also contained in the statute.

Ultra vires arises where an authority exercises powers, functions or responsibilities that the law does not confer on it. It may arise in the following situations:

The Subject Matter

Ultra vires may arise where a public authority purports to exercise a power, function or responsibility that the law does not grant. In the case of **Re Abdalla Ali**, the Principal Immigration Officer served the applicant with a deportation order. Under the law, the Principal Immigration Officer had powers to deport non citizens. It was established that the applicant was a Tanzanian citizen and not a non citizen. The High Court granted orders of prohibition against the Principal Immigration Officer in so far as he was trying to bring his jurisdiction over a matter that the law did not place under him.

Action or Decision by the wrong person or authority

Decisions must be taken by the proper authority. They must be a person entrusted with the powers under the law. Thus a power exercised by the Chief Administrative Officer of a District cannot be exercised by the Chairperson of the District. It does not matter whether the person exercising the power is a superior officer. Same for cases of proper ratification, power exercised by the wrong person or authority is an illegal execution of powers.

Body not properly constituted

A public body which has statutory powers must be properly constituted before it can exercise powers. In the case of **Hon. Mukasa Fred Mbidde & Hon. Michael Mabike Vs Law Development Centre Hct-00-Cv-Ma- No. 0002 Of 2013** court held that *"It is clear that this committee is charged with an important duty of conducting an inquiry or investigation with a view of making recommendations, affecting the rights of the citizens. As correctly described in paragraph 15 of the said affidavit in reply, it is "a quasi-judicial entity". For this matter it must be constituted in accordance with the law if it is to assume such important jurisdiction"*.

A body is improperly constituted in the following situations:

1. When the required number of members is not appointed or where there is no body constituted in accordance with the law, then there is no proper authority.[read **Hon. Mukasa Fred Mbidde & Hon. Michael Mabike Vs Law Development Centre Hct-00-Cv-Ma- No. 0002 Of 2013**]
2. When the required quorum is not in place as was the case of **Virji Vs Puuja Lila**. The quorum required to conduct business was not realized. The Chairman sat alone and determined the rent payable by tenants. He made his decision to be that of the Rent Tribunal. The court held that the decision had been taken by the wrong authority because the quorum requirements had not been met.
3. **Where non-members participate**

A body is not properly constituted where non members are admitted and participate in the proceedings. In the case of **Dent Vs Kiambu Liquor Licencing Court**, the Liquor Licencing Tribunal allowed non members to attend the courts meetings. The court also allowed them to debate whether the applicant should get a licence. They also voted against the issue of the licence to the applicant. The High Court held that the licencing body had made a decision when it was not properly constituted.

4. Members do not participate fully

A body is also not properly constituted where the minimum membership does not fully participate in the proceedings. Members are expected to take part in hearing all the evidence, evaluating the evidence and making the decision. A decision that does not reflect full participation of all members runs the risk of being set aside. In **Annebrit Aslund Vs Attorney General**, the Commission of Inquiry into Uganda

Revenue Authority was composed of three Commissioners. They disagreed on some aspects of evidence and could not submit a report that reflects the views of the Commission. A final report was not signed by all the Commissioners. The court allowed the applicant to challenge any references to her in the report. The court purged references to the applicant and ordered that the part of report of making references to her could not be used as a basis for further action.

5. Unlawful Delegated Powers

Ultra vires also arises where there is illegal delegation of powers. Unlawful delegation of powers arises in the following instances:

- (i) Where there is statutory prohibition e.g. S.175 of the Local Governments Act.
- (ii) When the maxim of delegates non potest delegare applies. Second delegation is prohibited.
- (iii) Where there is delegation of discretionary powers.
- (iv) Where there is delegation of judicial powers.

Unlawful delegation does not give authority to the delegate. Once this occurs, then the delegate is action *ultra vires*.

In **Rahemutula Gulamani Vs R**, the Cotton Ordinance gave powers to the Governor to make rules for destruction of cotton plants after the picking seasons. The Governor made a rule that authorized the Director of Agriculture to fix a date prior to which all previous seasons cotton should be uprooted and burnt. The Director of Agriculture issued the relevant rules. The accused failed to comply with them and was prosecuted. He successfully argued in court of law that the exercise of the power granted to the Governor by the Director of Agriculture was *ultra vires*. The rules were therefore unenforceable.

6. In addition, the proper authority may also not be properly constituted where provisions relating to quorum are not fulfilled i.e. a minimum number of required members are not realised. In **Sunderji Virji Vs Punja Hila (1959) EA 734**, the rent restrictions act gave power to the rent tribunal to determine the amount of rent that was to be paid by tenants to land lords. The chairman of the tribunal sat alone and determined the rent payable as between tenants and land lords. Court held that the

act of the chairman was ultra-vires because the tribunal could only reach such decisions when it had a minimum membership present.

Procedural Ultra Vires

Procedural *ultra vires* arises in a situation where the relevant authority acts contrary to the established procedures. Procedures are normally ascertainable from the Constitution, Acts of Parliament, and subsidiary legislation. Sometimes the Acts of Parliament leave the relevant authority to put in place rules of procedure to govern its operations.

The usual procedural requirements in the exercise of public administrative powers include:

1. Consultation (revisit Administrative Process)
2. Antecedent publication (revisit Subsidiary Legislation)
3. Approval
4. Posterior Publicity (Gazette)
5. Registration
6. Inspections

Consultation

Many laws require consultation to be made after a consultative process. This will raise issues which need to be answered by a particular policy or law. Statutes will normally indicate who should consult who; a person to consult is usually a person charged with formation of a particular law or policy. They also normally provide / indicate who consulted include interest groups, professional body which is in line with that activity, government departments. The main purpose of consultation is to ensure that the resultant policies /laws are accepted by the greater majority of persons and once they are accepted they are easy to implement. Failure to consult means that the Public Authority has acted ultra-vires and the decision which follows will be regarded as void.

Gazetting in promulgation

It is a requirement under many laws e.g. election laws, land Act, companies act etc. Local Government Act requires gazetting subsidiary bye laws or ordinances. For instance **Section 38 (4)** of the Local Government Act provides that a bill enacted by the district council and signed by the district chairperson under this section shall be an ordinance of the council and shall be published in the official Gazette and in the local media.

Furthermore, the requirement of gazetting is found in the interpretation act, under the Interpretation Act between sections 13-16. There is a requirement in all subsidiary legislation, in whatever form or name must be gazetted before courts can take their validity of existence (judicial notice). In **Mwanji Vs R**, Court held that regulations which purport to amend some existing legislation must be gazetted in accordance with the provisions of the interpretation act. Where gazetting is not done, such regulation cannot be enforced.

Antecedent publication

Some laws require publication before enactment of regulation. This is usually a form of a consultative process. It enables the affected persons to know what is being proposed and to give their views on the proposals. Antecedent publication may be in the Uganda gazette e.g. under acts of parliament act. It may also be in any other publication like newspapers, or by putting the publication in a conspicuous place or in a place accessible to the public like it is a requirement in a local government act (proposals and bye-laws). The third schedule to the **Local Government Act** requires in paragraph 16 that the council shall, not later than fourteen days before a bill is to be debated by the council, publish the draft (a) by fixing a copy of the bill in a conspicuous place on or near the outer door of the office of the district council during office hours; (b) by including the bill as a supplement to an official local publication, if any; (c) by availing copies of the bill to the public; or (d) in any other manner as is customary in the area. (2) There shall be attached to the bill for publication a short memorandum signed by the person introducing the bill, setting out the policy matter of the bill and how the bill seeks to implement that policy.

Approval

Some statutes require that certain decisions be approved by a particular public body, such a public body may be a minister, and statutory corporation e.t.c. **S.175 of Local Government Act** gives power to the Minister of Local Government power to amend

the schedules of LGA. It also requires that such amendment should be approved by cabinet. Failure amounts to ultra-vires and nullity.

Laying before parliament

This is not the usual procedure under the modern statutes, but there are some old statutes of parliament which require subsidiary legislation to be laid before parliament before laws become operational. In **Wakiso Estates Vs R**, there was a legal requirement that regulations made under the labour ordinance be laid before the legislature before they could become operational, this regulations were not laid before the legislature as according to the provision of the ordinance. Wakiso estate was prosecuted for breach of these regulations. They challenged the validity of the regulations because they had been enacted by not following the procedures envisaged under the ordinance. Court held; that regulations were invalid and ultra-vires in so far as they procedures were concerned.

In **Ridge Vs Baldwin and others**, this was a case involving disciplinary proceedings against a chief constable police, he was dismissed but the relevant committee did not give him a hearing as required by regulations which concerned disciplinary proceedings in the police force and he challenged the outcome of those proceedings. Held that in as much as the decision was arrived at in complete disregard of the regulations, it must be regarded as void and of no effect.

Principles of natural justice also require the relevant authorities to follow common law procedures which are not found in statutes. Breach of those procedures is subject of denial of principles of natural justice. It is not necessarily ultra-vires. Ultra-vires can only be outside the scope of a particular law.

Research

Grounds of judicial review were summarised by **Lord Diplock in Government Committee Headquarters Vs Minister for civil service** that the grounds which an administrative action may be subject to judicial review... would call it ;-illegality, irrationality and procedural impropriety.

Question; Does failure to follow procedure render an act void?

Effect of Failure to follow Procedures

There is no general rule regarding the effect of failure to follow procedures. However, there are some basic principles that can be used in situations where procedures are not followed has not taken place.

Judicial decisions are to the effect that the following considerations should be used in cases where the relevant authority failed to follow procedure:

1. Whether the requirement was mandatory, directory or optional

A requirement is mandatory where it must be complied with e.g. where the law provides that the relevant authority “must”, “shall”, “be under obligation”, “compulsory follow” certain procedures. In that case failure to follow the established procedure will be regarded as invalid exercise of powers e.g. In **Semwogerere and others Vs Attorney General**, the court nullified an Act of Parliament which was enacted without taking procedures which was set out in the law. See also *Agriculture, Horticulture and Forestry Training Board Vs Aylesbury Mushrooms*. In that case, the Minister was required to consult scheduled organizations before constituting a Training Board. He consulted most of the organization but not the mushroom growers yet they were scheduled. The court said that the required was mandatory and failure to follow it makes the decision void against those who should have been consulted.

De Souza Vs Tanga Town Council – The court held that where rules of procedure are set out, the rules must be followed or else the action can be set aside.

A requirement is **directory** where it indicates how things shall be done. In such a case, it operates as a guideline on how a particular act shall be executed.

A **directory** provision if not followed does not necessarily lead to invalidation of an act or decision. An optional or discretionary rule of procedure does not enjoin the particular authority to act in a particular way. If not executed, there is no breach of procedures because the authority has a choice of action.

2. The Extent of Non-Compliance

Courts can also determine the consequences of non-compliance by reference to the extent of non-compliance. Wanton disregard for procedures without sufficient

reason will not be accepted by courts. On the other hand, honest mistake, acting in good faith or impossibility of enforcement of procedures may mitigate the disregard for rules. A public authority may demonstrate that it tried to comply with the rules but failed to fulfill all requirements for no reasons beyond its control. In such cases, the courts may not invalidate the decision. If compliance is substantial the courts are not likely to annul the decision – See *Rtd (Col) Dr. Kiiza Besigye Vs YK Museveni & Anor Election Petition No. 1 of 2006*.

3. Effect of Non-Compliance

Courts will also evaluate the effect of non compliance. If the effect on non compliance relates to individual rights and freedoms, then the courts are likely to take a weak view on the outcome. Furthermore, if non-compliance leads to a substantially different result compared to what could have resulted from compliance, and then the courts are likely to invalidate the decision. In **Besigye Vs Museveni (2001)** and **Besigye Vs Museveni (2006)**, the court was of the view that the electoral irregularities including failure to comply with procedural requirements did not substantially affect the outcome of the electoral process.

4. Whether there was an established practice

In **Mwangi V R**, the appellant was prosecuted and convicted for breach of regulation relating to overcharging for a hair cut. The regulation had been issued in the gazette relating to the price of hair cuts. The regulations were subsequently amended but not gazetted. The court was of the view that following the established medium of communicating regulations i.e. gazetting was fundamental. The case suggests that once an authority has established a particular procedure of carrying out a public function, it should follow that procedure or else its actions may be challenged. This avoids arbitrariness and ensures predictability in performance of public functions.

Abuse Of Discretionary Powers

Some Acts of Parliament give administrative authorities discretionary powers to make decisions or take action on the basis of their own judgment. The provisions that give discretionary powers are expressed in a permissive way and in a way that suggests freedom of action. These provisions use words or phrases that give the

relevant authority. Such freedom of action include “may”, “if deems fit”, “in its judgment”, “deems necessary”.

Discretions allow the holder of discretionary powers to decide on the following:

1. Whether a particular decision or action can be taken.
2. When a particular decision or action can be taken.
3. How particular decisions can be made.

Legal Control of Discretionary Powers

The required principle is that discretions must be exercised in relation to the objectives of a particular statute. Discretions must aim at achieving the objectives set out in the enabling law. Discretions must be exercised judiciously. That is to say, they must:

1. be in accordance with the law;
2. taken into account relevant facts and evidence; and
3. respect rights of persons e.g. principles of natural justice.

As a general rule, there is nothing like absolute discretion irrespective of the wording of a statute. Hence the exercise of discretion must be controlled. A public authority can be subjected to judicial review if it has abused its discretionary powers. Abuse of discretionary powers arises in the following situations:

1. Taking into account irrelevant considerations
2. Using discretions for improper purposes
3. Unreasonableness
4. Negligence
5. Fetter of discretionary powers
6. Acting without evidence
7. Failure to give reasons
8. Bad faith
9. Error on record.

Irrelevant Considerations

As indicated, discretion must aim at achieving the objectives of a particular legislation. The relevant authority must therefore take into account relevant facts and disregard irrelevant considerations.

In the case of **Associated Provisional Picture Houses Vs Wednesbury Corporation**, the judge summarized this principle as in the following words:

“The exercise of discretion must be a real exercise of discretion. If in a statute conferring discretion, there is to be found expressly or by implication matters which the authority exercising discretion ought to have regard to, then in exercising discretion, it must have regard to those facts. Conversely, if the nature of the subject matter and the general interpretation of the Act make it clear that certain matters would not be germane to the matter in question, and then the authority must disregard those irrelevant collateral matters”.

The following cases illustrate the use of irrelevant considerations in the exercise of discretionary powers.

In **Re Application of Bukoba Gymkhana Club**, the Club had held a licence for over 30 years. When it applied for renewal, the relevant licencing authority declined to give approval. The reason given for the refusal was that the club's rules of admission made it difficult for Africans to become members. This was not one of the conditions of the licence. On review, the court ruled that the licencing authority had abused its discretion by considering admission rules which were not relevant to that particular licence.

In **Fernandes Vs Kericho Liquor Licencing Company**, the application for a licence was denied on grounds of the fact that the applicant was not a Kenyan citizen. Citizenship was not a condition of licencing. The court held therefore that citizenship was an irrelevant consideration which should not have influenced a licencing decision.

Statutes sometimes give the conditions or requirements of inspections, registration or licencing of activities. In such cases, there will be relevant considerations.

Article 21 of the Constitution gives general matters that are generally irrelevant in the making of administrative decisions. These include sex, race, colour, ethnic

origin, tribe, birth creed or religion, social and economic standing, political opinion or disability. The same article however makes it politically correct to practice affirmative action in respect of correcting historical wrong and addressing disadvantages or marginalization suffered by some sections of society. In this regard, policies like 1.5 points awarded to females for admission to public universities have been put in place. Otherwise it would have been an irrelevant consideration to use gender of persons for purposes of admission.

Improper Purposes

Discretions must be used to achieve the objectives of a particular statute. It should not be used to attain another objective however noble it is. Use of discretionary powers to achieve another objective other than those anticipated by statute is not only *ultra vires* but also an abuse of discretionary powers. In the case of **Sydney Municipal Council Vs Campbell**, power was given to local authority to acquire land for purposes of remodeling the city. The local authority used that power to acquire land with the stated objective that it (the land) would be disposed off at a later state at a premium. The acquisition was challenged and the court held that this was an attempt to use statutory powers to achieve objectives which are not anticipated under the enabling law.

In **Roberts Vs Hopwood**, the local authority had powers to determine wage levels within the local authority. It used that power to decide that henceforth men and women would earn the same wages. These judges said that this was an attempt to use statutory power of setting wages in order to achieve socialist philosophy and feminine ambition of equality of sexes. Such a decision cannot however be upheld under our Constitution in light of Art 21 but it is an illustration of improper purposes.

Improper purposes are usually those different stated objectives. Statutes are usually drafted to include all relevant purposes. These also include collateral or incidental purposes of a particular law. Where two purposes appear to be in conflict, the law will always look at the dominant purposes as a guide to the real objectives. Improper purposes usually include economic gain, discrimination, favouritism and other sectarian considerations.

Unreasonableness

Unreasonableness is an aspect of abuse of discretionary powers. Reasonableness reflects what is acceptable in a particular society. Discretion does not confer on the relevant authority power to make decisions that are not reasonable. What is reasonable depends on the judgment of a reasonable person in a particular society. What is reasonable may relate to:

1. What is practicable or enforceable
2. What is affordable
3. Manners and codes of behaviour
4. Costs of operation
5. Status of persons
6. Cultural matters
7. Ambiguity and uncertainty

In **R V Harmitte**, a local authority had powers to enact bye laws. It made a law which provided that:

"No person shall create any disturbance so as to be an annoyance to any resident or passenger".

The bye laws as declared to be unreasonable because it could not with certainty indicate the scope of prohibition. What constituted "annoyance" or "a disturbance" was not clear. It was therefore unenforceable.

Unreasonableness has also been extended to:

1. Partial and unequal treatment of persons.
2. Unjust measures
3. Oppressive decisions
4. Absurdities

In **Re Bukoba Gyamukhana Club (1963) E.A 478**, Court held that a licencing authority had acted unreasonably where he refused a licence by considering irrelevant factors.

The question of reasonableness depends on what is acceptable in that particular society or establishment.

In *Robert Vs Hopwood* [1925] All ER 24; [1925] AC 578, Court held that it was unreasonable for Public Authority to use its discretionary powers regarding wages and put in place provisions that require payment of equal wages to men and women.

Principles of Natural Justice

Introduction

It should be noted that tribunals make decisions that affect people's life and in some instances they determine whether or not an individual is entitled to certain rights or benefits. These functions make tribunals part of the justice dispensing machinery of the state. As a result, tribunals should adhere to certain principles and standards of administration of justice. They have to follow the rules of natural justice, have to be fair and impartial, proceed in an open manner and, unless the interests of justice would suffer, should allow for legal representation.

Definitions

Natural Justice has been variously defined. Folkes defines it as "*the basic irreducible standard with which administrators are required to comply*". In *Ridge – V – Baldwin* (1963) 1 QB 539 at 578] Harman L J defined it as *fair play in action*.

In Administrative Law, natural justice is now a well defined concept comprising of two basic rules or principles of fair procedure ie

A person affected by a decision has a right to be heard - Audi alteram partem

A person taking a decision must not be biased - nemo iudex in causa sua.

The rules of natural justice are based on the need that authorities make decisions in a manner that is procedurally fair in reaching any decision that potentially affects people's life.

Natural justice establishes procedural safeguards that ensure that decisions are reached in a fair manner. Natural justice manifests itself in two broad principles:

1. A man may not be a judge in his own cause, and
2. A man's defence must always be heard fairly, in other words, no one may be condemned unheard.

Both sides should be given the opportunity to present their cases and defences before a decision is reached. The opportunity given to the parties must be meaningful and should be extended to both parties in the same way without any unjustifiable discrimination.

If the tribunal is of a nature where legal representation is allowed then all parties should be afforded the opportunity to have their case presented by counsel of their choice. A tribunal has to adhere to these standards; otherwise, any decision reached by this tribunal may be rendered void.

Background

Natural justice is a legal philosophy used in some jurisdictions in the determination of just, or fair, processes in legal proceedings. It is sometimes taken as a process of rational logical deduction. The concept is very closely related to the principle of natural law (Latin expression of *jus naturale*) which has been applied as a philosophical and practical principle in the law in several common law jurisdictions, particularly the UK and Australia. According to Roman law certain basic legal principles are required by nature, or so obvious that they should be applied universally without needing to be enacted into law by a legislator. The rules or principles of natural justice are now regularly applied by the courts in both common law and Roman law jurisdictions. Natural justice operates on the principles that man is basically good, that a person of good intent should not be harmed, and one should treat others as one would like to be treated.

Natural justice in judicial, quasi-judicial and administrative decisions

In English common law, there was a time of confusion, when the courts held that natural justice was thought to be applicable only when the act in question was classified as judicial rather than executive or administrative in nature. The courts were of a view that natural justice did not apply in decisions of a purely administrative nature. (See Foulkes at Pg. 365). This confusion was illustrated in a

number of cases. In case of **Nakkuda Ali – V – Jayaratne (1951) AC 66**, in which the Privy Council held that a textile trader could be deprived of his trading licence without any kind of hearing. And in **R – V – Metropolitan Police Commissioner exp. Parker [1953] 1 W.L.R 1150**. The court held that the tax driver's licence could be revoked without a hearing; Lord Goddard C.J said that the commissioner if he wished could summarily withdraw a licence without any sort of hearing or inquiry that the order did not intend that he should act as a judge or a quasi-judge.

However as this position was obviously extreme, the courts came up with some sort of middle ground in the term “quasi-judicial” to describe powers which though administrative , were required to be exercised as if they were judicial, that is, in accordance with natural justice. This ambiguous position continued for some time until the landmark case of **Ridge – V – Baldwin (1964) AC 40**. In that case, the House of Lords finally cleared the air and emphasised that there was no need to classify acts or decisions as judicial, quasi-judicial or administrative in nature. As long as the exercise of administrative power affects the rights or interests of individuals, natural justice must be observed during the exercise of such power.

Thus the current position is that administrative authorities have a duty to act fairly when reaching decisions. This was emphasised in the case of **R – V – Gaming Board for Great Britain ex. P. Benaim and Kahdia (1970) 2 ALL E.R 528**. The court held that the duty to act fairly in essence means the same as natural justice and therefore encompasses the right to a fair hearing and the rule against bias.

Principles of natural justice

The duty to act fairly in Uganda's legal system

This duty to act fairly has been codified in Uganda's legal system. **Article 42** of the 1995 constitution provides that any person appearing before any administrative official or body has a right to be treated justly and fairly (**See also article 28**). In Uganda therefore, natural justice in administrative decisions is no longer simply a matter of common law principles but has now been elevated to the status of a guaranteed human right in the constitution.

The right to a fair hearing

The basis of this rule is that bodies entrusted with legal power cannot validly exercise it without first hearing the person who is going to be affected by the decision. Fair consideration of both sides of the case is essential to ensure good administration.

Thus in case of **Cooper – V - Wandsworth Board of Works (1863) 14 CB (NS) 180**, the defendant demolished the plaintiff's house without giving him prior notice or an opportunity to make representations on his own behalf. The plaintiff's action succeeded and he obtained damages for trespass. The court emphasised that even where applicable statute does not specifically provide for notice or an opportunity to be heard, the public authority is under duty to apply the rules of natural justice.

This position was re-emphasised in **Ridge – V – Baldwin (supra)**. The facts were that the chief constable of Brighton had been tried and acquitted on a criminal charge of conspiracy to obstruct the course of justice. Thereupon, the Brighton Watch Committee, which was responsible for the enforcement of discipline in the Police Force, dismissed him from office without giving notice or offering a hearing. The House of Lords held that the decision was void due to the failure to give notice of the charge and an opportunity to make his defence.

And in **Dennis Bireije – V – Attorney General H. C Misc. Appl. No. 902 of 2004**. This was an application by way of judicial review, for orders of certiorari, prohibition, declaration and mandamus. It sought to quash certain decisions of the Solicitor General and his Minister by which the applicant was moved from office on allegations of serious misconduct, abuse of office and engaging in corrupt tendencies among others. The applicants sought a declaration to the effect that his removal from office was for no cause, null and void and an order that he resumes his office. He submitted that he was never warned, reprimanded or subjected to any disciplinary proceedings before being removed from office. **Justice Okumu Wengi held** that the decision maker must act in accordance with the law, fairly and reasonably, an administrative action will be subjected to judicial control for illegality, irrationality and procedural impropriety. That the removal of the applicant from office without the chance to defend himself breached the cardinal rules of natural justice and

therefore, granted the order of certiorari to quash the decision and a declaration that the applicant was free to resume his office.

Elements of the right to a fair hearing

Notice

The affected person must have fair notice of any allegation against him or her, i.e. disclosure of the charge or opposing case must be made in reasonable time to allow the person affected to prepare his defence or his comments. This was emphasised in the East African case of **De Souza – V – Tanga Town Council (1961) E. A 377** held that notice should include the substance of the allegations of the charge and it must specify the time and place where the hearing is to take place.

The right to know the opposing case

A proper hearing must always include a fair opportunity to those who are parties in controversy for correcting or contradicting anything prejudicial to their view. In case of **Kanda – V – Government of Malaya [1962] AC. 322**, Lord Denning said:

“If the right to be heard is to be a real right which is worth anything, it must carry with it a right in the accused man to know the case which is made against him. He must know what evidence has been given and what statements have been made affecting him and then he must be given a fair opportunity to correct or contradict them.”

In some administrative situations there are limits to the broad principle stated above. What is essential is substantial fairness to the person adversely affected by the decision. In a leading case of **R V Gaming Board for Great Britain exp. Benaim and Khaida [1970] 2 QB. 417**. The Court of Appeal applied these considerations to the procedure of the Gaming Board in granting certificates of consent to persons wishing to operate gaming clubs. It was the Board's duty to investigate the credentials of applicants and to obtain information from the police and other confidential sources. Such sources, it was held need not be divulged if there were objections properly based on the public interest. The Board must, however, give the applicant an indication of the objections raised against him so that he can answer them, as fairness requires.

Adjournment

Failure to allow an adjournment may amount to failure to give a hearing and thus a failure of natural justice or fairness. In **Kanda Vs. Government of Malaysia**, Lord Denning stated "if the right to be heard is to be real, it must carry with it a right in the accused man to know the case which is made against him. He must know what evidence has been given and what statements have been made affecting him and then he must be given a fair opportunity to correct or contradict them." See **Re M (An Infant)** [1968] W.L.R 1897.

An oral hearing

The administrative authority has a duty to afford an oral hearing but in some cases representations may be made in writing. In **Lloyd – V – McMahon** [1987] AC 625, the House of Lords said that fairness might require the decision maker to offer an oral hearing depending on the circumstances. In this particular case the circumstances did not. This case can be distinguished from the case of **R – V – Immigration Tribunal ex. P. Mehmet** [1977] 1 W.L.R 795, where the Tribunal's decision and resulting deportation order was quashed for failure to afford an oral hearing. In **Chief Constable of the North Wales Police V Evans** [1982] 1 WLR 1155 HL, the Chief constable of North Wales decided that Evans, a probationer constable in the force, should be required to resign or, if he refused, be discharged from the force. Evans resigned but subsequently challenged the decision on the ground that it was taken in breach of natural justice because he was not given an opportunity to offer any explanation. The House of Lords agreed with the decision of Court of Appeal that there had been a breach of natural justice.

Witnesses

Natural Justice may be infringed where a person is not allowed to call witnesses in support of his case. See **R – V – Hull Prison Board of Visitors ex. P. St. Germaine** [1979] ALL ER. 545. In some cases, it has been held that a person also has a right to cross examine witnesses from the other side. For example in **Errington V Ministry of Health** [1935] 1 K. B 249 at 272. In **Ceylon University Vs Fernando** (1960) 1 WLR 223, Supreme Court held that failure to afford audience or allow witnesses to be questioned / cross examined breached the principles of natural justice and therefore the report of the chancellor was null and void.

Duty to give reasons

It is not a principal of natural justice that reasons should be given for decisions. Nevertheless, it is generally accepted that fairness in administration includes the duty to give reasons for decisions. In case of **Breen – V – Amalgamated Engineering Union [1971] 2 QB 175 Lord Denning (Dissenting)** said that: *“The giving of reasons is one of the fundamentals of good administration.”* And in **Minister of National Revenue – V – Wrights’ Canadian Ropes Ltd [1947] AC 109 at 123**. The Privy Council held that a minister who had failed to give reasons for a special tax assessment had not shown that it was correct and that the tax payer’s appeal must be allowed.

Openness

Tribunal being judicial bodies must proceed in an open and transparent manner; they should be open to the public, allow the press and not bar public scrutiny of their decisions. It should be noted, however, that there could be circumstances that justify that the hearing takes place in private and that the public and the press be barred from attending. This though should be a matter of necessity and based on reasonable grounds.

Examples of cases that may justifiably be heard in private include cases dealing with such intimate issues as one’s health, adjudicating intimate family matters or making decisions that may have a long lasting impact on minors.

Legal Representation

The right to representation by a lawyer or other person may prove to be part of natural justice in suitable cases, but this is not as yet clearly established. In **Pett – V – Greyhound Racing Association [1969] 1 QB 125**, the Court of Appeal was of the view that Legal Representation should be allowed where a case concerns a person’s reputation and livelihood. However, in contrast with **Enderby Town Football Club – V – Football Association Ltd [1971] 1 ALL ER. 215**, Court held that denial of legal representation is not necessarily breach of natural justice. **Lord Denning MR.** at 607 stated thus, ‘Seeing that courts can inquire into the validity of the rule, the question is; is it lawful for the body to stipulate in its rules that its domestic tribunal shall not permit legal representation? Such a stipulation is, I think, clearly valid so long as it is construed as directory and not imperative: for that leaves it open to the tribunal to permit legal representation in an exceptional case when the justice of the case so

requires. But I have some doubt whether it is legitimate to make a rule which is so imperative in its terms as to exclude legal representation altogether, without giving the tribunal discretion to admit it, even when the justice of the case so requires.'

Regarding the legal representation the reviewing court will normally establish procedure, the practice adopted by the tribunal or authority whose decision is reviewed. Thus, where it has been allowing legal representation, it should do so for everybody but where it has not been doing so, the denial won't amount to breach of natural justice.

Disclosure of the relevant information

The constitution permits disclosure of the relevant information to the party that would be affected by the decision or the accused so to prepare his defence. In **Ridge Vs Baldwin**, Lord Reid stated that before attempting to reach any decision, they should inform the person of the grounds upon which they propose to act and give him an opportunity of being heard in his own defense. In **Byrne Vs Kinematograph Reuters Society** [1958]1 W.L.R 762, Harman J stated requirements of natural justice as a person accused should know the nature of the accusation made and should be given opportunity to state his case and that the tribunal should act in good faith. [read the case of **Soon Yeon Kong Kim & Anor v Attorney General Constitutional Reference No 6 of 2007**]

Appeals

Natural justice does not require that there should be a right of appeal from any decision. This is an inevitable corollary of the fact that there is no right of appeal against statutory authority unless statute so provides. (See **Ward – V –Bradford** (1971) 70 L.G.R. 27). In **Leary V National Union of Vehicle Builders** [1971] Ch 34. Magarry J. pointed out that as a general rule, a failure of natural justice in the trial body cannot be cured by a sufficiency of natural justice in the appellate body. However, in **Ridge – V – Baldwin (supra)**, The House of Lords did not allow the chief constable's unsuccessful administrative appeal to the home secretary to prejudice his right to a fair hearing before a watch Committee.

Suffice to note that there is no strict specific procedure laid down to be followed under natural justice while carrying out administrative duties and functions, but the requirements of fairness depend on the facts of each case. The question that arises is,

what then, are the criteria by which to decide the requirements of fairness in any proceeding? Authoritative guidance as to this was given by *Lord Bridge* in **Lloyd V McMahon [1987] AC 625 at 702**, where he said, ‘...the rules of natural justice are not engraved on tablets of stone. What the requirements of fairness demand when anybody, domestic, administrative or judicial, has to make a decision which will affect the rights of individuals depends on the character of the decision making body, the kind of decision it has to make and the statutory or other framework in which it operates. In particular, it is well established that when a statute has conferred on anybody the power to make decisions affecting individuals, the courts will not only require the procedure prescribed by the statute to be followed, but will readily imply so much and no more to be introduced by way of additional procedural safeguards as will ensure the attainment of fairness.’

Circumstances under which the right to a fair hearing may be excluded

It must be noted that in some contexts, fairness and the rules of natural justice have been held to be limited. Below are some of examples and illustrations of broad categories of administrative actions where natural justice may or may not apply.

Legislation

There is no right to be heard before the making of legislation, whether principal or subsidiary, unless it is provided for by law. See **Bates v. Lord Hailsham of St Marylebone [1972] 3 ALL ER. 1019**. This has been interpreted as reluctance by the judiciary to interfere in the legislative process, as part of the doctrine of separation of powers. However, it should be noted that on the whole, the law provides for consultation as part of the law making process and cases in this nature rarely arise.

Employment

With regard to offices and employments, it is necessary to draw a distinction between Master and Servant relationship-This is regulated by the law of contract and therefore the principles of Administrative Law, including the right to a hearing, may have limited application. In such situations, wrongful dismissal entitles the aggrieved party to damages. In **Ridge – V – Baldwin**, **Lord Reid** said that: “A master can determine the contract at any time, for any reason or none though to do so may constitute a breach of contract for which damages may be awarded.”

Public Officers - Statutory safeguards must be observed. Usually the employment of public officers is provided for by Statute, and such Statute specifies the grounds and circumstances under which a public servant may be removed from office. Failure to observe the statutory provision may result in a dismissal being declared void.

Thus in case of **Bank of Uganda – V – Betty Tinkamanyire, SC Civil Appeal No. 12 of 2007**. The respondent was an employee of the appellant at the time she was wrongly dismissed from her employment without following the requisite procedures. She filed a suit in the High Court claiming reinstatement and damages for unfair and unjust and wrongful dismissal. Justice Kanyeihamba held that, “it is trite that, a court of law should not use its powers to enforce an employer to retake an employee. It no longer wishes to continue to engage. However, depending on circumstances, an employee who is unfairly or unlawfully dismissed, as in this case, should be compensated adequately in accordance with the law. The court also found that no reasons were given in the termination letter by the Deputy Governor.

However, there is need to distinguish a category of public officers, described as “offices held at pleasure”. Here, the person having the power of dismissal need not have anything against the officer and so he need not to give any reason.

See Section 24 of the Interpretation Act, Cap. 3.,

Opolot – V – Attorney General (1969) E.A 631.

In **Wycliffe Kiggundu Kato V AG (1992) 1 KALR 125**, the plaintiff then Acting Director General of Civil Aviation of Uganda was interdicted for two years. He ignored the Permanent Secretary’s letter asking him to make a representation on the accusations against him. The President retired him from Public Service in public interest and he sued the Attorney General contending that his retirement was unlawful for breach of procedure by the public service commission in that he was not heard. The defendant’s counsel raised a preliminary objection that the retirement was a proper exercise of a presidential prerogative. It was held that persons are employed in the public service by the President under **Article 104 (1)** of the Constitution (1967) which gives him the unfettered prerogative to dismiss and retire at pleasure, and in public interest. Although availed the opportunity to be heard, the plaintiff denied himself the right to be heard by refusal to make the representation.

The retirement of the plaintiff was therefore proper and the plaintiff did not display a cause of action.

National Security

The right to a fair hearing may be excluded where considerations of national security must be taken into account, as was the case in **Council of Civil Service Union – V – Minister for the Civil Service [1985] AC 374**. But see Art 28 and 42 of the constitution.

Emergency

It has been held that the right to a fair hearing will not apply where factors such as agency come into play, i.e. where agent action is needed to safeguard public health or safety. In **White – V – Redfern [1879] QBD 15**, the right to fair hearing was excluded where there was an urgent need to seize and destroy bad meat that had been exposed for sale.

NB.

Licensing

Government Bodies that exercise *Licensing Function* must exercise their administrative powers fairly and are bound by the rules of natural justice. This is due to the recognition that licensing is a drastic power greatly affecting the rights and liberties of citizens and in particular their livelihood, and therefore there is a need for fair administrative procedure. This was emphasised in the case of **Ndegwa – V – Nairobi Liquor Licensing Court. [1957] E.A 709**.

Investigations

Natural Justice including the right to be heard is an essential part of investigative procedures such as those undertaken by commissions of inquiry. For example in **Annebrit Aslund V Attorney General**, the High Court of Uganda invalidated the Report of the Commission of Inquiry into allegations of corruption in Uganda Revenue Authority, on grounds inter alia that the applicant was not given a fair hearing. The principle of Natural Justice as enshrined in the Latin Maxim “*Audi alteram partem*” was flouted as “*the applicant was not given an opportunity to correct or controvert the damaging report which was brought forward to her prejudice. As a*

professional woman, there could be no more damaging remarks than to say of her that she was incompetent”

Effects of failure to observe natural justice

The effect is that a decision given in disregard of the principles of natural justice is void. It may lead to the quashing of the decision and damages may ensue from such proceedings. In **Kaggwa V Minister of Internal Affairs, HC Miscellaneous application No. 105 of 2002**, the Minister’s decision was quashed because the applicant had not been granted a fair hearing. In **Annebrit Aslund V A.G, HC miscellaneous cause No. 441 of 2004**, Katutsi J quashed the URA report because it flouted principles of natural justice.

The Rule Against Bias

The second part of the principle of natural justice is derived from the Latin maxim *“nemo judex in causa sua”* meaning no one can be the judge in his own cause. This gives rise to a duty to act fairly, to listen to arguments, and to reach a decision in a manner that is untainted by bias. There can never be a fair trial where the adjudicator has an interest in a case or matter.

There are two major aspects to this rule:

1. The adjudicator must not have any financial or proprietary interest in the outcome of the proceedings.
2. The adjudicator must not be reasonably suspected of or show a real likelihood of bias.(Non pecuniary interest)

Pecuniary Interest

Adversarial processes of adjudication should be distinguished from inquisitorial process. Adversarial adjudication is based on the premise that the presiding officer over the adjudication process is merely an independent umpire supposed to preside over the contestation between the parties. The parties are expected to argue their cases without any support from the judge, magistrate or members of the tribunal.

No matter how small the adjudicator's Pecuniary Interest may be, or no matter how unlikely it is to affect his judgment, he is disqualified from taking part in the hearing and any decision which he makes will be set aside. A person with such an interest is conclusively presumed to be biased and the courts will not inquire into whether or not he actually was. In **R – V – Hendon RDC ex. P. Chorley [1933] to KB 696**, the Council's decision was invalidated because one of the councillors who participated in the decision was the estate agent of one of the parties to the transactions which formed the subject of the decision. In **Leeson V General Council of Medical Education (1889) 43 Ch. D 336**, court stated thus, '...a person who has judicial duty to perform disqualifies himself from performing it if he has a pecuniary interest in the decision which he is about to give or bias which renders him otherwise than an impartial judge. If he has a pecuniary interest in the success of the accusation he must not be a judge.'

In **Dimes vs Proprietors of Grand Junction Canal proprietors (1852) 3 HLC 759**, a decree made by the Lord Chancellor was set aside because he was holder of shares in the company which was a party to the proceedings. The brief facts were as follows. Lord Cottenham was Lord Chancellor of England and held 92 shares in a company called G.J. Canal worth thousands of pounds. There was a dispute between a man called Davies and the company. The company applied for an injunction restraining Mr Davies' conduct in putting a bar across the canal, which he claimed to be his property. The application was granted and there was an appeal to Lord Cottenham as Lord Chancellor, the decision was affirmed, Mr Davies losing his appeal. Lord Cottenham had not disclosed that he was a shareholder of the company. It was held by the House of Lords that the Lord Chancellor was disqualified from acting as a judge in the cause on ground of interest and the decree was set aside. **L.C.J., Lord Campell** said, "No one can support that Lord Cottenham could be, in the remotest degree influenced by the interest that he had in this concern; but it is of the last importance that the maxim that no man is to be a judge in his own cause in which his own cause should be heard is sacred. And that is not to be confined to a cause in which he is a party, but applies to a cause in which he or she has an interest.We have again and again set aside proceedings in inferior tribunals because an individual, who had an interest in a cause, took part in the decision. And it will have a most salutary influence on these tribunals when it is known that this high court of last resort, in a case in which the lord chancellor of England had an interest, considered that this decree was on that account a decree not according to law, and was set aside. This will be a lesson to all inferior tribunals to take care not only that

in their decrees they are not influenced by their personal interest but to avoid the appearance of labouring under such an influence.”

None Pecuniary Interest

There are certain tribunals that are deliberately designed to be inquisitorial and to follow adjudication processes that are investigatory. Whether this process is justified should depend on the nature of the matters that the tribunal deals with. If the matters are of a highly technical nature, where the truth cannot be established without through investigations and independent verification of evidence then this process may be justified.

In *R v Deputy Industrial Injuries Commissioner, ex Moore* the court held that there was an important distinction between the functions of an insurance tribunal and those of an ordinary court of law. According to Court, a claim by an insured person is not strictly analogous to that which is inter-parties; insurance tribunals form part of the statutory machinery for ascertaining whether the claimant has satisfied the statutory requirements, which entitle him to be paid.

The test that is usually applies in cases where, although there is no pecuniary interest, there is some kind of relationship between the adjudicator and one of the parties that might lead to a biased decision has two aspects:

1. Is there a real likelihood of bias?
2. Is there a reasonable suspicion of bias?

It should be emphasised that there is no need to prove actual bias. In **Libyan Arab (U) Bank & another V Adani Vassilads CACA No. 9 of 1985**, Odoki JA (as he then was quoted article 126 of the Constitution, then 15 (9) and stated that the provision lays down the requirements for a fair trial, that court must be independent and impartial. He held that bias may be established against a person sitting in a judicial capacity on one of the two grounds;

(a) direct pecuniary interest in the subject matter,

(b) bias in favour of one side against the other. That bias means a real likelihood of an operative prejudice whether conscious or not. That in considering the possibility of bias it is not the mind of the judge which is considered but the impression given to reasonable persons. **Justice Odoki, JA (as he then was)**, stated that, 'there must be reasonable evidence to satisfy the court that there was a real likelihood of bias. Objection cannot be taken at everything that might raise a suspicion in somebody's mind or anything which could make fools suspect. There must be something in the nature of real bias, for instance evidence of proprietary interest in the subject matter before court or a likelihood of bias based on close association with one of the parties as was the case in **Tuman V R.**' His lordship held that in this case 'there is no reasonable evidence to satisfy me that there was a real likelihood of bias on the part of the learned trial judge. There was no evidence or even suspicion that he had a direct pecuniary interest in the subject matter of the suit. There was no evidence that he was likely to favour the respondent against the appellant; and even if the trial judge may have been thought to have formed some opinion beforehand on the case, it is not enough to establish bias. The allegation of bias was a mere conjecture.' That the appellants should have raised a preliminary objection the trial and even if it were overruled, he should as the trial judge remarked in his judgement have continued with the hearing and made it a ground of appeal. The appellants abandoned the hearing because they suspected that the trial judge had prejudged the case against them beforehand. That the burden of proof lies on the party refusing to continue trial to satisfy court of appeal that he was justified in his apprehension that it would be futile for him to continue and that had he done so he would not have had a fair hearing. Lord Denning relied on the famous dictum of **Lord Hewart C J in R – V – Sussex Justices ex. P. McCarthy [1924] 1 KB 256 at 259**, which is to the effect that: *"Justice should not only be done, but should manifestly and undoubtedly be seen to be done"*.

Thus in **Re-Medicament (2001) 1. WLR** where the court of appeal emphasised that what matters is the appearance of the matter to an outsider i.e. would a member of the public, looking at the situation as a whole, reasonably suspect that the member of the adjudicating body would be biased. In this case, during the course of the tribunal proceedings, one of the members of the tribunal, Dr. R approached an economic consultancy firm to ask if they would consider employing her. Dr. R later realised that one of the directors of the firm, was an expert witness on behalf of applicants in the case. When she was asked to withdraw herself from hearing the case, she insisted that she retained the independence of mind required of a member of the court. Her fellow members of the tribunal agreed with her and the hearing proceeded.

Nevertheless, on application for judicial review by the applicants, the tribunal's decision was quashed on grounds of failure of natural justice, basing on the reasonable suspicion of bias on the part of Dr. R.

In **Hannam V Bradford City Council [1970] 1 WLR 937**, H was teacher at a school maintained by the city council, and 3 of the members of the council committee were also members of the school board of governors. The Court of Appeal upheld H's contention that there was bias.

The test of bias must be applied realistically. For example, in cases where a person is charged before a disciplinary body of an organisation with bringing that organisation into disrepute, or with breaching its code of professional conduct, the interest of members of that organisation in its repute cannot be a disqualifying interest. Thus in **Sikabuza v. Director of surveys [1960] EA 808**; the applicant's licence had been cancelled by the survey licensing board on ground of professional misconduct. He appealed on the grounds that the composition of the board did not meet the requirements of natural justice, since it was composed of the director of surveys and 3 other members, 2 of whom were fellow surveyors. The appellant contented that the 2 surveyors on the board were his competitors in business and were therefore sitting in judgement of their own cause. The court rejected his argument and held that the mere fact that an interested party sits on a disciplinary body does not necessarily conflict with the requirements of natural justice.

Examples of likelihood of bias and reasonable suspicion of bias

1. Where the adjudicator was a member of an organisation that was a party to the proceedings. In **Hannam vs Bradford Corporation 1970) 1 WLR 937**, an education sub-committee had confirmed the decision by the governor of the school to terminate a teacher's employment. Held the decision was quashed by the court because of the fact that the 3 members of the sub-committee were also governors of the school gave rise to the possibility of bias.

2. Where extra-judicial pronouncements reveal that an adjudicator was partisan.[read **R vs Halifax justices exparte Robinson (19120 76 JB 233, Ashumd vs AG]**

3. Where there is personal friendship or hostility towards one of the parties. In **White vs Kuzych (1951) AC 585**, the respondent a member of the appellant trade

union was found guilty on charges alleging breach of Art 2 of Bye laws of the union including committing acts discreditable to it in publicly opposing established policies of the union by campaigning against the closed shop principle. He was provided with an option of an appeal after exhausting all remedies from the findings in the report and the resolution of his expulsion that he had not been validly expelled from the membership. He claimed that the decision was biased and breached natural justice and even intimidation. Court **held** that the conclusion reached was a decision even if it was tainted with / by bias or prejudice or arrived at in defiance of natural justice and even if the voting of some members might have been reached/ affected by intimidation.

In **R V Bow Street Metropolitan Stipendiary Magistrate, ex parte Pinochet Ugarte** [2000] 1 AC 119, **Lord Browne-Wilkinson** stated thus, "...the fundamental principle is that a man may not be a judge in his own cause. This principle as developed by courts has two very similar but not identical implications. First it may be applied literally; if a judge is in fact a party to the litigation or has financial or proprietary interest in its outcome then he is indeed sitting as a judge in his own cause. In that case, the mere fact that he is a party to the action or has a financial or proprietary interest in its outcome is sufficient to cause his automatic disqualification. The second application of the principle is where a judge is not a party to the suit and does not have a financial interest in its outcome, but in some other way his conduct or behaviour may give rise to a suspicion that he is not impartial, for example because of his friendship with a party...."

According to **De Smith, Woolf and Jowell, Judicial Review of Administrative Action, 5th edition (1995)** at p.525, once it is shown that the judge is himself a party to the cause, or has relevant interest in its subject matter, he is disqualified without any investigation into whether there was a likelihood or suspicion of bias. The mere fact of his interest is sufficient to disqualify him unless he has made sufficient disclosure.

4. Where a person is likely to be a witness in the proceedings, he cannot be a judge. [Read the case of **Ndegwa Vs Nairobi liquor licensing court**].

NB. The test of likelihood or reasonable suspicion of bias must be applied realistically.

In **Sikabuza Vs The Director of Survey** *supra*, the applicant's licence had been cancelled by the survey licence board on grounds of professional misconduct, he appealed on the basis that the composition of the board did not meet the standards of natural justice. The composition of whom were surveyors and 3 other members, 2 of whom were surveyors. The applicant contended that the 2 surveyors on the board were his competitors in the business and were therefore sitting in judgement of their own cause. Court held that the mere fact that an interested party sits on the disciplinary body, which applies professional standards does not necessarily conflict with the maxim that no man be judged in his own cause.

Similar reasoning was applied in the case. **Re-s- a barrister (1981) QB 683**, where **court** held that a solicitor could adjudicate in a matter brought by the council of the law society.

The need to apply the test realistically also means that political affiliations of the adjudicators are usually not taken into account.

Where it is found that there is a real likelihood or a reasonable suspicion of bias, the adjudicator is disqualified from presiding over the matter. The rationale for such disqualification is based on the principle that public confidence in the administration of justice must not be impropriety. The rule looks to the appearance of the matter to an outsider.

According to the case of **R vs Sussex Justices Ex parte McCarthy (1924) 1 KB 256**, the issue of appearance of the matter to an outsider is not that would a member of the public looking on the situation as a whole reasonably suspect that a member of the adjudicating body would be biased. The court must ask itself whether a reasonable person viewing the facts would think that there is a substantial possibility of bias therefore the question is not whether the judge is likely to be biased but whether he is likely to be seen as biased.

The answer is to be found in **Re- medicaments and related classes of goods (2001) 1 WLR 700**, this was a matter relating to the prices of certain medicines before the restrictive practices court of England. An administrative tribunal with the membership consisting of a high court judge and lay people who were also experts in accountancy and economics was constituted. During the hearing one of the

members of the tribunal, a doctor(R) approached an economic consultancy firm to ask if they would consider employing her. She later realised that one of the directors of the firm a Mr. B was an expert witness on behalf of the applicant in the case. She said she had forgotten this at the time of making the application; she consulted the presiding judge and other members of the tribunal and sent a statement to both parties advising them of the situation. In the statement, she said that because of her involvement in the case as a member of the tribunal and Mr. B's involvement as an expert witness her application for the vacancy could not be pursued until the conclusion of the case. Never the less, the respondent appealed on grounds that there was a reasonable suspicion of bias. The **H.O.L held** that in applying the test for bias, it would in deed appear to an ordinary person that there was a likelihood of bias and that on those grounds doctor R should have disqualified herself from presiding over the matter.

Lord Phillips, MR. in the above case stated that the test is the reasonable apprehension test and noted that it is by far the most appropriate test for protecting the appearance of impartiality. Lord Phillips distinguished the test of real likelihood and reasonable apprehension/suspicion and preferred the latter. He stated that, '...the premise on which the decisions in this court are based is that public confidence in the administration of justice is more likely to be maintained if the court adopts a test that reflects a reaction of the ordinary reasonable member of the public to the irregularity in question. References to the reasonable apprehension of the lay observer, the fair minded observer, the fair-minded, informed lay observer, fair-minded people, the reasonable or fair-minded observer, the parties or pubic, and the reasonable person abound in the decisions of the court. They indicate that it is the court's view of the public view, not the court's own view, which is determinative. If public confidence in the administration of justice is to be maintained, the approach that is taken by a fair-minded and informed members of the public cannot be ignored.

His lordship concluded that '...the court must first ascertain all the circumstances which have a bearing on the suggestion that the judge was biased. It must then ask whether those circumstances would lead a fair-minded and informed observer to conclude that there was a real possibility, or real danger, the two being the same, that the tribunal was biased. The material circumstances will include the explanation given by the judge under review as to his knowledge or appreciation of those circumstances. Where that explanation is accepted by the applicant for review it can be treated as accurate. Where it is not accepted, it becomes one further matter to be

considered from the viewpoint of the fair-minded observer. The court does not have to rule whether the explanation should be accepted or rejected. Rather it has to decide whether or not the fair-minded observer would consider that there was a real danger of bias notwithstanding the explanation advanced.'

NB. Sometimes it is proposed that the question upon which the court must reach its own factual conclusion is this, is there a real danger of injustice having occurred as a result of bias? By 'real' is meant not without substance. A real danger clearly involves more than a minimal risk, less than a probability. It is submitted that injustice will occur as a result of bias if the decision-maker unfairly regarded with disfavour the case of a party to the issue under consideration by him. I would take 'unfairly regarded with disfavour' here to mean 'was pre-disposed or prejudiced against one party's case for reasons unconnected with the merits of the issue.' It should be noted that this kind of approach was criticised in the **Re Medicaments** case above. Court noted therein that it is the hypothetical rather than the actual test of the likelihood of bias to be applied.

Low

REGULATORY PROCESSES OF GOVERNMENT

Introduction

Government processes are highly regulated. "Regulation" implies that there are administrative agencies that do the regulating and that administrative law is the framework in which those agencies operate. Regulatory oversight generally involves

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1. Adoption of regulations;
2. Enforcement of regulations; and
3. Hearing appeals on enforcement actions.

Government ensures implementation of its policies through procedural mechanisms. These may include consultation, inquiries, licensing inspections, enforcement of standards; etc. This sub topic examines each of these in turn.

Objectives

At the end of this session you should be able to:

1. Know various administrative processes.
2. Identify statutory provisions relating to processes of government.
3. Understand procedures involved in the administrative process.
4. Know the relevance of procedures in various administrative processes.

Consultations

The decision making processes by which an administrative authority carries out its functions includes consultations. It is a process by which an administrative authority seeks the views of a particular section of the public and considers them without necessarily imposing its own views. In effect, government policies reflect the views of the people. Consultation as a procedural requirement concedes to the fact that parliament may not have done an exhaustive job hence details of implementation are left to the relevant department.

According to the Oxford Dictionary to consult is to "Have deliberations with persons; seek information or advice from persons and take into consideration feelings and interest"

Wade and Forsyth in their book on Administrative Law state (*H.W.R. Wade & C.F. Forsyth, Administrative Law 8th ed. page 229:*

"Procedural safeguards, which are so often imposed for the benefit of persons affected by the exercise of administrative powers, are normally regarded as mandatory, so that it is

fatal to disregard them. Where there is a statutory duty to consult persons affected, this must genuinely be done, and reasonable opportunity for comment must be given."

The nature of the obligation to consult may be summarized in the following quote from Webster J. in the case of **R v Secretary of State for Social Services ex parte Association of Metropolitan Authorities [1986] 1. W.L.R 1 Queen Bench Division**

"...the essence of consultation is the communication of a genuine invitation to give advice and a genuine receipt of that advice. In my view it must go without saying that to achieve consultation sufficient information must be supplied by the consulting to the consulted party to enable it to tender helpful advice. Sufficient time must be given by the consulting to the consulted party to enable it to do that, and sufficient time must be available for such advice to be considered by the consulting party."

The law/statute may impose a requirement for consultation. This is done by way of mandatory provisions. Such statute must indicate the persons and structures to consult, the method of consultations eg public inquiries, press discussions, memoranda, etc Thus, a distinction must be made between mandatory obligation to consult and discretionary consultation, the latter being a flexible process which need not conform with strict procedural requirements, the former is mandated by legislation and case law which if the procedural requirements are not adhered to, the consultation process can be challenged by an action for Judicial Review or seeking courts declaration.

As noted in the case of **Hon. Gerald Katureeeka Karuhanga vs. Attorney General Constitutional Petition 0039 of 2013**, where the constitutional court overturned the appoint of Hon. Justice Benjamin Odoki as Chief Justice by the president and **held that:**

That the advice of the Judicial Service Commission is a pre-requisite for the appointment of a Chief Justice and an appointment done without advice from the Judicial Service Commission is inconsistent with and in contravention of **Articles 142 (1); 147 (1) (a), 147 (2); 147 (3)(a) and 253** of the Constitution of the Republic of Uganda.

It should be noted that where there is no duty to consult but the administrative authority consults anyway, this could develop into a legitimate expectation as in the case of *Council of the Civil Service Unions v. Minister for Civil Service (supra)*.

In this regard De Smith, Woolf & Jowell's had this to say (*Principles of Judicial Review, Sweet & Maxwell 1999, page 286*):

"Where the claim to procedural fairness is based upon a legitimate expectation, and especially upon an expectation, induced by the decision maker, of a hearing or other

procedural safeguard, then the procedures should normally be granted as a supplement to the statutory scheme. In such cases the decision-maker's claim that the statutory scheme is exclusive will be difficult to justify in opposition to an express or implied representation on his part that additional procedures would be granted."

The Regulator's enabling legislation while mandating consultation does not always provide procedures for implementation. The courts have considered the nature of the obligation to consult, but have not laid out any hard and fast rule procedure for consultation either, treating each case on its own merits because what may be essential in one context may be irrelevant or harmful in another.

The courts however, have identified certain principles and procedural requirements of consultation and the Regulator's duty to act fairly as follows:

1. The Regulator/Administrative officer must consult in carrying out its functions where the law requires;
2. All stakeholders must be consulted as specified by the enabling legislation;
3. Enough and clear information on the purpose and the subject of the consultation must be provided to the consumers and other stakeholders so that they are adequately informed and able to make intelligent and useful contributions and responses;
4. Adequate notice must be given when consulting, the notice must be received by the stakeholder to be valid, and the notice must indicate what is proposed and supply sufficient information;
5. Allow adequate time for consultation and reasonable timeline for receipt and response of views;
6. Approach consultation with an open mind and be ready to change;
7. provide an effective and appropriate avenue for stakeholders and public participation;
8. Consultation includes listening to what stakeholders have to say and considering the responses, real dialoguing must be genuine and not a sham;
9. Consultation is not to be equated with "negotiation" because negotiation implies a process that has as its objective arriving at an agreement and consultation may occur without those consulted agreeing with the outcome.
10. A consultation process which seeks principally to inform decision-making is different from one that seeks to promote consensus through an interactive process where issues are progressively narrowed, and compromise and trade-offs promoted among key participants. The administrative authority must fulfill its

mandate and cannot delegate its functions and decision making to the Stakeholders.

11. *See also Wiseman v. Borneman* [1971] AC 29

A public body acts ultra vires if it fails to consult where there is a mandatory provision in the relevant statute to consult. It then becomes an issue of judicial review when challenged. In **Rollo Vs Minister of Town and county planning (1948)** **1 ALLER 13**, a Minister was obliged under the Town & County Planning Act to consult with " any local authorities which appear to him to be concerned " before making an order designating an area as the site of a new town, **Bucknill, L.J** said " on the one side the minister must supply sufficient information to the local authority to enable them to tender advise and on the other hand, a sufficient opportunity must be given to the local authority to tender that advise" therefore the essence of consultation is to tender genuine invitation extended with acceptable mind to give advise.

Stakeholders' Participation

The administrative authority is mandated to consult all stakeholders. Typically the stakeholders are consumers & consumer /committees, utility providers, shareholders, government, trade unions and the general public.

Communication

Regulatory communication is a key factor in the conduct of consultations .Because consultation is a two-way process, a communications process that provides opportunities for information exchange and for the stakeholders consulted to influence the making of a decision by the relevant authority is paramount.

Communications may be:

1. the disseminating of information to create awareness of the issues on the consultation subject;
2. to elicit views from stakeholders;
3. to interact, two-way between the Regulator and the stakeholders;
4. to convey the Regulator's point of view and its decision when made.

Consultation Framework

In consequence a framework for the conduct of consultations is imperative. The consultation framework should focus not only on the policy guidelines but on the legal requirements, the processes and the procedures for consultation in respect of each of the administrative authorities' function which mandates that the Regulator arrives at its decision only after consultation with the stakeholders.

The consultation process and indeed the hearing process should ensure that stakeholders and all relevant parties are able to contribute effectively to the regulatory process. In short the Regulator must decide what, when, how and with whom to communicate.

Consultation and Communications plan, process and procedure

It follows that the Regulator must conduct consultation in a transparent manner and should have a *consultation and communications plan* in order to develop the consultation process and procedure and this would require answers to the following questions by each Regulator:

1. Who will be consulted?
2. What subject requires consultation?
3. When will consultation start and end?
4. Where will the consultation take place?
5. How will the consultation be conducted?

How will consultations be conducted and determining the communication tools are choices each Regulator must make from a spectrum of communication methods some of which are:

1. formal and informal hearings,
2. public open house meetings, town hall meetings, seminars, workshops,
3. roundtable-multi-stakeholder meetings/workshops, focus groups,
4. consumer education,
5. individual communications,
6. research and surveys,
7. receiving stakeholders feedback,
8. responding to stakeholders on feedback received,
9. media and electronic communications,

10. wrap –up sessions/meeting of the consultation process,
11. funding to facilitate participation by consumers,
12. Communication before, during and after the consultation processes.

The extent to which all or some of these tools and methods are used would depend on the subject that is being consulted on. The Regulator is an adjudicator of various interests which in most cases are competing and the Regulator should expect conflicting points of view which must be given due consideration.

It must be demonstrated that the Regulator is unbiased, reasonable, open, fair, firm and free from stakeholder capture in the conduct of consultation. Therefore the Regulator must provide information and be prepared to make public, explanations why proposals are rejected, all responses received in the consultation process and must also be prepared to explain and justify principles, methodologies, processes and regulatory decisions to stakeholder's subject only to claims for non-disclosure of confidential information if considered appropriate.

The principle therefore is that if the stakeholders and the public whose rights are affected by the work of the Regulator is fully apprised, is genuinely consulted and is given a fair hearing before a decision is taken then there ought not to be any threat of judicial reviews. The challenge for the Regulator is to conduct consultation for the purpose of arriving at a decision and to satisfy all the stakeholders in so doing, failing which, to act fairly and satisfy the procedural requirements of consultation.

“Consultation Case Study” I

R v Secretary of State for Social Services ex parte Association of Metropolitan Authorities [1986] 1. W.L.R 1

Facts

The Minister was required by s. 36(1) of the Social Security and Housing Benefits Act 1982 (U.K) (the Act) to consult with concerned organizations of the housing authorities before making regulations constituting the housing benefits scheme. The Minister sought views from concerned organization including the Association of Metropolitan Authorities (the Applicant) on proposed amendments to the 1982 regulations. The consultation letter requesting a response by the 30th November was written on the 16 November 1984 and received by the Applicant on 22nd of November.

The Applicant complained on the shortness of time and asked for an extension so that its advisers could be consulted. On 4th December the Minister wrote to the Applicant seeking its views on further proposed amendments. No drafts of the proposals was forwarded and no mention was made of a material feature which required local authorities to investigate whether housing benefits claimants had

created joint tenancies so as to gain from the housing benefits scheme. A response was requested by the 12th December. The Applicant answered the first letter on the 7th December and sent brief comments about the second letter on 13th December. The Housing Benefits Amendment (No. 4) Order Regulations 1984 were made on 17th December and came into effect on 19th December.

Issue

The Applicant sought a Declaration that the Minister had not exercised his duty to consult under s. 36(1) of the Act and an Order of Certiorari to quash the Regulations because of the failure to consult.

Decision

In the words of Webster J: "...There is no general principle to be extracted from the case law as to what kind or amount of consultation is required before delegated legislation, of which consultation is a precondition, can validly be made. But in any context the essence of consultation is the communication of a genuine invitation to give advice and a genuine receipt of that advice. In my view it must go without saying that to achieve consultation sufficient information must be supplied by the consulting to the consulted party to enable it to tender helpful advice. Sufficient time must be given by the consulting to the consulted party to enable it to do that, and sufficient time must be available for such advice to be considered by the consulting party. Sufficient in that context does not mean ample, but at least enough to enable the relevant purpose to be fulfilled. By helpful advice, in this context, I mean sufficiently informed and considered information or advice about aspects of the form or substance of the proposal, or their implication for the consulted party, being aspect material to the implementation of the proposal as to which the Secretary of State may not be fully informed or advised and as to which the party consulted might have relevant information or advice to offer... In the present case, looking at the 'whole scope and purpose' of the Act of 1982, one matter which stands out is that its day- to- day administration is in the hands of the local housing authorities...It is common ground that in them resides the direct expertise necessary to administer schemes made under the Act on a day to day basis. For these reasons if no other, I conclude that the obligation laid on the Secretary of State to consult organizations representative of those authorities is mandatory, not directory.

The last question of principle to be decided before turning to the facts is the test to be applied to the facts as I find them for the purpose of judicial review... to what extent is it for the Secretary of State, not the courts, to judge how much consultation is necessary and how long is to be given for it? The answer to that question may qualify the word 'sufficient' in the requirements of consultation which I have set out

above... The first point to note is that the power to make the regulations is conferred on the Secretary of State and that his is the duty to consult. Save for those consulted, no one else is involved in the making of the regulations.

Secondly both the form or substance of new regulations and the time allowed for consulting, before making them, may well depend in whole or in part on matters of a political nature, as to the force and implications of which it would be reasonable to expect the Secretary of State, rather than the court, to be the best judge. Thirdly issues may well be raised after the making of the regulations as to the detailed merits of one or other reason for making them, or as to the precise degree of urgency required in their making, issues which have been raised on this application. Those issues cannot be said to be wholly irrelevant to a challenge to the vires of the regulations, and Mr. Beloff has not submitted that they are irrelevant; but at the same time it would seem to me to be inherently improbable that the question of the vires of the regulations should depend upon precise findings of fact on issues such as those.

In my view, therefore, the court, when considering the question whether the consultation required by section 36 (1) was in substance carried out, should have regard not so much to the actual facts which preceded the making of the regulations as to the material before the Secretary of State when he made the regulations, that material including facts or information as it appeared or must have appeared to him acting in good faith, and any judgments made or opinions expressed to him before the making of the regulations about the making of those facts which appeared or could have appeared to him to be reasonable. The department's good faith is not challenged on this application. The effect of treating as material the facts as they appear to the Secretary of State and not necessarily as they were, is to give certain flexibility to the notions of sufficiency, sufficient information, sufficient time and sufficiently informed and considered information and advice in my homespun attempt to define proper consultation. Thus it can have the effect that what would be sufficient information or time in one case might be more or less than sufficient in another, depending on the relative degrees of urgency and the nature of the proposed regulation. There is no degree of urgency, however, which absolves the Secretary of State from the obligation to consult at all...

Having decided that the provisions of section 36(1) are mandatory and that they were not complied with before the regulations were made, I now have to consider the relief which I should give to the association. They ask me to quash the regulations. I do not think that I should do so. I acknowledge, with respect, that in the ordinary case a decision- I emphasize the word 'decision'- made ultra vires is

likely to be set aside in accordance with the dictum of Lord Diplock in *Grunwick Processing Laboratories Ltd. Advisory, Conciliation and Arbitration Service* [1978] AC 655, 695, where he said:

My Lords, where a statutory authority has acted ultra vires, any person who would be affected by its act if it were valid is normally entitled ex debito justitiae to have it set aside... But whereas the case is that of a ministerial departmental decision, which adversely affect the rights of one person or class of persons, and which can be struck down without, usually, more than individual or local implications, in this case the association seeks to strike down regulations which have become part of the public law of the land. Although I have been shown and have found no authority to support the proposition, I suspect that it is not necessarily to be regarded as the normal practice, where delegated legislation is held to be ultra vires, to revoke the instrument but that inclination would be the other way, in the absence of special circumstances making it desirable to revoke that instrument.

But in principle I treat the matter as one of pure discretion and so treating it decline to revoke the instrument for the following reasons, no particular significance being attached to the order in which I state them. Although six organizations were and are habitually consulted in this context, only one of them has applied for revocation of the instrument and that one applies only on the ground that it was not properly consulted. It makes no formal complaint that the other organizations were not consulted. Although the Association complains about the substance of the regulations, it is apparent that its principal complaint throughout is, and has been, the absence of consultation and it and other organizations were able to express some, albeit in a sense piecemeal, views about the proposal which apparently the department took into account before making the regulations, but without, be it noted, any effort whatsoever on the November or December amendments.

The regulations have been in force for about six months and, although their implementation creates difficulties for some at least of the housing authorities who have to administer them, those authorities must by now have adopted themselves as best they can to those difficulties. If however, the regulations were to be revoked all applicants who had been refused benefits because of the new regulations would be entitled to make fresh claims, and all authorities would be required to consider each such claim... I can see no reason whatsoever, however, for refusing the association the declaration for which they ask...Declaration accordingly. Application for order of certiorari refused."

Comment

In this case the legal requirements for consultation were not complied with and the Judge so declared that the Secretary of State had not discharged his duty to consult before making the regulations. Ordinarily where there is a breach of statutory duty the decision is set aside by the courts. However the learned Judge in this case refused to set aside the regulations and made the distinction between an 'ordinary' decision and a decision which is made by delegated or subsidiary legislation. This decision might be considered good law for the Ugandan Regulator who arrives at its decision through the consultation process and whose decision is embodied in subsidiary legislation as for example the Regulated Industries Commission of Trinidad and Tobago (RIC) decisions in respect of quality of service standards.

Also In the case of **Rollo Vs Minister of Town and county planning (1948) 1 ALLER 13**, a Minister was obliged under the Town & County Planning Act to consult with " any local authorities which appear to him to be concerned " before making an order designating an area as the site of a new town, **Bucknill, L.J** said " on the one side the minister must supply sufficient information to the local authority to enable them to tender advise and on the other hand, a sufficient opportunity must be given to the local authority to tender that advise" therefore the essence of consultation is to tender genuine invitation extended with acceptable mind to give advice.

Case Study II

CONSULTATION – THE CASE OF DDT MINISTRY OF HEALTH ENVIRONMENTAL IMPACT ASSESSMENT

REPORT ON THE RE-INTRODUCTION OF DDT FOR INDOOR RESIDUAL SPRAYING FOR MALARIA CONTROL IN UGANDA, AUGUST 2005

The Environment Impact Assessment (EIA) was commissioned by the Ministry of Health with specific terms of reference and was carried out during the period June – July 2005.

The terms of reference required the widest consultations with the stakeholders i.e. neighbouring countries, some countries experienced in the use of DDT, various NGOs, the Ministry of Agriculture, Animal Industry and Fisheries, the Ministry of Trade and Industry, the scientific and academic community and sample surveys of the population focusing on urban centres.

As already stated, the consultations were carried out in June – July 2005 and in August, the Committee produced an eleven chapter report summarizing the findings.

The main objective of the study was to identify and assess the risks associated with the use of DDT applications to man, environment and Uganda's agricultural export trade with a view to providing recommendations to the Ministry of Health on the way forward.

Consultations were carried out in Kampala, specifically in Mulago, which recorded 48% support for the use of DDT, Owino Market (11%), Kibuye-Katwe (5%), Nsambya and Rubaga (30%) and Lugogo Supermarket (53%).

Upcountry consultation meetings were held in various regional headquarters, Mbale for participants from Mbale, Kapchorwa, Sironko; Mbarara for participants from Ntungamo, Bushenyi and Mbarara; Fort-Portal which attracted participants from Kasese, Bundibugyo, Kabarole and Kibaale districts.

In the end, Kampala recorded 29.2% support for the use of DDT, Kabale 35%, Mbarara 75%, Fort-Portal 72%.

There were also consultations with neighbouring countries. Tanzania acknowledged the use of DDT as a means of Malaria control. It has thus kept open the option of using it. Kenya on the other hand objected to the use of DDT.

Although Ethiopia has been using DDT since 1958, Malaria remains rampant but the government believes it would have been worse if DDT had not been used. South Africa also offered her support.

As far as the Ministry of Agriculture was concerned, the consultations revealed that they would like a clear policy on DDT that takes care of concerns of exporters of agricultural produce. The preferred alternative control strategies developed and strongly urged the Ministry of Health to put in place emergency support for the search for alternatives.

They also would like a time scale attached to the DDT project during which time alternative vector control measures would have been brought on board.

Registration

This is a process of recording data relating to a particular social, economic or political activity. Such an activity may be a business, a professional undertaking or a political process.

Objectives of Registration

The main objective of registration is to enable planning authorities to have the relevant information which affects a particular sector. This data becomes an aide to planning. Under the Uganda Bureau of Statistics Act, the Bureau is empowered to undertake census relating to population and other human activities. This enables the Ministry of Finance and Planning, National Planning Authority, and local authorities to plan for the country on basis of scientifically determined data.

Registration is also used as a tool of controls. It can be used as an authorization to carry out certain activities or as a disqualification for engaging in certain activities. For example, eligibility to practice as an Advocate, Surveyor, Medical Doctor, Architect or Engineer can only be ascertained from the relevant registration data. This is available from public officers authorized to carry out registration.

Registration also assists in ensuring that certain dangerous activities are controlled. Hence, the ownership of a firearm can only be confirmed through registration by the relevant authority i.e. police.

Registration is also used as a preliminary stage in licencing of activities. Through registration, the licencing authority can determine qualification of persons, suitability of premises and payment of necessary fees.

Registration may also be used as a mechanism of raising revenue. Certain activities may not be undertaken unless the relevant registration has been effected with payment of dues, charges or fees.

Registration is carried out under various laws:

Uganda Bureau of Statistics	-	Population census
	-	Human activities
	-	Standards of living
Trading (Licencing) Act	-	Retail and wholesale trade
Education Act	-	Licencing and registration of schools
Surveyors (Registration) Act	-	Persons eligible to practice as Surveyors
Firearms Act	-	Forearms dealers and gunsmiths, firearms holders and all transactions relating to firearms.
Uganda registration service Bureau Act	-	registration of Documents, business names, marriage, birth and death Etc

Statutory Provisions

The common statutory provisions relating to registration of activities include:

Registration Authority

The relevant authority may be a public officer e.g. under the Uganda Registration Services Bureau Act. It could be a statutory authority e.g. Advocates must be registered with the Law Council. It may also be a public corporation e.g. Uganda Revenue Authority registers all businesses relating to clearing and forwarding of goods from Uganda. It is important that the necessary registration is effected by the proper authority or else it can be challenged as *ultra vires* and therefore invalid.

Activities that must be Registered

The relevant law will normally specify the range of activities that must be subject of registration. For example, the Firearms Act, the following range of activities must be a subject of registration:

1. Firearms dealers and gunsmiths
2. Business of firearms and gunsmiths
3. Holders of firearms
4. Transaction in firearms and ammunition

Eligibility for Registration

Statutes normally provide for the minimum requirements for a particular registration process. It is always the duty of the registration officer to ensure that the minimum requirements are complied with. To do otherwise would invite challenges on eligibility of the registered person or organization to carry out specified activities. The usual requirements include:

1. Academic and professional qualifications e.g. for elective and professional practices
2. Working experience e.g. professors
3. Medical conditions of persons e.g. hotels establishments, food vendors, etc
4. Physical conditions of places e.g. trading licence
5. Age e.g. driving permit
6. Place of origin (where relevant) e.g. electoral laws
7. Gender of persons e.g. student enrolments

Powers of a Registration Authority

A registration authority is normally given powers to exercise discretion to register persons who fulfil the statutory requirements. This discretion must be exercised judiciously. It will not be proper for the proper authority to refuse a person registration where such a person qualified in accordance with the law. In the case of **Pius Nuwagaba Vs Law Development Centre**, Miscellaneous Application No. 589 of 2005 the applicant sought court orders to force the Law Development Centre to enroll him as a student. The Law Development Centre had refused to admit him as a student. He argued that the Law Development Centre had breached the law in so far as he had obtained a degree from the university in Uganda. Law Development Centre had refused to admit him on grounds that he was not from a university that was listed for purposes of admission. The court made orders against Law Development Centre because in its interpretation of the law he was qualified.

Inspections

Inspection is a legal process that is used by administrative authorities. It involves search, discovery, testing and evaluation of the state or status of persons, records or premise. The purpose of inspections is to establish the prevailing conditions in respect of a particular legislation.

The law that provides for inspections has the following provisions:

The Proper Authority

The law provides for a proper authority to carry out inspections. In the Occupation, Safety and Health Act, the proper authority is a labour inspector from the Ministry of Labour. The proper authority to carry out inspections can also be a statutory body like the National Council for Higher Education as provided in the Universities and other Tertiary Institutions Act. In some cases, the law gives the relevant authority to appoint inspectors. For example, under the National Environment Act, the National Environment Management Authority is empowered to annually name environmental inspectors for general inspection, industry and occupational health, water resources, chemical safety, etc. It is important that inspection be carried out by the proper authority or else it can be a subject of challenge in courts of law. In **Dent Vs Kiambu Liquor Licensing Court (1968) EA 80**, Dent applied for a liquor licence. While considering the application to grant or not to grant the license, non-members

were allowed to give their views by show of hands. Court held that the decision of the liquor licensing court was ultra-vires because it was improperly constituted in terms of membership and that the proper members acted under dictation from a particular group of people.

Powers of Inspectors

Inspectors are normally given powers to enter into private or public establishments without fear of committing trespass. S.35 of the Firearms Act gives a typical provision. It provides:

“The Chief Licensing Officer may at all reasonable times require any police officer, without a search warrant, to enter upon the premises of any firearms dealer with a view of ascertaining whether or not the provisions of this Act or any regulations made under it are being observed and may inspect the premises and any firearm or ammunition, book, account, register, document or thing found in the premises, and may require any person appearing to be in control of or employed in the premises to give such information as the police may require in order to ascertain whether or not the provisions of this Act or any regulations made under it are being observed”.

The laws also normally put in place provisions which ensure that the inspections are carried out without hindrance, interruption or disruption. These provisions create offences of obstructing of an inspector which may result into arrest without a warrant.

Power to make Recommendations

Inspectors are usually given powers to establish the condition of places and the status of persons. Inspection should result into specific findings relating to:

1. Suitability of premises
2. Qualifications of personnel
3. Health conditions
4. Maintenance of standards etc.

In the Trade (Licensing) Act, Building and Health Inspectors must give reports of suitability of premises before a business can be licenced. In the same vein, inspectors can recommend the closure of premises if they fall short of the established standards.

Procedural Requirements

Inspectors normally interfere with the privacy and quiet enjoyment of property. The laws normally balance the need of public inspectors and enjoyment of fundamental freedoms. This is done through adherence to procedures. In most inspections, the laws normally provide for:

1. Notices of inspection – This may be dispensed with if the nature of inspection is likely to be comprised by giving notice.
2. Times of inspections
3. People or authorities who must be around
4. Necessary documents to be signed or served.

An inspector who fails to comply with the required procedures risks the findings to be challenged. Such inspectors may also be personally sued for trespass.

Maintenance Of Standards

What are Standards?

Standards are minimum acceptable practices, procedures, qualifications and facilities that must be attained in respect of a particular service. Acceptable standards vary from one industry to another. Similarly, laws relating to standards are found in different Acts of Parliament.

Standards of consumer products are regulated under the Uganda National Bureau of Standards Act. Under the Act, Bureau is established to carry out functions relating to standardization. S.3 of the Act specifies the functions of the bureau. These include:

- a) Formulation of national standards for commodities and codes of practices.
- b) Determine, review, modify and amend standard specifications and codes of practices.
- c) Require certain products to comply with standards of manufacture, composition, treatment or performance.
- d) Testing for compliance with standards.

Standards of consumer products may relate to:

- a) Weights
- b) Measures
- c) Packing

- d) Quality
- e) Safety

Under the Act, the Bureau may carry out inspections to ensure compliance with standards. The Bureau may also refuse to allow certain products in the market if they do not comply with the established standards. There are also offences (under S.26) relating to failure to comply with the provisions of the Act relating to standards. Under the Universities and other Tertiary Institutions Act, a National Council for Higher Education put in place with the statutory functions of inter alia ensuring minimum academic standards for courses of study in universities and higher institutions of learning. In this regard, the Council is given powers to:

- a) Licence institutions.
- b) Accredite programmes of study
- c) Determine minimum requirements in terms of human resources, facilities, etc
- d) Equate qualifications
- e) Carry out reviews and inspections to ensure compliance.

Other Acts of Parliament which are aimed at maintenance of standards include:

The Education Act	-	Education status in primary and secondary schools.
Public Health Act	-	Health conditions
Advocates Act	-	Minimum qualifications and premises
Uganda National Examinations Board Act	-	Examinations – primary, secondary and vocational
Traffic and Road Safety Act	-	Mechanical conditions of vehicles and suitability of Drivers
Architects Registration Act	-	Condition for practice as an Architect
National Drug Authority	-	Minimum status relating to manufacture, importation and handling of drugs
National Environment Act	-	Environment standards

The common features in standardization include:

1. Regulatory body with powers to set standards.
2. Powers to enforcement of standards through:
 - a) Registration of activities
 - b) Inspection of personnel or establishment of products.
 - c) Licencing of activities or eligible persons
 - d) Prosecution of persons or establishments which are not compliant

There are also non legal standards that are normally required as industry practice. These are used for purposes of classification of products and business. There are food practices which are not necessarily of legal consequences.

The Licence

Definition

A licence is a conditional permit to carry out an activity. It therefore has elements of authorization, conditions and specified activities which would be illegal if they were carried out without such a licence.

A licence may be known by various names. These include:

- a) **Licence** e.g. road licence under the Traffic and Road Safety Act.
- b) **Permit** – Driving Permit under the Traffic and Road Safety Act.
- c) **Concession** – Under the Uganda Wildlife Authority Act.
- d) **Certificate** – like practicing certificate under the Advocates Act.
- e) **Authority, Authorization, Permission** etc.

Why are activities Licenced?

To promote Human Safety

This is especially in connection with activities that are inherently dangerous. The licence ensures that such activities are controlled. This prevents harm to the public and persons who are engaged in such activities. For example, the Traffic and Road Safety Act provides for a road licence which originally was issued after due inspection of the vehicle. The inspection was to establish whether the vehicle was road worthy.

Prevention of harm to the Public

There are licences that are directed to the prevention of harm to the public. There are licences that ensure that the consumer of goods and services is not harmed. These licenses ensure that providers of goods and services do not affect the rights of the members of the public e.g. the *Enguli* (Manufacturing) licence ensures that refined liquor is the one put on the market for public consumption. Similarly, the Acts of Parliament regulating professional activities ensure that only qualified persons are

the ones that are allowed to deliver professional services in acceptable services. This ensures quality of services.

Provision of Efficient Services

In some cases, the State undertakes to ensure that some services are controlled for purposes of efficiency. In such cases, the conditions of the licence will include promoting efficiently delivery of services. For example, under the Transport Licencing Board Act, the transport licence has conditions which ensure national coverage of transport routes.

Maintenance of Monopolies

A licence can also be used as a tool of maintaining monopolies. This is usually put in place. In the past, there were monopolies given to UPTC and UEB. These bodies had statutory monopolies over communication and electricity. No other person was allowed to carry out these activities unless they were licenced by those very monopolies. This type of licence is however not common in a liberalized and deregulated economy.

Promotion of Government Policies

A licence can be used to promote a particular government policy. For example, the Trade (Licencing) Act was put in place mainly because of the desire to eliminate non Africans (Asians) from retail and wholesale business. In this regard, it has a provision of not licencing non citizens for purposes of carrying out trade of activities outside the major (gazetted) urban areas. This was intended to drive them out of the country.

Conservation of Natural Resources

A licence is usually used as a tool of ensuring regulated exploitation of natural resources. Such a licence outlaws unlicenced and deregulated exploitation of natural resources. It aims at qualified persons who are registered and who follow established procedures. Examples are mineral exploration and mining licences under the Mining Act, Fishing Licence, Timber Harvesting Licences, etc.

Raising Revenue

Some licences are for the primary purpose of raising revenue. For example, the main purpose of road licence is now a source of revenue for the government. Inspection of vehicles which was a prerequisite for purposes of licencing was abolished because according to the Minister of Finance, it delayed the collection of revenue! All licences are issued subject to payment of licencing fees and charges.

Characteristics of a Licencing Law

Licences are statutory authorizations. The issue of a licence must be based on provision of a licencing law usually an Act of Parliament. The licencing law usually has the following provisions:

- **Licencing Authority** – Licences are issued by government or a government body. The relevant licencing authority must be specified in the relevant law.

A licencing authority may be:

- a) Government Department e.g. import licence issued by Ministry of Trade
- b) Public Corporation – communication licences issued by Uganda Communication Commission; CAA issues licences relating to operation of aircraft.
- c) Statutory body – National Council for Higher Education.
- d) Minister – licence to generate electricity under the Electricity Act.

It is important that a licence is issued by the proper authority or else there will be challenges about the validity of the licence.

Objectives of the Licence

The objectives of the licence are specified. These usually reflect any of the justification for issue of a licence. It is the duty of the relevant licencing authority to ensure that the licence attains the stated objectives. The regulations, conditions of the licence and discretions issued or exercised by the licencing body must reflect the stated objectives.

Conditions of Licencing

The law will always specify the conditions of licencing. The conditions usually include:

1. Suitable personnel
2. Qualifications
3. Registration
4. Inspections
5. Minimum industry standards
6. Payment of relevant fees, charges and royalties
7. Suitable premises

Powers of the Licencing Authority

The powers of the licencing authority are usually discretionary. The law gives the licencing authority discretion whether to issue or not to issue a licence. The law also empowers the licencing authority to recall or cancel a licence if the conditions of issue are not complied with. These powers must however be exercised judiciously. The licencing authority will be challenged where it refuses to issue a licence to a person who is qualified to hold such a licence.

Fernandes Vs Kericho Liquor Licencing

The High Court of Kenya overturned the decision of the licencing authority. The authority had refused to issue the licence to the applicant on grounds of citizenship. The relevant law did not provide for citizenship as one of the conditions of licencing. The court was of the view that the licencing authority had used an irrelevant factor in denying the applicant a licence. It declared that the applicant was entitled to be given a licence.

Similarly, in the matter of application of **Bukoba Gymkhana Club**, the High Court reversed the decision of the licensing authority on grounds that it had used an irrelevant matter of admission rules. The Club had held a licence for over 35 years. When it applied for renewal, the licencing authority refused to grant renewal on the reasoning that the Club's rules of admission made it difficult for Africans to be members. The Club's Rules required a prospective member to be recommended by existing members. The licencing authority interpreted this as a way of keeping out Africans since membership of the Club was wholly made up of Asians. The court said that the refusal to renew the licence was an abuse of powers because there was no requirement in the law to consider admission rules

Public Inquiries

Public inquiries are instituted under the provision of Commission of Inquiries Act Cap 166 of Laws of Uganda. Under the S.2 of Act, the President can institute a Commission of Inquiry into:

1. Conduct of a public officer
2. Conduct or management of any government department or local institution
3. Public welfare

A public inquiry is therefore in respect of matters of public concern. Matters of public concern are those unresolved issues on which the public need information and apportionment of responsibility. Commissions of inquiry have therefore been instituted in respect of the following:

a) **Isolated Incidents**

In 1970, a Commission of Inquiry was instituted in the disappearance and reappearance of Brin Lea. In 2000, a Commission of Inquiry was instituted into the purchase of helicopter for the army.

b) **Accidents**

A Commission of Inquiry was instituted in the plain crash in which Col. Jet Mwebaze died.

c) **Series or Patterns of Occurrences**

e.g. Commission of Inquiry in corruption in the police force.

d) **Existing and Proposed Policies**

e.g. Sempebwa Commission on Constitutional Review.

Mamdani Commission of Inquiry in formation of Districts.

Why Inquiries?

Commission of Inquiry is normally put in place to inquire into and report on some unresolved matter of public concern. A Commission of Inquiry therefore addresses the following issues:

- a) Causes of particular things, occurrences or accidents.
- b) Responsibility – who is responsible for failure to comply with the law or policies?
- c) To establish the social, economic, financial and other effects of an incident, accident or occurrences.
- d) To provide recommendation to the appointing authority.

Constitution of a Commission of Inquiry

The Act empowers the President to name Commissioners. The Secretary is always a public officer. The President is also empowered to provide the terms of reference for the inquiry and the period in which the inquiry should be completed and reports made to the appointing authority.

Powers of a Commission of Inquiry

The Commissions of Inquiry have powers and immunities of the High Court. They can therefore summon and compel attendance and examination of witness. They can also charge a witness for contempt of court.

Reports

The report of Commission of Inquiry must reflect the views of all Commissioners. They confirm this position by appending their signatures to the report. In *Annebrit Aslund Vs The Attorney General HC. Miscellaneous cause No. 441 of 2004* the High Court confirmed that the report of the Commission of Inquiry can be challenged where it is not duly signed by all the Commissioners. An individual Commissioner can however write an independent opinion. Ref. to Sempebwa's minority report on the findings of the Constitutional Review Commission 2005.

Formulation of a commission of inquiry

The commissions of inquiry must be properly formulated under the enabling law, in terms of the composition, quorum, legal constituted etc as discussed in the case of *Hon. Mukasa Fred Mbidde & Hon. Michael Mabike Vs Law Development Centre Hct-00-Cv-Ma- No. 0002 Of 2013* court held that "It is clear that this committee is charged with an important duty of conducting an inquiry or investigation with a view of making recommendations, affecting the rights of the citizens. As correctly described in paragraph 15 of the said affidavit in reply, it is "a quasi-judicial entity". For this matter it must be constituted in accordance with the law if it is to assume such important jurisdiction".

Ministerial Powers

The powers of the President under the Act are usually exercised by the Ministers in charge of government ministries. This is so by virtue of the provisions of the:

- a) Transfer of Powers and Duties Act which empowers the President to transfer some of his executive functions to minister.
- b) Art 99 (5) of the Constitution that allows the President to transfer his executive function to public officers subordinate to the President.



LEGAL PROCEEDINGS INVOLVING GOVERNMENT

Introduction

Legal proceedings against government are based on recent developments in the law. Originally, there was no legal right to proceed against the government. The absence of this right was based on the argument that it would be disruption to public services to subject government to legal suits. It was also argued that legal suits against government were not in public interest since government at all times endeavors to promote public welfare. This was the basis of the Supreme Court decision in the infamous case of **A.G v Silver Springs Hotel Ltd and others**. In their Lordships' view, injunctions could not lie against government, to provide safeguards against judicial interference in the Government's exercise of its prerogatives and privileges in public interest; to protect government against embarrassing court orders; and to keep the machinery of government going. This case however was overruled in **A.G v Osofraco Ltd**.

Under common law, government could be sued after obtaining a royal leave from the government itself. This is because justice in the United Kingdom was and is sought in the name of the King/Queen. This situation was obviously unsatisfactory because it allowed government to count wrongs which could not be redressed in courts of law.

This position was made worse by social, economic and social developments in society.

1. Government as a regulator of activities affected rights of citizens and other persons.
2. Government as owner, occupiers of property owed a duty to other persons who came in contact with properties.
3. Government became a contractor for goods and services. This involves rights and obligations which could be enforced for or against government.
4. Government as an employer of persons had responsibility to answer to the actions of its servants and agents.

In light of the above, the Crown Proceedings Act of 1947 was passed in United Kingdom. This law was substantially adopted under the Uganda Government Proceedings Act, which is the current law in Uganda

Legal proceedings against government are governed by the following Acts of Parliament:

1. Government Proceedings Act
2. Civil Procedure and Limitation (Miscellaneous Provisions) Act
3. Law Reform (Miscellaneous Provisions) Act

These foregoing laws give the legal liability to various actions, the limitation to liability and procedure to be followed in suits against government.

Liability of Government

Legal liability of government is found in S. 4 of the Government Proceedings Act. This section provides that government may be sued in respect of contracts, torts, breach of statutory duties. The Act also gives exceptions to liability. Government is liable as if it were a private person. It is a legal entity for purposes of legal proceedings and does not have special privileges other than those contained in the Government Proceedings Act and the Civil Procedure and limitation (Miscellaneous Provisions) Act.

Public Corporations

A typical provision for legal liability of a public corporation will be as contained in S. 2 of the Law Development Centre Act Cap 132 of laws of Uganda;

“This established a centre to be called the Law Development Centre which shall be a body corporate with perpetual succession and a common seal and may sue or be sued in its corporate name and, subject to this Act, may do or suffer all other acts and things as bodies corporate may lawfully do or suffer.”

Local Governments

The Local Governments Act S. 6 provides that local governments shall have corporate personality and shall have capacity to sue or be sued in their names.

Contracts

A contract is a legally binding obligation. It is made by parties on the understanding that it has legal consequences of performance. Government has legal capacity to enter into contracts with individuals, private companies, international bodies, etc.

Contract

Under common law, liability under contract could only be enforced by way of a royal fiat. This position was found to be unsuitable when governments became increasingly party to contracts which were of a commercial nature. Such contracts included; contracts for supply of goods, services, construction contracts, employment contracts etc. Such contracts required each party to meet its obligation under contracts. S.2 of Government Proceedings Act provides that government may be sued in contracts as if it was a private person.

This therefore means that government can contract as if it was a private person and once it contracts, it's bound by the laws of contract. Such contracts may be enforced under the general law of contract or under the specific laws relating to various contracts e.g employment contracts may be enforced under provisions of the Constitution, public service laws, public service regulations and standing orders.

Section 2 of the Government Proceedings Act provides that where any person has a claim against the Government after the commencement of this Act and the claim is either (a) a claim based on contract which, if this Act had not been passed, might by virtue of the Suits By or Against the Government Ordinance have been enforced by an action against the Government; or (b) such that, if it had been made in England against the Crown in right of its Government in the United Kingdom and if the Crown Proceedings Act, 1947, of the United Kingdom had not been passed, it might have been enforced in England, subject to the grant of Her Majesty's fiat, by petition of right, then, subject to this Act, the claim may be enforced by proceedings taken against the Government for that purpose in accordance with this Act. The section evidently shows among others that Uganda applies the common law principles before 1947 to proceedings against government.

Unenforceable Contracts

They may be unenforceable contracts against government. Examples of such contract are void contracts, contracts deemed to be contrary to public policy for instance contracts to commit crimes, illegal contracts, and contracts entered into when the parties had no capacity. [see **Stinger Vs Minister of local government**]

Contracts involving money payment are only enforceable where parliament has provided for the necessary funds. Contracts which may be in form of treaties are unenforceable in the domestic perspective unless they have been part of municipal law.

Characteristics of government contracts

The contracts have usual attributes of private contracts e.g consideration, agreement, parties, terms and conditions. There are however, special features which are common in government contracts;

1. They are normally executed by senior public officers usually a minister, permanent secretary or an ambassador especially if the country and public officer executing the contract on behalf of government. Personal liability may arise where public officer has failed / refused to oblige with the applicable law and procedures.
2. Entered on standard terms and conditions of contract, government sets terms and conditions and the other party usually accept in a stronger position in bargaining position and set terms, and usually standard forms and contracts are adopted as discussed in case of **Clear Channel Independent (U) Ltd versus PPDA miscellaneous application number 380 of 2008** where honourable Justice Yorokamu Bamwine held *"that section 62 was mandatory. Regulation 128 (1, (2)) makes the use of solicitation documents for services mandatory. Under regulation 131 (1) (e) solicitation documents must indicate contractual terms, price and costs. It is only those documents which would constitute a legal valid offer for public procurement. Finally under regulations 229 (1) and (2) the contract shall be in accordance with the form in the solicitation documents and shall clearly identify the obligations of each party"*

3. Approval of contracts by the Attorney General, Art 119 of the constitution requires that the Attorney General draws and peruses and approves all government contracts or agreements in which government has an interest.

Follow procurement laws i.e. public procurement laws and regulations. Currently the applicable law is the Public Procurement and Disposal of Assets Act and section 2 of the Act provides that the act among others applies to Government contracts. As discussed in the case of the case of Clear Channel Independent (U) Ltd versus Public Procurement and Disposal of Public Assets Authority Miscellaneous Cause Number 380 of 2008. In that case the applicant applied for judicial review pursuant to a decision of the Respondent permitting the decision of the Civil Aviation Authority (CAA) to go ahead with the tender process. The Authority had established pursuant to the application of the applicant that there were very many irregularities in the tender process and consequently the grievance of the applicant in the judicial review application was that the respondent erred in law when it allowed the tender process to proceed despite procedural flaws which it had identified and which flaws were a contravention of statutory provisions. The review of the authorities by Honourable Justice Bamwine that a court of law cannot sanction what is illegal and illegality once brought to the attention of the court overrides all questions of pleadings was in the context that the PPDA Authority had overlooked irregularities which were a breach of statutory provisions. He concluded that the award had been made contrary to established procedure and the respondent erred in law to allow the tender process to proceed despite the procedural flaws.

4. They are based on availability of funds through the relevant Appropriation Acts or donors. An appropriation Act is one which devotes a specified amount of funds out of the consolidated fund in order to service a financial year and to appropriate the supplies granted.
5. The manner in which public officials contract is also meticulously restricted under The Leadership Code Act and The Anti-Corruption Act. For example under s.10 of the Leadership Code Act a leader must not put himself in a position where his personal interests conflict with his official duties.

Contracts against government are enforceable in ordinary courts. Government can therefore be sued for breach of contract e.g. failure to pay the agreed price or for unlawful termination of employment contract. Government is therefore liable as if it was a private person of full age and capacity. The successful party against government may be awarded damages.

Contracts against government may however not be enforced in the following circumstances:

1. If it is inconsistent with public interest.
2. If based on mistake.
3. Where there is a misrepresentation.
4. Where Parliament has not appropriated the necessary funds and it was within the knowledge of the parties.

Torts

A tort is a civil wrong which entitles the victim a redress by way of damages. Section 3 of the Government Proceedings Act (herein called GPA) provides that subject to this Act and section 4 of the Law Reform (Miscellaneous Provisions) Act, the Government shall be subject to all those liabilities in tort to which, if it were a private person of full age and capacity, it would be subject (a) in respect of torts committed by its servants or agents; (b) in respect of any breach of those duties which a person owes to his or her servants or agents at common law by reason of being their employer; and (c) in respect of any breach of the duties attaching at common law to the ownership, occupation, possession or control of property, except that no proceedings shall lie against the Government by virtue of paragraph (a) of this subsection in respect of any act or omission of a servant or agent of the Government unless the act or omission would, apart from this Act, have given rise to a cause of action in tort against that servant or agent or his or her estate.

Section 3 (2) of Government Proceeding Act, provides further that, where the Government is bound by a statutory duty which is binding also upon persons other than the Government and its officers, then, subject to this Act and section 4 of the Law Reform (Miscellaneous Provisions) Act, the Government shall, in respect of a failure to comply with that duty, be subject to all those liabilities in tort, if any, to which it would be so subject if it were a private person of full age and capacity.

Under section 3 (3) of the Government Proceeding Act, where any functions are conferred or imposed upon an officer of the Government as such, either by any rule of the common law or by any enactment, and that officer commits a tort while performing or purporting to perform those functions, the liabilities of the Government in respect of the tort shall be such as they would have been if those

functions had been conferred or imposed solely by virtue of instructions lawfully given by the Government.

Section 3 (4) of the Government Proceedings Act states that any enactment which negatives or limits the amount of the liability of any Government department or officer of the Government in respect of any tort committed by that department or officer shall, in the case of proceedings against the Government under this section in respect of a tort committed by that department or officer, apply in relation to the Government as it would have applied in relation to that department or officer if the proceedings against the Government had been proceedings against that department or officer.

However, under section 3 (5) of the Government Proceedings Act, no proceedings shall lie against the Government by virtue of this section in respect of anything done or omitted to be done by any person while discharging or purporting to discharge any responsibilities of a judicial nature vested in him or her, or any responsibilities which he or she has in connection with the execution of judicial process.

From S.3 Government Proceeding Act Cap 77 above, government is liable in torts under the following limbs;

- Vicarious liability
- Employer's liability
- Occupier's liability.

Vicarious Liability

This is the liability of an employer regarding the activities of his/her employee. The employer is liable for the torts of his or her employee which are committed in the course of employment. In order to succeed, the claimant must prove:

- a) That the person who committed the tort was an employee of government at the material time.
- b) That he was doing what he was employed to do.
- c) That he has not had immunity against liability.

Scope of Employment

Vicarious liability only applies where the servant acts within the scope of employment scope of employment in:

- a) Doing what expressly the servant has been told to do.
- b) Doing what is by implication authorized by nature of employment.
- c) Doing what is incidental or consequential to what is authorized.

Examples of Scope of Employment

- 1. Driver driving a government vehicle and causes an accident.
- 2. Policemen shooting a person while stopping a demonstration.
- 3. A medical doctor giving wrong medication in course of treatment.

In all the above, government can be sued for damages, money compensation. In **Muwonge Vs Attorney General**, In this case, government policemen were sent to Nakulabye to suppress a riot and they shot ten men dead. The Attorney General was held liable. Court observed that an employer remains liable even when the employee acts negligently, malicious or deliberately provided the employee was doing what he was employed to do. In the above stated case, Newbold P held;

‘...I accept, as did the trial judge, that the act of the particular policeman who shot the deceased was a wanton act, an unlawful act, an act in the particular circumstances which was not justified. But that does not mean to say that it was not an act done in the course of his duties. A policeman may still be acting in the course of his duties if the manner in which he carries out his duty is a wrong one but nevertheless he is still carrying it out. The inference of fact drawn by the trial judge and in my view correctly drawn, was that the policeman whoever he may have been, who caused this death did so by following what he thought was a rioter entering the house and firing wantonly into the house, not caring whom he killed or injured. This to my mind is merely a wrong manner, a wrong mode, of carrying out the policeman’s duty.....This being so, it was an act for which the Attorney General as representing the state, is liable.”

In **Mukwese Vs Attorney General**, the plaintiff claimed damages for personal injuries sustained by him as a result of an accident involving a Ministry of Works vehicle. He claimed that the person who was driving was negligent. Government however established that the person who was driving was a plumber (not a driver) who was not within the scope of his duties. The court held that government could not be vicariously liable.

In **Namwandu V AG** [1972] EA, court held that at the time of the accident, the soldiers were acting on frolic of their own and not doing anything for their masters as such, government could not be held vicariously liable for the torts committed by them.

Employers Liability

S.3 Government Proceedings Act provides that government will be liable for breach of those duties which a person owes his servant or agents at common law by reason of being their employer.

- a) Reasonable for safety in employment by employing competent staff.
- b) Provision of safe, suitable place and tools of work which are appropriate.
- c) Provision of effective supervision and system of work e.g. when injured at work, compensation is provided for under worker's compensation act, an employer has a duty to pay

Occupiers Liability

Government as an occupier of premises is also under a legal obligation to ensure safety of those premises. S.3 GPA makes government liable for breach of those duties which under common law are attached to ownership, occupation, possession or control of property and generally these duties relate to safety of the property to invitees(people who are legally there) or neighbours (persons likely to be affected by that) e.g. nuisance.

Breach of legal Duties

Government can also be sued for breach of constitutional and statutory duties i.e. for failure to carry out a public duty that is contained in some Act of Parliament. In this case, the complainant must prove the following:

- a) That there is a law giving that duty.
- b) That government has refused or neglected to carry out that duty.
- c) That the complainant is within the class of persons that would benefit if that duty was carried out.

Functions and services for which government is responsible are listed down in the sixth schedule to the constitution and include the following *inter alia*:

- a) Arms, ammunition and explosives
- b) Defense, security and maintenance of law and order
- c) Taxation and taxation policy
- d) Citizenship, immigration, emigration, refugees, deportation, extradition, passports and national identity cards.
- e) Land, mines, mineral and water resources and the environment
- f) Foreign relations and external trade
- g) Regulation of trade and commerce
- h) Making national plans for provision of services and coordinating plans made by local government
- i) National elections
- j) Energy policy
- k) Transport and communications policy
- l) Public services in Uganda etc.

Such government liability may result into declarations or compensation by way of damages. Special classes which may bring such claims are persons with disabilities, minorities and disadvantages groups.

Limitation to Liability

There are some statutory provisions which limit government liability. These include:

Judicial immunity

Under article 128 (4) of the constitution, no liability arises where a judicial officer does any act or omission in the exercise of judicial power. In **Anderson Vs Gorrie**, the judges of the Supreme Court of Trinidad and Tobago maliciously committed the plaintiff for contempt of court. When he applied for bail, they demanded excessive bail. The plaintiff sued for damages in order to recover damages.

It was held that although the judges acted in bad faith, no action would lie in respect of their judicial decisions. Similarly, in the Kenyan case of **Attorney General Vs Oluoch**, the respondent sued the Attorney General, two District Magistrates and two police officers for wrongful abuse and detention. The Court of Appeal for East Africa held that the action was not maintainable because the suit was in respect of

exercise of judicial functions. It should be noted that judicial immunity only covers acts done in exercise of judicial power. It therefore follows that a judicial officer who breaches his obligations under a contract is liable to the injured party and shall not plead judicial immunity.

Immunity of Public Officers

Public officers do not incur individual liability where they act in accordance with the law. Vicarious liability on behalf of government can therefore not arise. Hence a police officer cannot be liable in arrest, service of lawful warrants or searches. See s43 of the Police Act. And under Article 173 of the constitution A public officer shall not be victimized or discriminated against for having performed his or her duties faithfully in accordance with this Constitution; or dismissed or removed from office or reduced in rank or otherwise punished without just cause.

Act of State doctrine

An Act of State arises out of transactions between states. It is generally agreed that agreements and contracts between states do not give individuals rights which can form a basis of legal actions. In the Kenyan case of **Olile Njogo Vs Attorney General**, the Masai sued the British government for violation of the Masai Agreement. The agreement was in respect of annexation of Masai lands. When sued, the British government successfully placed an act of state doctrine and the court held that the British government could not be sued by individuals since it had contracted with a sovereign power. Similarly, in the case of **Katikiro of Buganda Vs Attorney General of Uganda**, the Attorney General was sued in respect of 1995 Agreement between Buganda. The Attorney General successfully pleaded Act of State Doctrine.

Armed Forces

S. 6 of the Law Reform (miscellaneous provisions) Act provides that government is not liable for death or injury occasioned by a member of the armed forces while on duty. Government is also exempt from owners' liability in respect of military aircraft, ship or vehicles.

These exemptions do not extend to civilians or non members of the armed forces. In **Sengendo Vs Attorney General**, government was held liable for "wanton, unlawful

and unjustified” acts of soldiers who attacked the plaintiff after the attempted assassination of President Obote in 1969.

Procedural Matters

S.7 Government Proceedings Act provides all civil proceedings by or against the Government in the High Court shall be instituted and proceeded with in accordance with rules of court and not otherwise. There are however, a few exceptions which are mainly contained in Civil Procedure and Limitation Act (miscellaneous provision Act).

NB. To protect public interest some of the important procedural matters include; specific procedures which apply to government not other entities.

Statutory notice

S.2 of Civil Procedure and Limitation (miscellaneous provision) Act It provides inter alia that no suit shall be brought against government, local authority or scheduled corporation until a statutory notice of 45 days has been served. The purpose of the notice has been served to appropriate officer (Attorney General) or the head of scheduled corporation or Chief Administrative Officer in Local Government. The requirement of notice are based on the idea that on receipt of notice, government will make a decision as to it's whether it is necessary to entertain the suit.

However in the case of *Kabandize and 20 others Vs Kampala Capital City Authority Civil Appeal No. 28 of 2011, Justices of the Court of Appeal While construing Section 2 of The Civil Procedure and Limitations (Miscellaneous Provisions Act)*

“it was noted that Section 2 gives preferential treatment to one party to a suit by requiring the other party to first serve it with a 45 days mandatory statutory notice of intention to sue. The section is also discriminatory in that it requires one party to issue statutory notice to the other without a reciprocal requirement on the other. None compliance renders a suit subsequently filed by one party incompetent.”

Thus section 2 of the Civil Procedure and Limitations (Miscellaneous Provisions Act) was declared unconstitutional since it contradicts Article 20 of the 1995 constitution.

1. Suits against the government are brought against the Attorney General **Article 119** of the Constitution. It provides that the Attorney General shall represent government in

courts or any other legal proceeding in which government is a party. Section 10 of the Government Proceedings Act, provides that Civil proceedings by or against the Government shall be instituted by or against the Attorney General. Section 11 thereof requires that all documents required to be served on the Government for the purpose of or in connection with any civil proceedings by or against the Government shall be served on the Attorney General.

2. Suits against Attorney General may be brought in any court which has jurisdiction over the matter in question. The Attorney General may however, apply for a suit to have the suit transferred to high court, if it is filed in lower courts and Attorney General may make the application where there is an opinion that an important matter of law may arise from that suit. This is provided under section 13 of the Government Proceedings Act.
3. Limitation periods relate to periods in which an action must be brought against a party. Under S.2 of Civil Procedure and Limitation Act, no action founded on tort can be brought against government, local authority or scheduled corporation after the expiry of 2 years from the date of which the action was done. The section also provides that no action founded on contract shall be brought after expiry of 3 years from the date on which the action arose.
4. Limitation period against government in torts and contracts are reduced. In torts, actions against government must be brought within 2 years (as against 3 years in other claims). In contracts it is 3 years (as against 6 years for other claims).

However, there some remedies which are not available against government as provided under section 14 of the Government Proceedings Act. These include;

- (a) Injunction, however in the case of **Attorney General V Osostraco Ltd** where court noted that an injunction can be granted under against Government under special conditions.
- (b) Specific performance S.14 Civil Proceeding and Limitation Act, provides that an injunction, specific performance and attachment cannot be awarded
- (c) No remedy of attachment can issue against government property i.e. cannot attach government property. Section 19 (4) of the Government Proceedings Act Cap77. It provides that except as is provided in this section, no execution or attachment or process in the nature of an execution or attachment shall be issued out of any court for enforcing payment by the Government of any such money or costs as are referred to in this section, and no person shall be individually liable

under any order for payment by the Government, or any Government department or any officer of the Government as such, of any such money or costs.

(d) An *ex parte* judge cannot be made in default of appearance of government under the Government Proceedings (civil procedure) Rules *ex parte* with leave of court as discussed in the case of *Sengendo vs Attorney General* [1972] EA 140.

(e) State privilege in the law of evidence S.121 and 132 of the Evidence Act. They give the state privilege in the law of the evidence, that public officer cannot be compelled to give evidence relating to confidential government public communication. See Article 41 of the Constitution. See, **Tinyefunza Vs AG**. The Official Secrets Act also restricts public officers from disclosing certain information that may be in their possession or knowledge. The Official Secrets Act however is in contradiction with Access to information Act which operationalizes article 41 of the constitution Art 41 gives all citizens a right of access to information in possession of the state except where such information is likely to prejudice the security or sovereignty of the state. The Access to Information Act gives the legal framework for accessing information which is in possession of the state.

In the case of *A.G V Osotraco Ltd ((Civil Appeal No 32 Of 2002)) [2005] UGCA 1 (30 June 2005)*, the respondent Osotraco ltd. Claimed to be the registered proprietor of the suit property, at plot No.69 Mbuya Hill, Kampala, having purchased the same from Uganda Times Newspapers and got duly registered. The property was however at the material time occupied by the employees of the Ministry of Information who refused to vacate despite a request so do so. The respondent successfully filed a suit claiming for an order of eviction from the suit premises, and a permanent injunction. Justice Engonda Ntende held that s.15 of the Government Proceedings Act was not in conformity with the Constitution. The learned judge stated that there was need to do away with archaic state protection and to pace the state or the government at par with any juristic legal entity in line with modern social thinking of progressive modern societies.

The A.G appealed and the following grounds were framed for courts decision:

1. That the learned judge erred in law and fact when he construed s15(1) (b) of the Government Proceedings Act not to be in conformity with the constitution.
2. That the learned judge erred in law in granting the respondent an order of vacant possession of the suit property and eviction as against the appellant.

Upholding the decision of the trial court, the court of appeal came up with the following findings;

1. That article 273 of the constitution empowers all courts to modify existing unjust laws without necessarily referring to the constitutional court.
2. That powers and immunities of the state are not immutable anymore. Article 20(2) enjoins everybody including government agencies to protect and respect individual fundamental rights.
3. Article 26 protects the respondent's rights to own property.
4. The respondent having obtained judgment in the high court was entitled to meaningful redress under article 50 of the constitution.

Byrne v Ireland and the A.G of I.R 241 at 282

Walsh JSC said, "where the people by the constitution create rights against the state or impose duties upon the state or impose duties upon the state, a remedy to enforce them must be deemed to be available. It is as much the duty of the state to render justice against itself in favor of citizens as it is to administer the same private individuals. There is nothing in the constitution envisaging the writing into it of a theory of immunity from suit of the state (a state set up by the people to be governed in accordance with the provisions of the constitution) stemming from or based upon the immunity of a personal sovereign who was the key stone of the feudal edifice-English common Law practices, doctrines or immunities cannot qualify or dilute provisions of the constitution.

CIVIL PROCEDURE AGAINST GOVERNMENT

Common terminologies in civil procedure

Pleadings; The legal papers that are filed in court at the beginning of a civil suit and they may include a plaint, chamber summons, petitions, Notice of Motion, written statement of defence etc.

Plaintiff or petitioner or applicant: is person claiming any right to relief in respect of a cause of action whether jointly, severally or in the alternative.

Defendant or Respondent; is person against whom there is a claim of any right to relief in respect of a cause of action, whether jointly, severally or in the alternative.

Cause of action; is a set of facts sufficient to justify a right to sue to claim a right or the enforcement of a right against another party as noted by Spry, V.-P in *Auto Garage & Another v Motokov (No.3) [1971] E.A.514 at page 519*. He stated thus: *"I would summarize the position as I see it by saying that if a plaint shows that the plaintiff enjoyed a right, that the right has been violated and that the defendant is liable, then in my opinion, a cause of action has been disclosed and any omission or defect may be put right by amendment."*

Summons; Summons is an order from the court where the civil suit will be heard or litigated. It notifies the defendant in the case that he or she has been sued, refers to the pleadings, and sets out the time limit within which the defendant must file an answer or seek to have the case dismissed. It will also describe the consequences of failing to respond in a timely manner: the case may be decided without the defendant and he or she may be bound by the result even if they did not participate. Failing to respond to a civil suit on time will cause a defendant to be liable in default.

General Principles of Civil Procedure

Civil procedure is aimed at achieving civil justices and it is premised on the following principles:

1. Regulating access to court and to justice;
2. Ensuring the fairness of the process;

3. Maintaining a speedy and effective process;
4. Achieving just and effective outcomes.

The above principles are incorporated under the 1995 constitution, article 126 is to the effect that

“Judicial power is derived from the people and shall be exercised by the courts established under this Constitution in the name of the people and in conformity with law and with the values, norms and aspirations of the people.

(2) In adjudicating cases of both a civil and criminal nature, the courts shall, subject to the law, apply the following principles—

(a) justice shall be done to all irrespective of their social or economic status;

(b) justice shall not be delayed;

(c) adequate compensation shall be awarded to victims of wrongs;

(d) reconciliation between parties shall be promoted; and

(e) substantive justice shall be administered without undue regard to technicalities.”

Parties to a civil suit

A plaintiff is at liberty to sue anybody he thinks he has a claim against and cannot be forced to sue somebody See **R. Karuhanga v NIC & Anor [2008] HCB 151**. This however does not mean that he or she can sue just anybody even if that person does not have sueable capacity. Therefore, before an entity or person can sue or be sued, they must be clothed with the legal capacity to do so.

A legal person has been defined as an entity that has the legal capacity to represent its own interests in its own name before a court of law, to obtain rights or obligations for itself, to impose binding obligations, to grant privileges to others, for example as a plaintiff or as a defendant. This status is conferred by law and is not simply assumable. Read **Kakooza Mutale v Attorney General & others [2001-2005] HCB 110**.

Effect of suing a wrong party

Circumstances arise where wrong parties are sued. In such a case, the wrong party is struck off and the right party is substituted.

In the case of *Lukyamuza James v Arkright Project Ltd & Anatoli Kamugisha HCCS No 319/2002*, the plaintiff sued the defendants for a commission of 5 million shillings that arose out of a sale of land transaction. At the hearing, the 2nd defendant raised a preliminary objection to the effect that he was improperly joined as a party to the suit since the acts complained of were allegedly those of the 1st defendant, a company and therefore a separate legal entity from its directors. The plaintiff stated that he knew the 2nd defendant as the owner of the 1st defendant. The judge while making a ruling on the preliminary objection observed that the company is at law a different person altogether from the subscribers. That the 2nd defendant as a director of the 1st defendant was not liable for the acts or omissions of the 1st defendant. That the 2nd defendant was a wrong party to the suit and his name was accordingly struck off with costs.

Whenever a wrong party is sued, the court is empowered to rectify the situation by adding or striking out the parties.

Effect of suing a nonexistent party

Unlike where a party is wrongly sued, suing a nonexistent party is a fatal mistake that cannot be cured through substitution with the right party. Such suit is a nullity from the very beginning.

In the case of *Pual Nyamarere v UEB (in Liquidation) [2008] HCB 126*, UEB was sued yet under s 26(2) of the Electricity Act 1999, UEB ceased to exist and was taken as dissolved. The court held that the existence of UEB was thus a question of law. That a nonexistent entity can't sue or be sued. Any suit against or on behalf of a nonexistent entity is a nullity and so is any judgment arising there from.

Thus it is incumbent on practitioners and litigates to carry out serious investigations and thorough research to establish the legal capacity of both parties as a preliminary step in the institution of civil suits and parties with legal capacity include;

Minors and persons of unsound mind

Both minors and persons of unsound mind are under a disability at law which prevents them from assuming the rights and liabilities of an adult. A minor is defined by the Constitution as a person under the age of 18 [Article 257 (1)(c)] of the Constitution. Suits by minors and persons of unsound mind are to be instituted in their names by a next friend with a written authority of the minor or person of unsound mind. Where this is not complied with, the suit automatically becomes invalid.

A next friend has no power to consent to the dismissal of an action without the court's approval. Neither can he or she withdraw an action without the sanction of court. The court is given the mandate to appoint guardians for defendants who are minors or persons of unsound mind.

Personal representatives and Beneficiaries

In order to be clothed with power to deal with an estate or to sue or to be sued, the court must grant letters of administration or probate as discussed in the case of **Khalid Walusimbi V Jamil Kaaya [1993] I KALR 20.**

Companies

From date of incorporation, a company becomes a body corporate and can sue and be sued in its names. It is important to note that where proceedings are brought in the name of a company, there must be authority for bringing the action.

Partnerships

Where two or more persons are liable as partners carrying on business in Uganda, they may sue or be sued in the name of the firm. Where persons are sued as partners in the name of their firm, they are under the obligation to appear individually in their own names, although the proceedings are to continue in the name of the firm.

In the case of *Geoffrey Gatate & Anor Vs Willaim Chobe [2007] I HCB 54*, a suit was instituted against a firm comprising of 3 partners. The summons was served on one of the partners and he entered a consent judgment on behalf of the firm without the knowledge of the other partners. The other partners came to know of the consent

judgment when they were served with a warrant of attachment in execution of the decree commanding for the attachment of property belonging to the appellant as partners in the firm. The appellants filed for an application praying for staying execution and setting aside the execution. The application was dismissed and the appellants appealed on grounds that the court erred by unduly relying on the consent judgment of one of the partners who acted fraudulently. While granting the order to set aside the consent judgment, the supreme court held that under O 30 rules 6 and 7, it is mandatory for partners to enter appearance in their individual names because a suit against a partnership firm is in essence a suit against the individual partners jointly and severally. That a firm is not a corporate legal person nor does it vest the person a power of attorney to act for all the partners of the firm sued.

Donees of powers of attorney

A holder of a power of attorney ought to take proceedings in the name of the owner of the property. The attorney has no cause of action. In case of *JB Mpanga suing through his lawful Attorney, Mpanga Gerald, Kasule Gerald & Kasujja Nelson v Nkamuhayo Rwacumika HCCA No 19/ 2009* the applicant brought an application for leave to amend his pleadings. His (Gerald Mpanga) affidavit stated that he was the applicant and he swore the affidavit in that capacity. The respondent in his affidavit in reply stated that his lawyers informed him that the application was incompetent as the deponent to the affidavit in support of the application was not the applicant and that his swearing to it in that capacity was erroneous. The judge noted that a careful study of the said powers of attorney showed that JB Mpanga was the claimant of the suit land and appointed 3 persons as his lawful attorneys and stated what they were supposed to do for him and on his behalf. There was nowhere where it was stated that Gerald Mpanga in his own behalf and not for the claimant shall do all the specifications as specified in the powers of attorney. Therefore, by Gerald Mpanga deposing the affidavit and presenting himself as the applicant was a fundamental departure from the powers of attorney and makes it totally defective. The application had to fail as it was supported by an affidavit marred with falsehoods.

Government and Local Government

Civil proceedings by and against government are instituted by or against the attorney general as per Article 250 (2) of the Constitution and *Col (Rtd) Kizza Besigye & 22 Ors v*

The Director of Public Prosecutions & the Attorney General Constitutional Petition No 12/2006.

However, when it comes to local governments, every local government is a body corporate and has capacity to sue or be sued as per Section 6 of the Local Government Act Cap 243. This was expounded on in the case of ***Victor Juliet Mukasa & Anor v AG*** [2008] HCB 168. This was an application brought against the attorney general under vicarious liability for acts violating human rights committed by various officials including Local Council 1 officials against the applicants. One of the issues that arose was whether the attorney general is liable for acts of LC officials belonging to the lower local government administrative unit. It was held that the lower local government administrative unit is a body corporate and can sue or be sued in its corporate name under the Local Government Act.

Services of summons and other court documents

Issuance and service of court process is one of the important procedures in the procedure of litigation. In the case of ***Craig v Kanssen*** [1948] 1K.B 256 an order of enforcement of a judgment was obtained against the defendant. However, the defendant had not been served with summons. In an application to set aside the judgment, court held that failure to serve process where service of process is required renders null and void an order made against the party who should have been served. Goddard L.J went on to observe that,

“...it is beyond question that failure to serve process where service of process is required goes to the root of our conceptions of the proper procedure in litigation.”

The law provides that the defendant has to be served in the manner prescribed to enter appearance and answer the claim against him or her (***S 20 & 21 of the CPA & O 5 r 1 of the CP Rules***).

It is very vital from the onset to understand that all orders, notices and documents required by the Act to be served on any person are to be served in the manner provided for the service of summons²⁴.

²⁴ O 49 r 2 of the Civil Procedure Rules and *Century Enterprises Ltd v Greenland Bank (in Liquidation)* HCMA No 916/2004 and O 49 r 2 of the CP Rules-

Effect of irregularities in the Court processes

Although, this is the ideal, situations do arise where for one reason or the other, court processes are not signed and sealed by the responsible officers.

The effect of such an occurrence was considered in the case of *Tommy Otto v Uganda Wildlife Authority HCCS No 208/2002*.

In this case, one of the preliminary objections that were raised was that the hearing notice issued for the day's hearing was neither signed by the registrar nor dated and that therefore the matter was improperly before court. The court held that a hearing notice is issued by the court and the plaintiff cannot be held liable for the negligence of the staff in the court registry to have issued an undated and unsigned hearing notice. The hearing notice indicated the date when the matter was due before the court and was sealed by the seal of this honorable court. That despite the said effects, the hearing notice served the purpose for which it was intended and both parties were before court. The said defects could therefore be ignored since they did not cause any injustice to any of the parties.

In this era of wide spread forgery of official documents including court documents, it is highly advised that the relevant officials should ensure that court processes should meet all the requisite legal requirements before they can be issued. A seal goes far in determining whether a document is authentic or not.

On whom are summons served

Service of summons must be personal as discussed in *Kasirivu & 4 ors v Bamurangye & 3ors [2009] I HCB 42*. However, it may not always be possible to personally access the defendant. Where the defendant cannot be found, summons can be served on his agent or an adult member of his family²⁵. (Adult member of the family means one above 18 years.), an employer or by placing the summons on the conspicuous place of residence.

²⁵ O5 r 13 of the CP Rules and Betty Owaraga v Goerge William Owaraga HCCA No 60 of 1992

Proof of service

The law and practice is that the person served or who receives service on behalf of the defendant should sign on the original court process acknowledging receipt of the process.

In the case of *Kasirivu & 4 ors v Bamurangye & 3 ors* [2009], it was held that where a duplicate or copy of the summons / notice is duly delivered and tendered to the defendant or his lawyer, they shall be required to endorse it. This is mandatory and none compliance means that service has not been effected.

The court process server is required to swear an affidavit of service to the effect that he or she effected service and under what circumstances the service was effected.

This was expounded upon in the case of *Edson Kanyabwera v Pastori Tumwebabaze* [2001-2005] HCB 98. This was an appeal against the decision of the court of appeal where it refused to set aside an exparte judgment yet there was no proof of service of the hearing notice on the court record. The Supreme Court held that an affidavit of service has to be sworn where summons have been served equally applies to the service of hearing notices. This is mandatory and the absence of the affidavit of service of the hearing notice on record inevitably leads to the conclusion that the defendant was not properly served with the hearing notice before the suit was heard in his absence.

Time within which service of court process should be effected

Service of court process must be served within 21 days from the date of issue²⁶. However, the law allows time to be extended by the plaintiff making an application. This application must however be made within fifteen days after expiration of the twenty one days and it must show sufficient reasons for the extension. The “sufficient reason” must relate to the inability²⁷.

Execution

Execution may be against a person who is a judgment debtor which consists of arresting and imprisoning him or it may be against the property of a judgment

²⁶ 05 r 2 of the CP Rules and *Century Enterprises Ltd v Greenland Bank (In Liquidation)* HCCS NO 877 OF 2004

²⁷ *Mugo v Wanjiri* [1970] EA 481 at page 483

debtor which may take the form of attaching and selling his property to pay the decree holder. Simultaneous execution may be refused by the court.

Modes of Execution

Modes for execution are diverse. The judgment creditor has the option of choosing the one that is most appropriate in order for him or her to get the fruits of the judgment.

Arrest of Judgment Debtor

This may be for different decrees some of which may be for money or those other than for the payment of money. A decree for money a times called the money decree is issued by court where one party fails to pay the amount of the judgment debt plus the costs of the suit. Execution is done by issuing a warrant of arrest. Where a warrant of arrest is issued, it should be executed by an officer of court appointed accordingly.

Attachment

Attachment of debts.

This is a process by means of which a judgment creditor is enabled to reach money due to the judgment debtor, which is in the hands of a third person. A garnishee order changes the obligation of the third party to pay the judgment creditor directly.

Attachment of movable property other than agricultural produce.

Where the property to be attached is movable property other than agricultural produce, in the possession of the judgment debtor, the attachment shall be by actual seizure, and the attaching officer shall keep the property in his own custody or in the custody of one of his subordinates, and shall be responsible for the due custody thereof.

In the event that the property seized is subject to speedy and natural decay, or that the expense of keeping it in custody is likely to exceed its value, the attaching officer may sell it at once.

Movable property in the possession of a judgment debtor will not be attached if the judgment debtor is only entitled to a share in the movable property, rather court will

issue a notice to the judgment debtor prohibiting him or her from transferring his or her share or interest or charging it in any way.

Attachment of agricultural produce

What is agricultural produce?

This is growing crop standing on the land on which it has been grown or cut crop lying on the threshing floor or fodder stock. Thus grain separated from the chaff ceases to be agricultural produce. This is done by affixing a copy of warrant of attachment on the land on which the growing crop has been grown or where the produce has been cut or gathered on the barn, stock or place in which it is stored. The other copy is affixed on the outer door or on some conspicuous part of the house in which the judgment debtor ordinarily resides, or with leave of court on the outer door of his or her work place or last known work place or place of abode. It is at this point that possession of the produce passes to court.

It should be noted that agricultural produce can only be attached if it is in the possession of the judgment debtor and not a third party. Much as agricultural produce is movable property the procedure for the actual seizure of movable property cannot be applied here for fear of causing considerable injury to both parties. This is why the rules provide for court making arrangements for the custody of the produce as it deems sufficient. This is why the applicant should endeavour to specify in his or her application for attaching a growing crop when the crop will be fit for cutting or gathering²⁸.

As court makes arrangements for the custody of the crop, the judgment debtor should take the necessary agricultural steps for the maturity or preservation of the crop .Failure to do will be taken as neglecting the crop with the intentions of defeating execution and the interests of justice.

Attachment of immovable property

Where the property is immovable, the attachment shall be made by an order prohibiting the judgment debtor from transferring or charging the property in any way, and all persons from taking any benefit from such transfer or charge. The order also orders the judgment debtor to deliver up to the court a duplicate certificate of title.

²⁸ Order 22 rule 42(1)

A copy of the order shall be served by affixing it on a conspicuous part of the property or be served on the judgment debtor and further advertised as the court may direct.

For attachment of immovable property to be effective first there must be an order of attachment and secondly in execution of that order formalities prescribed therein have to be complied with, that is there must be a prohibitory order restraining the person from in any way alienating the property sought to be attached. Thus for an order for attachment to become effective the above conditions must be complied with. A mere order for attachment is therefore not sufficient to invalidate an alienation made subsequent to the order but before an attachment is actually effected pursuant to the order.

Limitation to liability

Expiry of a limitation period provides a defendant with a complete defence to an action. Lord Griffiths in *Donovan v Gwentys Ltd* [1990] 1 WLR 472 said,

“ The primary purpose of the limitation period is to protect a defendant from the injustice of having to face a stale claim, that is a claim with which he never expected to have to deal with”

If a claim is brought a long time after the events in question, the likelihood is that evidence which may have been available earlier may have been lost, and the memories of witnesses who may still be available will inevitably have faded or become confused. Further, it is contrary to general policy to keep people perpetually at risk. The claimant still has a cause of action, but one that cannot be enforced.

Once the limitation period has caught up with a litigant, he or she can only be saved by the exceptions to limitations. In the case of *Makula International v His Eminence Cardinal Nsubuga* [1982] HCB 24, it was held that Court has no inherent jurisdiction to enlarge time laid down by a statute.

Defences to limitation

1. Disability is one of the defences that can be raised to counter limitation. Disability depends on the circumstances of each case since it is not defined.

In the case of *William Muledhu v AG* [1998] KALR 687, the plaintiff was detained by false imprisonment and was also maliciously prosecuted. He was released on

10/07/96. He brought the action on 30/9/1997. He pleaded poverty for failure to bring the suit within 12 months. It was held that poverty was not a disability envisaged under the exemption under the civil Procedure and Limitation (Miscellaneous Provisions) Act. The court went on to hold that the Civil Procedure Rules provide for an opportunity to persons who are not possessed with sufficient means to pray to file pauper suits.

Where the actions are against the government, local authorities or scheduled corporations, then the action is to be brought at any time before the expiration of twelve months from the date when the person ceased to be under disability²⁹.

In other actions, the action can be brought at any time before the expiration of six years from the date when the person ceased to be under disability.

2. Another defence to limitation is acknowledgement of the claim by the defendant or where part payment is made by the defendant in respect to the claim³⁰.

In the case of *Sour Fap Famous v A.G [1997-2001] UCL 398*, the cause of action arose on Dec.31st, 1991, it ought to have been filed by Dec 31st, 1994, but it was brought on Dec. 29th, 2000. There was a delay of 9 years as it ought to have been brought within 3 years. At the hearing, it was not disputed that on Nov. 1999, the defendant expressly and in writing did acknowledge the existence of the plaintiff's claim and proposed repayment of "this long standing" debt through a payback scheme. It was held that the defendant's written acknowledgement of the debt and the proposal for partial repayment of the debt revived the period of limitation.

3. Fraud and mistake are also defence to limitation whereby the period begins to run when the plaintiff discovers the fraud or mistake³¹. This fraud must be on the part of the defendant or his or her agent.

²⁹ S 5 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act CAP 72 S 5 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act CAP 72

³⁰ S 22 of the Limitation Act Cap 80

³¹ S 25 of the Limitation Act and S 6 of the Civil Procedure and Limitation (Miscellaneous Provisions) Act

Small claims

The object of the small claims procedure is to adjudicate over small claims and to perform any other matters that may be conferred by the Chief Justice. And they are governed by the *The Judicature (small Claims procedure) Rules of 2011*

The High court and in particular the commercial court Division, a Chief Magistrates' court and a Magistrate Grade 1 court have the power to hear and settle small claim cases. The High Court however has general powers of supervision over matters of small claims in magistrates' courts.

Jurisdiction

A small Claim procedure covers cases whose subject matter does not exceed ten million (10,000,000) Uganda Shillings. However there are several cases cited under the Act that the small claims procedure does not apply to for instance;

- a) family disputes relating to the management of an estate
- b) a claim against the Government
- c) a suit for defamation, malicious prosecution, wrongful imprisonment, wrongful arrest, or seduction.
- d) a petition for divorce, nullification of marriage or separation of spouses
- e) a case involving the validity of a will
- f) a claim in which specific performance is sought without an alternative claim for payment of damages except in the case of a claim for rendering an account or transferring movable property and disputes arising out of tenancy agreements not exceeding ten million Uganda Shillings in value;
- g) contracts of service and contracts for service.

Every suit shall be instituted in a court within the local limits of whose jurisdiction the cause of action arose wholly or in part. In the case of a rental dispute or claim, a small claim shall be instituted in a court within the local limits of whose jurisdiction the property is situated or where the defendant resides.

Parties to a small claim

Only a natural person can institute an action in court. He/she can appear in person before a court and shall not be represented by an advocate during the proceedings. A body corporate may become a party to an action in court as a defendant. It may appear before court by a representative not being an advocate.

Procedure for Instituting a Small Claim

1. Notice of Demand

A person instituting a small claim should give a notice of demand requesting him/her to satisfy a small claim within fourteen days of receipt of the notice of demand. This notice is specified in schedule 1 of the Rules.

2. Claim form

This should be filled by the person instituting a small claim. Attached to this claim form should be;

- a) A copy of the notice of demand and an affidavit of service
- b) A copy of any agreement, document or other proof upon which the claim is based.
- c) Full name ,address of the intended defendant
- d) Any other relevant information

3. Summons should be served upon the defendant, upon receipt of the summons the defendant may;

- (i) Satisfy the debt claim owed to the claimant
- (ii) ii) Deliver to the court, a written statement of defence and u containing the nature of his or her defence and particulars of the grounds on which it is based.
- (iii) iii) Institute a counterclaim by delivering a written statement of defence and counterclaim which contains particulars of the claim to the clerk of the court.

(iv) The defendant or designated court shall serve a copy of the written statement of defence and counterclaim upon the claimant within fourteen days of filing the written statement of defence and counterclaim in court.

4. Where the defendant has filed a defence which includes a counterclaim the claimant shall within fourteen days of service of the written statement of defence and counterclaim file a reply to the counterclaim or notify the court in writing that he/she shall reply to the counterclaim at the hearing of the case.
5. At the day of the hearing the parties to the claim shall ensure that they appear in person with all the relevant documents and exhibits to the claim, written statement of defence or counterclaim, also ensure that any witnesses in support of his/her claim are present in court.

The parties shall also ensure that they have proof that the summons, written statement of defence or counterclaim was served upon the other party or parties. Each party shall bear his/her own expenses and be given an opportunity to be heard, call witnesses.

Therefore the court shall ensure that every case before it is heard expeditiously and without undue regard to technical rule of evidence or procedure, the court shall be guided the principles of fairness, impartiality without fear or favour and adhere to the rules of natural justice.

Only one witness at a time shall be present in the courtroom at the time of giving testimony and a witness who has already testified in the case may attend the proceedings.

Cross Examination of the parties or of any witness is not permitted but the judicial officer may inquire into any aspect of the evidence that has been adduced in court.

Where the Judicial officer has heard all the parties and any witness to the case shall pass judgment immediately after the hearing or within fourteen days after hearing the case.

REMEDIES IN ADMINISTRATIVE LAW

Introduction

Remedies are measures that can be put in place to correct an infringement of the law.

Remedies are intended to:

1. Compensate the aggrieved party;
2. Enforce observance of the law;
3. Prevent continued non-observance of the law; and
4. To punish the law breakers.

Remedies in Administrative Law are born out of article 42 of the constitution. This article provides that any person appearing before any administrative official or body has a right to be treated justly and fairly, and shall have a right to apply to a court of law in respect of any administrative decision taken against him or her. Administrative law remedies are broadly categorized into two;

1. **Judicial** – obtained from courts of law either through a process of Appeals, Judicial Review or legal suits.
2. **Non-Judicial** – obtained from non-judicial bodies with constitutional or legal powers to give such remedies. Such bodies include Parliament, Inspectorate of Government, Human Rights Commission, Appointing Authority, and Commissions of Inquiry.

Objectives

By the end of this session, you should be able to:

1. Know the various public law, equitable and non-judicial remedies.
2. Advise on the most appropriate remedy with given facts.

Public Law Remedies

These are judicial remedies that can only be obtained from the High Court in exercise of its powers of review.

Appeals (see section on Appeals)

Prerogative orders

These are because originally under England law they were available only to the crown and not to the subject. The crown used them to ensure that public authority carried out their duties and so their main purpose was to ensure efficiency and maintain order in statutory authorities and tribunals of all kinds. Later around the 16th century, they become available to ordinary England citizens also seeking to enforce public duties. There are 3 examples of prerogative orders i.e. certiorari, prohibition and mandamus. These are all under judicial review. They are discretionary remedies and may be granted or refused at courts discretion. In **Chief Constable of the North Wales Police V Evans [1982] 1 WLR 1155 HL**, Lord Hailsham stated that the remedy of judicial review is intended to protect the individual against the abuse of power by a wide range of authorities, judicial, quasi-judicial, and administrative powers. That it is not intended to take away from those authorities the powers properly vested in them by law and to substitute the courts as the bodies making the decisions. It is intended to see that the relevant authorities use their powers in a proper manner. That the purpose of the remedies is to ensure that the individual is given fair treatment by the authority to which he has been subjected. That the function of court is to see the lawful authority is not abused by unfair treatment and not to attempt itself the task entrusted to that authority by law.

Prerogative Remedies

Prerogative Remedies in Administrative Law can be obtained from the High Court. S. 36 of the Judicature Act (Cap 13 Laws of Uganda) that the High Court may grant the following remedies:

Mandamus

Mandamus is an order requiring any act to be done. Mandamus refers to an order of court or administrative body directing any decision making body to perform a certain duty. Mandamus arises where a public official has neglected, refused, or failed to carry out a public function, duty or responsibility. In **R V Paddington South Rent Tribunal, exp Milliard [1955] 1 ALLER 691**, an order of mandamus was granted against a rent tribunal which had wrongly held that it had no jurisdiction to hear and determine an application properly made to it. The tribunal had a duty to hear cases that fell within its jurisdiction and, as a result of its errors as to its

jurisdiction, had improperly declined to hear the case. The complainant must therefore prove the following:

1. That there were public duties to be performed (see **Stream Aviation v Civil Aviation Authority** on what amounts to a public duty.)
2. That these public duties had to be performed by a particular person who is a public officer.
3. Those duties have not been performed by that public officer.
4. The applicant has no alternative remedies (see **Stream Aviation v Civil Aviation Authority**)

The order of mandamus is served on the relevant public officer compelling him or her to perform the specified public function, duty or responsibility e.g. In **Shah vs Attorney General** the High Court issued an order of mandamus to compel the Treasury Officer of accounts to pay Mr. Shah money due to him from government.

In **Pius Nuwagaba vs Law Development Centre**, the High Court gave an order to LDC to admit the applicant Nuwagaba because he had qualified to be admitted but the LDC had refused to admit him.

An order of mandamus can only be served against a specified public officer and not an institution.

Certiorari

An order of certiorari is issued by the High Court. Certiorari refers to an order quashing an illegal decision of an administrative authority or court. Certiorari may be granted where there is proof of failure to follow procedures; ultra vires exercise of powers or breach of principles of natural justice. The remedy may issue upon satisfaction of three requirements; firstly that the decision maker has authority to determine the questions which affect the rights of subjects, secondly that the body owes a duty to act judicially and thirdly that the same body acts in excess of its legal authority. The grounds upon which the remedy of certiorari is sought in the High Court include judicial/jurisdictional error, breach of procedural fairness, error of law on the face of record and fraud.

Fernandes v Kericho Liquor Licensing Court; The applicant's license was not renewed on ground that the applicant was not a Kenyan citizen. Sec.16 of the Liquor Act provided six disqualifications for renewal and didn't include lack of citizenship. Court noted that the expression 'fit and proper' refers to the personal qualities of an applicant and not his national status. Therefore this was an irrelevant consideration.

Lex Uganda Advocates & Solicitors v AG where the High Court granted an order of certiorari to quash a decision of the Law Council requiring the applicant to change its firm name and drop the use of the word 'Uganda' from the said firm name.)

In **Kikonda Butema Farms Ltd V Inspector General of Government**, this was an application that sought for certiorari to quash the decision of the IGG, Justice Apio Aweri stated that for an order of certiorari to be made, it must be shown inter alia the respondent acted in excess of his jurisdiction; that there was actual or threatened usurpation of jurisdiction or that there was breach of natural justice, or that an error of law on the face of the proceedings or where the determination was procured by fraud, collusion or perjury. That in this case the action of the IGG was justified as he had received a report that government was about to lose colossal sums of money under unclear circumstances, he made a report which was valid. That the IGG was acting within the confines of his (powers) jurisdiction, his decision was valid. That since none of the grounds listed above had been proved, it could not be issued.

Grounds on which a certiorari application may be made

Breach of rules of natural justice.

It should be noted that the principle of natural justice has been embedded in the 1995 Constitution of the Republic of Uganda and other laws and its one of the non derogable rights. Art. 42 of the 1995 Constitution provides that any person appearing before any as administrative official or body has a right to be treated justly and fairly and shall have a right to apply to a court of law in respect of any administrative decision taken against him / her. This is because Art 28 of the 1995 Constitution provides for a right to a fair hearing which is absolute. It provides that in the determination of civil rights and any obligation, or in criminal matter a person shall be given a fair, speedy and fair hearing before an independent tribunal established by law.

Accordingly, Article 44 of the Constitution provides inter alia that notwithstanding anything in the Constitution, there shall be no derogation from the enjoyment of the right to fair hearing. The duty to act fairly represents the standard of procedural administrative justice with which they will require compliance.

In **John Bosco Oryem V Electoral Commission and UNEB**, Mukiibi J held that the Electoral Commission was a quasi judicial organ by virtue of section 15 (1) of the Electoral Commission Act and its functions are akin to a court or an arbitrator. His

lordship observed that 'if interests of an individual are going to be affected, he must be given a hearing. Where quasi judicial functions have to be exercised by a board or any body of persons, it is necessary and essential that they must always give a fair opportunity to those who are parties in the controversy to correct or contradict any relevant statements prejudicial to their case. Both sides have a right to be heard and a decision in breach of the principles of natural justice is void.' His lordship held that the respondent met to discuss the complaints which had been submitted against the petitioner without notifying him that such proceedings were taking place. That the respondent made a decision against the petitioner to disqualify him without informing him or inviting him to defend and as such the respondent acted contrary to natural justice in arriving at its decision. The decision shows how rules of natural justice have been applied in Uganda.

Accordingly, in **Marko Matovu V Mohammed Sseviri**, Court held that the audi alteram partem rule is a cardinal rule of natural justice so central to Uganda's system of justice that it must be observed by both judicial and administrative tribunals. Where an administrative agency acts contrary to this rule it exceeds powers conferred upon it by parliament and such decision is void and of no consequence in the same way as a decision made without jurisdiction is a nullity. In **Kaggwa Andrew V Minister of Internal Affairs HC Misc. Application No. 105 of 2002**, court held that the Minister's decision would be quashed for the applicant had not been granted a fair hearing, that this violated the principle of natural justice.

1. Excess or lack of jurisdiction on the part of the deciding authority.
2. An error of law on the case on the record or fraud, perjury or duress in procuring a decision.

As discussed in **In Kikonda Butema Farms Ltd V Inspector General of Government**, this was an application that sought for certiorari to quash the decision of the IGG, Justice Apio Aweri stated that for an order of certiorari to be made, it must be shown inter alia the respondent acted in excess of his jurisdiction; that there was actual or threatened usurpation of jurisdiction or that there was breach of natural justice, or that an error of law on the face of the proceedings or where the determination was procured by fraud, collusion or perjury. That in this case the action of the IGG was justified as he had received a report that government was about to lose colossal sums of money under unclear circumstances, he made a report which was valid. That the IGG was acting within the confines of his (powers)

jurisdiction, his decision was valid. That since none of the grounds listed above had been proved, it could not be issued.

Prohibition

This is an order of the High Court stopping a public authority from proceeding with a particular activity which is deemed to be illegal. This usually arises where a public authority is acting in excess of its jurisdiction. In *Re An Application of Bukoba Gymkhana Club* was prohibited from using irrelevant considerations in licencing of the Club. In *Stream Aviation Limited v The Civil Aviation Authority (Miscellaneous Application No.377 of 2008) [2008] UGHC 37 (12 September 2008)*, court stated that both the prerogative orders of prohibition and certiorari must go hand in hand.

Thus while Certiorari looks at the past as a corrective remedy, prohibition looks at the future as a prohibitive remedy. As prohibiting or used to prevent tribunals from dealing with cases over which they have no jurisdiction. In *R vs Electricity Commissioners Exparte London Electricity joint committee company Ltd (1924) 1 KB 171*, prohibition was used to prevent the electricity authority from proceeding with a scheme which was outside its powers. Lords Atkin observed that; "I can see no difference in principle between certiorari and prohibition except that the latter may be involved at an earlier stage. If the proceedings establish that the body complained is exceeding it's jurisdiction by entertaining matters which would result in it's final decision being brought up and quashed on certiorari, then prohibition would lie to restrain it from so exceeding it's jurisdiction"

Excess or lack of jurisdiction

There may be an excess of jurisdiction if the tribunal is improperly constituted, incompetent to adjudicate in respect of the parties, locally or the subject matter of the case. A tribunal may lack jurisdiction if the essential preliminary requirements have been disregarded; or if the proceedings are not properly instituted; or having jurisdiction in the first place, proceeds to entertain matter or make an order beyond its competence. In *De Souza V Tanga Town Council [1961] EA 377*, certiorari order was issued partly on the ground that a mandatory procedure had not been followed which amounted to an excess of jurisdiction. Further, In *Re an Application by Bukoba Gymkhana Club [1963] EA 478*, certiorari was awarded to quash the decision of a liquor licensing board on the ground that it took into account irrelevant considerations.

In *Pius Nuwagaba V LDC High Court Miscellaneous Application No. 589 of 2005*, an application was made by Nuwagaba to quash the decision of LDC in rejecting the application of the applicant and others from Pentacostal University for lack of accreditation by Law Council. While holding that the applicant was a holder of a degree in law granted by a university in Uganda as required by S. 8 of the Advocates Act, Okumu Wengi J stated that the decision of LDC was illegal and irregular and hence the decision would be quashed and an order of prohibition would issue against LDC from treating the Degree of the applicant as not recognised.

Prohibition was also ordered In *R vs Kent Police authority ex parte Godden (1971) 2 QB 662*, a biased adjudicator was prohibited from taking part in the decision. It was held that a doctor who had previously examined a police officer and formed then an opinion that the officer was suffering from mental disorder of a paranoid type, should not subsequently have been appointed to be the 'dully appointed practitioner' to certify whether the officer was permanently disabled from proper performance of his duties requiring compulsory retirement. Such certification was a judicial-type function, requiring both actual and apparent impartiality. In the circumstances suspicion existed that the doctor would be biased to favour his own earlier diagnosis.

The above remedies can only be granted as a result of the processes of judicial review. That means that the applicant can only succeed where it is proved that any of the following exist:

1. Illegality – ultra vires
2. Failure to follow procedures
3. Abuse of discretionary powers
4. Breach of rules of Natural Justice
5. Judicial review remedies are therefore granted by the High court for the purpose of preventing administrative bodies from exceeding the limits of their legitimate sphere of action, or compelling them to exercise their function in accordance to the law.

The above remedies, i.e. certiorari and prohibition are discretionary and cannot be granted where the law provides for another applicable remedy in the circumstances. For example, the remedies will not be available where statutory appeals are provided for. The courts will normally expect the applicant to exhaust the applicable local remedies.

The remedy of judicial review is not an appeal from the decision, but a review of the manner in which the decision was made.

Whether an order of judicial review remedies is appellable has been rocked with so much controversy. However the Court of Appeal put this matter to rest in **Pius Nuwagaba v LDC** when it held that all prerogative orders of the High Court are appealable unless expressly prohibited by statute.

N.B

The above three remedies are orders of judicial review. It is imperative to note that when deciding whether or not to grant an order of judicial review, court has to bear in mind that on a judicial review application, the court will not act as “a court of appeal” from the body concerned. The court shall also not interfere in any way with the exercise of any power or discretion which has been conferred on an administrative body, unless that power has been exercised in a way which is not within that body's jurisdiction, or the decision is unreasonable. if the court were to attempt itself, the task entrusted to that authority by the law, the court would, under the guise of preventing abuse of power, be guilty itself of usurping power. **See Chief constable of North Wales Police v Evans (1982) 1 WLR 1155, at 1173.**

Exclusion of Legislative Acts

The remedies of certiorari and prohibition does not operate to reverse or alter legislative acts, see **Stephen Byaruhanga Vs Mbarara Municipal Council (1995) 4 KALR 62**. The only option is to challenge the validity of the enacted laws in the constitutional court.

Locus Standi

The applicant must also prove that he/she has sufficient interest in the case and bring about the application. It seeks to determine whether a particular plaintiff is entitled to invoke the jurisdiction of the court. Locus Standi is deemed to exist in the following situations:

1. Where a person is a subject of a decision.
2. Where a person is directly affected by the actions of a public officer or department e.g. dismissal.

3. Where the person is a beneficiary or a member or a successor of an estate of a deceased person.

The constitutional exception to this requirement of locus standi is in Article 50 (2) which provides that “any person or organization may bring an action against the violation of another persons or groups human rights”. The **Environmental Action Ltd v AG & NEMA**; The applicant is a public interest litigation group who brought an application on its own behalf and on behalf of the non-smoking members of the public under Article 50(2) of the Constitution to protect rights of non-smoking public. The Respondent contended that the issue was of no standing. Court held that the applicant could bring an action to represent a Ugandan non-smoking public by relying on the Constitution and decided cases that have held that an organization can bring a public interest action on behalf of groups or individual members of the public even though the applying organization has no direct individual interest in the infringing acts it seeks to have redressed.

Habeas Corpus

Habeas corpus means “produce the body”. It is a prerogative writ used to challenge the validity of a person’s detention. It is an order of the High Court directed against any person who is alleged to be in illegal detention of another person. The right to an order of habeas corpus is enshrined under article 23(9) of the constitution and it is a non-derogable right under article 43. The order directs the person, the alleged culprit, to produce the person in detention before the High Court. The order also requires that justification be made for the continued detention of such a person. Where the court is not satisfied that the detention is legal, it may issue an order for release of the detainee – Re **Kizza Besigye M. A. No 161/2005**. In **A.G V Joseph Tumushabe**, the detainees were arrested in the Democratic Republic of Congo (the DRC) in March 2003 and were handed over to the UPDF, which took them into custody. After learning of their arrest from the media, the Mr Tumushabe a citizen concerned with observance of human rights, sought in vain to know the location where the detainees were held. Eventually, he joined with relatives of 22 of the detainees in an application to the High Court for issue of a *Writ of Habeas Corpus* directing the appellant and the UPDF Army Commander to produce the detainees. On 11th April 2003, the High Court issued the writ returnable on 17th April 2003. The writ was returned on the due date with information –

1. that three of the persons named in the writ were not detained; and

2. that the rest, who, together with others not named in the writ numbered 25, were charged before the General Court Martial on 16th April 2003 with the offence of treason contrary to section 25 of the Penal Code Act and were remanded in custody at Makindye Military Police Prison.

Where it is proved that detention is lawful, the High Court will not order release of that person Re **Ephraim Tusiime C.A. No 52/2001**.

EQUITABLE REMEDIES

These include:

1. Injunctions
2. Declarations
3. Damages

Injunctions

An Injunction is a court order requiring the party to whom it is addressed to refrain from doing a particular act e.g. a tort or a breach of contract. It is also possible for the court to grant a mandatory injunction i.e. a positive order to do some act rather than a negative order to refrain. Mandatory injunctions are rare in Administrative Law because there is a special procedure for enforcing the performance of a public duty, i.e. mandamus and prohibitions. Injunctions are provided for under s.38 the Judicature Act.

Examples of Injunctions in Administrative Law

1. To prevent public bodies from acting ultra vires e.g. **A.G. Vs Fulham Corporation (1921) 1 Ch 440**. The defendant had statutory power to provide 'wash houses', which were to be supplied with facilities for washing and drying clothes. Acting under that power, it provided facilities where members of the public came to wash their clothes. The corporation now proposed to provide a laundry service where the washing would be done by its employees. The A.G. obtained an injunction to restrain the corporation from acting ultra vires.
2. To prevent a public authority from committing a tort e.g. **Broadbent Vs Rotherham Corporation (1917) 2 Ch 31**. An injunction was granted to restrain the corporation from carrying out a demolition order without a proper hearing of the owner's case. Also **Pride of Derby & Derbyshire Angling Association Ltd Vs**

British Celanese Ltd (1953) Ch 149, an injunction was granted to prevent a public authority from committing a nuisance i.e. polluting a river.

3. Injunctions for enforcement of statutes, or to secure obedience to the law e.g. **A.G. Vs Harris (1921) 1 Q.B. 74; (1921) 3 All E.R. 207**, Harris had been convicted 142 times of selling flowers on the footpath outside a Manchester cemetery. His wife had been convicted 95 times. The maximum fine was £ 2, and the fines imposed on the Harrises were paid. The Court of Appeal held that though each offence was trivial, it was right that the Harrises should be stopped from deliberately flouting the law and an injunction was granted.

An Injunction is a discretionary remedy and may be refused under certain circumstances

1. Injunctions may not be used to interfere with the processes of Parliament. See **Bradclough Vs Gosset (1884) 12 Q.B.D. 271**.
2. Mandatory injunctions compelling a person to do a continuous indefinite act, where no specific time limit for the doing of the act is given e.g. In **A.G. of Kenya Vs Block and Anor (1959) E.A. 180**. The A.G. sought an injunction to compel the defendant to maintain roads in a certain part of Nairobi. The conditions in the defendant's lease did not specify a period of time for the road maintenance. The court refused to grant an injunction, citing the difficulty of its enforcement. Read **Gravesham Borough Council Vs British Railways Board (1978) Ch 379, (1978) 3 All E.R. 853**.
3. The conduct of the applicant since it is an equitable remedy and he who comes to equity must come with clean hands. See **Glynn Vs Keele University (1971) 2 All E.K. 81, (1971) 1 W.L.R. 487**.

N.B According to the Government Proceedings Act, an injunction may not be granted against the government, but the court may make a declaration on the rights of the parties. The rationale is that is an injunction would cause chaos by bringing the machinery of government to a halt. However an exemption has been provided in the case of [**Ostraco vs. Attorney General**]

Declarations (sometimes called “declaratory orders)

This is an order of the court which merely declares what the legal rights of the parties to the action are without changing them i.e. it is a formal statement from the court that a decision, act or procedure is unlawful. It has no coercive force (i.e. it is not legally binding) – it does not require anyone to do anything.

Please refer to Judicature Act S. 36 which gives the High Court power to grant orders of prohibition among other remedies.

Note that an application for judicial review may seek various remedies at the same time, and a declaration can be combined with other remedies.

The declaration is a particularly useful remedy in Administrative Law. It is an efficient remedy against ultra vires action by governmental authorities of all kinds. If the court declares that some action is unauthorized by law that concludes the matter. It is a suitable way to settle dispute with governmental authorities, since it involves no immediate threat of compulsion, yet is none the less effective.

When a declaration will be available

A declaration is so wide ranging that it will rarely be refused. The category of cases in which declarations have been awarded in the field of public law cannot be defined with exactitude; and the categories are not closed. In **Barnard Vs National Dock Labour Board (1953) 2 QB 18 at 41, (1953) 1 All ER 113 at 119**, Lord Denning went so far as to say that "there is no limit to the power to award a declaration except such limit as the court may impose on itself".

Examples of cases where a declaration has been made

1. Persons aggrieved by statutory instruments or byelaws or other subordinate legislation have obtained declarations that the instruments were ultra vires or at least not binding on them e.g. **Agricultural, Horticultural and Forestry Industry Training Board Vs Aylesbury Mushrooms Ltd (1972) 1 All E.R. 280, (1972) 1 W.L.R. 190.**
2. For determining nationality **A.G. Vs Prince Ernest Augustus of Hanover (1957) A.C. 436.**
3. A police officer may obtain a declaration that his dismissal is invalid – **Cooper Vs Wilson (1937) 2 KB 309, Ridge Vs Baldwin (1964) A.C. 40.**

All in all, any act of a public authority may be challenged in declaration proceedings claiming that it is ultra vires and void.,,

A declaration may not be available in certain circumstances as it is a discretionary remedy and court may refuse it if thinks fit

1. Court may refuse relief to speculators and busy bodies who ask hypothetical questions, or those who have no sufficient interest in the matter. In **Russian**

Commercial and Industrial Bank Vs British Bank for Foreign Trade (1921) 2 A.C. 438, Lord Dunedin said:

“The question must be a real, and not a theoretical question; the person raising it must have a real interest to raise it; he must be able to secure a proper contradictor (defendant) i.e. someone presently existing who has a true interest to oppose the declaration sought ...”

In other words, there must be a genuine legal issue between two parties.

In **Re Balnato (1949) Ch 258**, a declaration to determine when, if an advance were to be made from a trust fund, estate duty might in certain circumstances be payable, was refused. Then it said that no doubt it would be convenient for the trustee to get such a determination, but if people could go to it merely because they wanted guidance on the ordering of their affairs, there would be no end to the litigation that would follow.

2. Where its result would be to embarrass and prejudice the security of the state

In **Opolot Vs A.G. of Uganda (1969) E.A. 631**, declaration refused because its result would be seriously to embarrass and prejudice the security of the state. The appellant was formerly a Brigadier in the Uganda army and Chief of Staff. He was discharged from the army and detained under Emergency Regulations. He sought a declaration that his discharge was invalid and he was still a member of the army and the chief of staff and that the Armed Forces (Discharge) Regulations were invalid.

3. The law will not specifically enforce a contract of service between master and servant. The master has power to dismiss the servant, and even where there is a breach of contract, the servant's remedy is to sue for damages. Therefore, a dismissed employee cannot obtain a declaration that his dismissal is a nullity, for in that case, his employment would still continue. It may only make a declaration that the dismissal was a breach of contract, thus establish his right to damages.

However, officers whose employment is governed by specific statutes, e.g. police officers, may obtain declarations prolonging their employment if their dismissal is carried out in contravention of the statute. See **Barnard Vs National Dock Labour Board (1953), 2 QB 18** and **Vine Vs National Dock Labour Board (1957) AC 488**, **Cooper Vs Wilson (1937) 2 KB 309** and **Ridge Vs Baldwin (1964) AC 40**.

See also **Tinyefunza Vs Attorney General**.

4. If its effect would be to usurp powers of the body in question.

In **Shah Vs Barnet London Borough Council**, the council refused to grant Shah a grant to attend to university on the ground that he was not ordinarily resident in the council. Shah sought a declaration to the effect that the council had made an error and that he should be awarded the grant. Court held that a declaration was not the appropriate remedy in the circumstances as it would usurp the council's powers to grant or deny an applicant a grant. [Read the case of **Hon. Mukasa Fred Mbidde & Hon. Michael Mabike Vs Law Development Centre Hct-00-Cv-Ma- No. 0002 Of 2013**]

Damages

Damages are a sum of money paid by court as compensation for commission of a tort or breach of contract. The possibility of suing the government and governmental authorities for damages for tortious injury or breach of contract are governed by the Government Proceedings Act. These proceedings can lead to award of damages. Damages can be classified into special damages, general damages and exemplary damages.

Special Damages

These may be claimed in respect of matters whose value can be quantified and specifically proved; for example through receipts issued to the plaintiff. Read the case of **Kafumbe Mukasa Vs A.G. (1980) HCB**. Without receipts or other specific proof, the cause of action may not succeed.

General Damages

General damages are given for losses that the law will presume are the natural and probable consequences of the loss. These cannot be specifically ascertained. They include compensation for pain and suffering, loss of future prospects, etc. They are awarded at courts' discretion. Read **Repaired Asians Property Custodian Board Vs Kayondo (1982) HCB 1**.

Exemplary Damages

These are given as a deterrent/punishment, where the defendant's conduct has been oppressive and arbitrary and highhanded e.g. false imprisonment. These are usually high in order to have a deterrent effect.

Nominal Damages

Nominal damages are a token sum of damages awarded when a legal right has been infringed but no substantial loss has been caused. These are damages that demonstrate that the complainant was correct in bringing his/her claim. They are normal to show that no loss was however suffered through action or omission of the party who is asked to pay nominal damages. For example, the court may award damages of Shs 1,000/- only as compensation where a wrong is committed without substantial loss in pecuniary or material terms.

NON-JUDICIAL REMEDIES

In many cases, the judicial remedies are not the best placed to address matters of administrative injustice. Judicial remedies have been criticized because of the following:

- i) They are slow – that in itself is injustice.
- ii) They are expensive – may not be affordable by the majority of those who suffer administrative injustice.
- iii) They follow labourious procedures which are not known to the majority.
- iv) They sometimes emphasize technicalities at the expense of substantive justice.
- v) Too formal to resolve issues of administrative injustice.

The Constitution and Acts of Parliament have put in place other methods of resolving issues arising from administrative injustice. These include:

- i) Parliament
- ii) Ombudsperson (Inspectorate of Government)
- iii) Appointing Authority
- iv) Specialized Government Departments e.g. Police, Uganda Human Rights Commission, Industrial Court.

Parliament

Art 79 (2) enjoins Parliament to ensure that the Constitution and democratic governance prevails. Parliament can therefore intervene in any matter which has the effect of eroding constitutionalism, democratic governance or accountability. Parliament exercises this general mandate through the following measures:

- a) Standing Committees of Parliament can summon any Minister or public officer and demand explanations on any matter of public concern within the relevant department of government. Parliament can initiate this process or can act on complaints or petitions raised by any member of the public.

Parliament also has sessional committees which attend to particular sectors of government e.g. social services, legal, infrastructure, etc. These committees normally control the allocation of funds and have continuous monitoring of activities.

These Committees of Parliament have powers of the High Court and can summon and compel attendance of witnesses, production documents and other evidence. The Committee of Parliament can recommend further action against a public officer by the relevant departments e.g. DPP, Police, Inspectorate of Government, Auditor General, etc.

- b) Parliament also has a Public Accounts Committee and Local Government Committee which are both concerned with accountability of public funds. These committees receive and review reports of Auditor General and have powers to make appropriate recommendations whenever misuse of public funds is documented and is without sufficient explanation from concerned persons. The Latimer House Convention rules for Commonwealth countries recommends that the Public Accounts Committee must be a member of the opposition.
- c) Under Act. 118 of the Constitution, Parliament can censure Ministers for incompetence, abuse of office, misconduct, misbehaviour or inability to perform the function of Minister. This function makes Ministers individually responsible to Parliament for the performance of their departments. Parliament is expected to use this power to make Ministers accountable for their action. It has happened in the case of censorship of **Sam Kuteesa and Jim Muhwezi**.

- d) Parliament can also use its budgetary powers to deny funds to a government department which misuses its powers. Funds may be withheld until Parliament has received satisfactory explanation on the conduct of public officials or actions of a government department.

Inspectorate of Government (See case study)

Appointing Authority

Unless otherwise provided, the appointing authority is the one with power to exercise disciplinary action against a public officer – S. 24 of Interpretation Act provides that “where, by an Act, a power to any appointment is conferred, the authority having power to make the appointment shall also have power to (subject to any limitation or qualification which affect the power of appointment to remove, suspend, re-appoint, or reinstate any person appointed in the exercise of the power”.

Appointing authorities in Uganda include:

1. The President
2. Ministers
3. Public Service Commission
4. Judicial Service Commission
5. District Service Commissions
6. Health Service Commission
7. Education Service Commission
8. Boards of Directors of statutory bodies
9. The Prisons Service (established under The Prisons Act 2006)

These bodies are usually given powers to appoint, promote and exercise disciplinary control over their appointees e.g. Art. 166 of the Constitution provides that the Public Service Commission shall have power to appoint, promote and exercise disciplinary control over persons appointed in the public service. Matters of abuse of public powers may therefore be referred to the appointing authority for appropriate action.

Where the law provides for disciplinary action to be exercised by another authority, the complaints against the public officer concerned should be channeled to the specific authority e.g. the President appoints Permanent Secretaries but disciplinary action can only be taken against them by the Public Service Commission.

Specialized Government Departments

There are various government departments which are also charged with the control of powers of public officers. Depending on the matters which are subject of complaints, the following public bodies can be useful in giving appropriate remedies.

1. **Police** – criminal matters like causing financial loss, false accounting, etc.
2. **Uganda Human Rights Commission** – instances of abuse of human rights.
3. **Industrial Court** – labour disputes.
4. **Auditor General** – misuse of public funds.
5. **Procurement and Disposal Assets Authority** – public procurement and disposal of public assets.
6. **National Environment Management Authority** – environmental protection and regulation.

Penal Provisions

These are penal provisions which are aimed at punishing public officers and other persons who misuse their public offices. These provisions have prohibition which relate to public officers and offences should not be committed by public officers. These are also specific punishments for breach of these provisions. Parliament enacted the Anti-Corruption Act, 2009 to provide for effectual prevention of corruption in the public sector and to consequentially amend the Penal Code Act. Under the Act the following offences are created *inter alia*:

1. Corrupt transaction with agents
2. Corruptly procuring tenders
3. Bribery of a public official
4. Diversion of public resources
5. Influence peddling
6. Conflict of interest
7. Loss of public property
8. Abuse of public office
9. Sectarianism
10. Nepotism
11. Unauthorized administration of oaths
12. False assumption of authority
13. Embezzlement
14. Causing financial loss

All cases dealing with corruption are filed at the Anti-Corruption division of The High Court

Cases (decided by the Anti-corruption court include

1. Uganda V David Chandi Jamwa HCT-CRIM SES NO.8 OF 2010
2. Uganda V Okongo Denis and Kilara Benson HCT-00-ACD CR.SC 27/2010
3. Uganda v Zaake M. Walakira Criminal Session No. 020 of 2010.
4. Uganda vs. Kashaka Muhanguzi and others criminal session No.47 of 2012.

